A. 1202SC24R2100

A.1 NOTICE TO OFFERORS

(Ref. 48 CFR 1)

Issuing Office: U.S. Forest Service, Contracting National Interagency Fire Center (NIFC) Boise, ID 83705-5354	This solicitation, including amendments, can be downloaded from: https://www.sam.gov
Proposals Are Solicited For: National Mobile Food Service Units (MFSU)	
Solicitation No: 1202SC24R2100 **Issued Date:** 3/24/2025	

IMPORTANT – NOTICE TO OFFEROR

The information provided in this cover is not intended to be construed differently from information in the solicitation. Should a conflict in the interpretation exist, the information in the request for proposals (RFP) shall take precedence.

This solicitation will result in performance based, multiple-award, Indefinite-Delivery/Indefinite-Quantity (IDIQ) contracts for National "Parent" Mobile Food Service Units (MFSUs) support. Please review each section in detail to ensure the required electronic forms and documentation are submitted. **See SF1449 for due dates and times**. After IDIQ award, successful awardees will be provided fair opportunity to submit price proposals for National MFSU Task Orders (TOs) Designated Dispatch Point (DDP). *NOTE*: Proposals will not be accepted from non-National MFSU "Parent" IDIQ awardees.

Offeror shall submit the following items in response to this solicitation:

a. SF-1449, block 17a (including block CODE with offerors Unique Entity Identifier (UEI)) and blocks 30a-30c: Complete, date, and sign;
b. Complete a Schedule of Items for each unit you have to offer (B.5) (completed electronically);
c. Complete a National MFSU Description & Equipment Requirements Checklist (D.14 Attachment 1.) for each National MFSU offered;
d. Provide proposal in the format required in FAR 52.212-1 of the solicitation;
e. Provide responses to FAR 52.212-3 and FAR 52.223-1 Biobased Product Certification as required.

Any solicitation package (Proposal), as required, shall be EMAILED in the following format:

a. To: National Mobile Food Services by email to: 1202SC2.lj4vssjnb4u95qmf@u.box.com;
b. File Name Configuration: *Company Name*–NATMFSU–*Business/Technical/ D14–Submittal Date*.
c. This email address does not download text in the subject or body of the submission; it ONLY downloads attachments.

"The policy of the United States Department of Agriculture Forest Service prohibits discrimination on the basis of race, color, national origin, age, religion, sex, disability, family status, and/or political affiliation." Persons believing they have been discriminated against in any Forest Service-related activity should write to: Chief, Forest Service, USDA, P. O. Box 96090, Washington, DC 20090-6090.

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AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT

1. CONTRACT ID CODE	PAGE	OF PAGES
	1	1

2. AMENDMENT/MODIFICATION NO.	3. EFFECTIVE DATE	4. REQUISITION/PURCHASE REQ. NO.	5. PROJECT NO. *(If applicable)*
0001	04/04/2025		

6. ISSUED BY CODE 02SC

USDA-FS INCIDENT PROCUREMENT LOGIS
3833 S DEVELOPMENT AVE
BOISE ID 83705-5354

7. ADMINISTERED BY *(If other than Item 6)* CODE

8. NAME AND ADDRESS OF CONTRACTOR *(No., street, county, State and ZIP Code)*

CODE FACILITY CODE

(x) 9A. AMENDMENT OF SOLICITATION NO. 1202SC24R2100

x 9B. DATED *(SEE ITEM 11)* 09/30/2024

10A. MODIFICATION OF CONTRACT/ORDER NO.

10B. DATED *(SEE ITEM 13)*

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☒ is not extended.
Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended , by one of the following methods: (a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted ; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGEMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted , such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA *(If required)*

13. THIS ITEM ONLY APPLIES TO MODIFICATION OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.

CHECK ONE

A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: *(Specify authority)* THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.

B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES *(such as changes in paying office, appropriation data, etc.)* SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).

C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:

D. OTHER *(Specify type of modification and authority)*

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION *(Organized by UCF section headings, including solicitation/contract subject matter where feasible.)*

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The purpose of the amendment to the solicitation is to provide the Government's Responses to Questions Received prior to the Pre-Solicitation Conference and provide the conference link.

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Period of Performance: 07/01/2025 to 12/31/2029

Except as provided herein, all terms and conditions of the document referenced in Item 9 A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER *(Type or print)*		16A. NAME AND TITLE OF CONTRACTING OFFICER *(Type or print)*	
		DANA L. PRICE	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		*(Signature of Contracting Officer)*	

B. SOLICITATION CONTINUATION PAGES AND SCHEDULE OF ITEMS

This solicitation for National Mobile Food Service Unit (MFSU) support will result in commercial, performance based, multiple-award, Indefinite Delivery-Indefinite Quantity (IDIQ) contracts (Phase 1) and Task Order (TO) contracts (Phase 2) with fixed-price Contract Line-Item Numbers (CLIN) established for each MFSU included in the IDIQ/TO. The contractor shall provide all necessary resources to provide MFSU services in accordance with the solicitation, as authorized through issuance of Task Orders (TO) (minimum guarantees, DDP, etc.) and Resource Orders (RO) ("dispatch" document used by Incident Ordering Official (IOO) that provides "scope" information (place of performance, estimated period of performance and number of personnel assigned) for fire suppression related activities, all-hazard incidents and severity/preparedness assignments.

The services of this Request for Proposal (RFP) are being acquired under the authority of Federal Acquisition Regulations (FAR), Part 12, Acquisition of Commercial Products and Commercial Services in conjunction with FAR Part 15, Contracting by Negotiation and conducted in two phases.

(a) Phase 1 will evaluate all MFSUs proposed using a Lowest Priced/Technically Acceptable (LPTA) source selection process. National MFSU "Parent" IDIQs will be awarded to offerors with units determined reasonably priced and technically acceptable.

(b) Phase 2 will consist of a separate notice of fair opportunity (NFO) evaluated using a best value selection process for solicited DDP TOs. The NFO will only be issued to offerors that received a National MFSU "Parent" IDIQ. *Do not submit proposal information for DDP TOs at this time.*

The effective period of the resultant contract(s) will be from date of contract award through December 31, 2025: At the Government's option, the contract(s) may be renewed for additional one-year periods, not to exceed four renewal periods (5-year maximum potential contract plus an additional six months if Option to Extend Services FAR 52.217-8 is exercised).

B.1 General Information

(a) The Government is required to place Mobile Food Services orders for, and the Contractor to furnish, at least the stated minimum quantity identified in C.4.6 Minimum and Maximum Contract Amounts. If ordered, the Contractor must furnish any additional quantities required, not to exceed the stated maximum. The minimum and maximum quantity may include any combination of assignments for fire or emergency support. Determination of quantities ordered by the Government and delivered by the Contractor will be based on the cumulative orders accepted during the base period and each potential option period.

(b) Offerors shall complete Section B.5 Schedule of Items – MFSU Item Details and Schedule of Prices (National MFSU "Parent" IDIQ pricing) below for all five (5) years for all equipment and services they propose to offer. At a minimum, Offerors must provide at least one complete MFSU system and meet minimum capability requirements. The Total Estimated Quantities are for evaluation purposes only.

After award of a National MFSU "Parent" IDIQ contract, awardees will be provided fair opportunity to compete for Mobile Food Service Unit (MFSU) Task Order(s) (TO) for any or all the 30 Designated Dispatch Points (DDPs) for which they wish to be considered.

NOTE: National MFSU TO DDP Proposals will not be accepted from non-National MFSU

"Parent" IDIQ awardees. (from Phase 1 awards).

(d) Estimating the total overall contract value is difficult: the value purchased for all mobile food services ordered through the National Interagency Coordination Center (NICC) from 2019 through 2023 was $395,814,914.73.

(e) This acquisition is 100% set-aside for small business concerns.

(f) The following table provides the historical National Mobile Food Services orders by Geographical Area Coordination Center (GACC). The number of orders filled in each GACC represents the ordering activity level.

Table 1: Historical National MFSU by GACC

	2019	**2020**	**2021**	**2022**	**2023**	**5-Yr Avg**	**5-Yr High**
Requesting Coordination Center	Orders Filled	Orders Filled	Orders Filled	Orders Filled	Orders Filled	Orders Filled	Orders Filled
Great Basin	10	0	13	16	5	8.8	16
NICC	0	25	10	0	0	7.0	25
Northern California	9	24	27	7	11	15.6	27
Northern Rockies	4	7	41	10	11	14.6	41
Northwest	7	31	10	13	19	16.0	31
Rocky Mountain	6	12	0	9	4	6.2	12
Southern California	4	15	17	5	2	8.6	17
Southwest	7	16	0	20	14	11.4	20
Totals	***47***	**130**	**105**	***81***	***66***		

(g) The following graphic shows the locations of the GACCs.

(h) Some charges will be credited on a price reimbursable basis (see C5.1(g)(i)(c)(f), D.1.1(i) and D.1.6(a)(9)). In addition, the contractor may provide supplemental foods and beverages, optional temporary refrigeration storage space, supplemental tents and seating and/or hot food delivery vehicle. These are optional items the contractor is not required to provide, nor is the Government required to order. The prices proposed for these optional items will be evaluated for price reasonableness. Optional items will not be included in the total evaluated price.

(i) Each awardee is guaranteed order(s) equal to the amount of $5,000.00 during the life of the National MFSU "Parent" IDIQ. In order to have a binding IDIQ type contract, the contract must require the Government to order and the Contractor to furnish at least a stated minimum quantity of services in accordance with FAR 16.504.

(j) The Offeror shall provide 24-hour contact information.

B.2 National MFSU "Parent" IDIQ Dispatch Points (DP) & National MFSU Task Order (TO) Designated Dispatch Points (DDP)

The DP and DDP are contractually approved physical address(es)/location(s) (no PO Boxes) of an MFSU for the life of the contract. The contractor is responsible for submitting any requests for changes to the COR *and* CO in writing at least 30 days prior to the requested effective date. The CO must approve any changes via written modification.

(a) The National MFSU IDIQ Dispatch Point (DP) will be the location for the complete MFSU and key personnel (unless reassigned enroute to/from an incident). A physical address must be provided at the time of proposal submittal during phase 1 of this acquisition.

(b) The National MFSU Task Order (TO) Designated Dispatch Point (DDP) will be the location for the complete MFSU (required equipment and supplies) and key personnel (unless reassigned enroute to/from an incident) to be kept during the defined Mandatory Availability Period (MAP) (see B.3 below and D.13 Exhibit 13. Definitions). A physical address within a 75-mile radius from the DDP City **(nearest airport code – not city center)** listed must be provided within 30 calendar days of task order award for each location awarded during phase 2 of this acquisition. For example, Boise, ID is a DDP in the Schedule of Items. Offeror "A" proposes to be located at 123 Hillcrest Lane, Caldwell, ID 83605 for this DDP. If Offeror "A" is determined to be the best value to the Government and awarded this line item; the DDP will be 123 Hillcrest Lane, Caldwell, ID 83605.

DDPs are established in the following locations:

(1) Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, Oregon, Utah, Washington, Wyoming.

(c) Contractor Key Personnel and required equipment and supplies shall be physically located and available to perform services at DP and/or DDP locations**: Key Personnel shall reside within 60-miles (1 hour) of the DP/DDP locations**. Offerors may propose a MFSU for multiple locations. Only one MFSU will be awarded at each DDP location listed below (no split locations). The Government may not award all DDP locations if it is not in the Government's best interest.

STATE	DDP CITY	RADIUS MILES	MANDATORY AVAILABILITY PERIOD	
Arizona	Flagstaff	75 Miles	April 01 – August 31	153 days
	Tucson	75 Miles	April 01 – June 30	91 days
California	Corona	75 Miles	May 01 – November 15	193 days
	Redding	75 Miles	June 01 – October 31	153 days
	Santa Maria	75 Miles	June 01 – October 31	153 days
	Fresno	75 Miles	May 01 – October 31	184 days
	Lancaster	75 Miles	May 01 – October 31	184 days
	Bakersfield	75 Miles	May 01 – October 31	184 days
Colorado	Grand Junction	75 Miles	May 01 – September 30	153 days
Idaho	Boise	75 Miles	June 01 – October 15	137 days
	Idaho Falls	75 Miles	June 01 – September 30	122 days
Montana	Billings	75 Miles	June 15 – September 30	108 days
	Butte	75 Miles	June 15 – September 30	108 days
	Missoula	75 Miles	June 15 – September 30	108 days
Nevada	Las Vegas	75 Miles	May 01 – October 31	184 days
	Reno	75 Miles	June 01 – October 31	153 days
	Elko	75 Miles	June 01 – October 31	153 days
New Mexico	Albuquerque	75 Miles	April 15 – June 30	77 days
	Farmington	75 Miles	April 15 – June 30	77 days
Oregon	Bend	75 Miles	June 15 – September 30	108 days
	Lakeview	75 Miles	June 15 – September 30	108 days
	Medford	75 Miles	June 15 – September 30	108 days
	Pendleton	75 Miles	June 15 – September 30	108 days
Utah	Kanab	75 Miles	May 15 – September 30	139 days
	Salt Lake City	75 Miles	June 01 – September 30	122 days
Washington	Goldendale	75 Miles	July 01 – September 30	92 days
	Okanogan	75 Miles	July 01 – September 30	92 days
	Wenatchee	75 Miles	July 01 – September 30	92 days
Wyoming	Lander	75 Miles	June 15 – September 30	108 days
	Cody	75 Miles	June 15 – September 30	108 days

(1) At the end of a contractor's MAP, the contractor must notify the CO and NICC whether the Unit will remain at the TO DDP or return to a company IDIQ DP.

(i) When out of MAP, all National MFSU TO DDP rates except for the MAP Daily Availability Rate remain in effect.

DDP locations will be solicited and awarded during Phase 2 of the acquisition: Do not submit DDP information at this time. Notice of Fair Opportunity (NFO) will be issued during Phase 2 only to vendors awarded a National MFSU "Parent" IDIQ during Phase 1.

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B.3 National MFSU TO DDP Mandatory Availability Periods (MAP)

Mandatory Availability Period (MAP). Period per DDP in which the MFSU and Contractor's key personnel must be physically located at the DDP available for dispatch.

(a) This does not apply to the National MFSU "Parent" IDIQs awarded during phase 1.

B.4 National MFSU "Parent" IDIQ and National MFSU TO DDP Pricing

Both National MFSU "Parent" IDIQ and National MFSU TO DDP Pricing will be submitted electronically via MS Forms.

(a) Offerors with a Microsoft 365 account can save and edit responses prior to submitting.

(b) National MFSU "Parent" IDIQ - DP - All Offerors are required to complete Section B.5 Schedule of Items – MFSU Item Details and Schedule of Prices for each MFSU offered for the base year and all option years. For Offerors proposing multiple MFSUs, please specify a unique MFSU Unit Number for each MFSU. *NOTE: this pricing will be utilized for priority three dispatches for the life of the contract if a unit is not awarded a National MFSU DDP TO.*

(c) National MFSU TO DDP - After IDIQ award, Awardees will be afforded fair opportunity to provide pricing for National MFSU TO DDPs and will complete a Notice of Fair Opportunity (NFO) Section B.6 Schedule of Items – MFSU Item Details and Schedule of Prices specific for each DDP offered for the base period and all option years.

(1) Contractors proposing a MFSU with the same price for multiple DDP locations shall submit the pricing information once, listing all DDP Cities (no State) (separated with comma, i.e., Flagstaff, Fresno, Billings) for which the same price applies.

(2) National MFSU TO DDP price request will be provided when the NFO is issued; in order to minimize confusion, the hard copy-view of the DDP B.6 Schedule of Items will not be provided until that time.

(3) MAP Daily Availability Rate - Designated Dispatch Point (DDP) task orders require the Contractor's key personnel, required equipment and supplies, and physical presence at the DDP (or other government assigned location) during a specified Mandatory Availability Period (MAP)**: key personnel shall reside within 60-miles (1 hour) of the DDP location**. The daily availability rate is paid for each day of the MAP (unless the contractor is in Unavailability Status) as compensation for providing mobile food services under contract for the Government.

(d) Priority Levels

(1) Task Order(s) will be competed for Designated Dispatch Point (DDP) requirement line item(s) which have a Mandatory Availability Period (MAP). The CO will use a scenario-based evaluation that considers price (Daily Availability Rate, Within MAP meal / equipment rates, and Outside MAP meal / equipment rates) to determine which MFSU is the best value to the Government at each DDP to make an award determination.

(2) Priority 1 Resources: Contractors Awarded Designated Dispatch Point (DDP) Task Order and Within the Mandatory Availability Period (MAP)

(i) During the MAP, the Contractor is considered "under hire" and the closest available resource is contacted to verify their ability to meet date and time needed and physical location (at DDP). If this MFSU is available to meet date and time needed, they will be dispatched to the incident. If this MFSU is

not available to meet date and time needed, then they are deemed ineligible and the next closest First Priority resource to the incident MFSU will be called. This process continues until all First Priority MFSUs have been evaluated.

(ii) DDP locations are identified based on historical need and strategically places MFSUs where resources are expected to be most utilized. Each time a Contractor receives a Priority 1 order, the Contractor will be provided with a Resource Order document by the NICC at the time of the order. Contractors must have the Resource Order to mobilize to the new work location.

(iii) NICC will maintain the status of these resources, and it is the Contractor's responsibility to report any changes in availability and/or position to NICC and the Contracting Officer in writing.

(2) Priority 2 Resources: Contractors Awarded Designated Dispatch Point (DDP) Task Order at DDP but Outside Mandatory Availability Period (MAP)

(i) When Priority 1 MFSUs are outside their MAP, they are considered a Priority 2 Resource. The CO has made a DDP best value award determination but outside the MAP this resource is not under direct operational authority and the resource location (at DDP or specified location) and Outside MAP meal / equipment rates are in effect. Once NICC receives an order, it is processed through WildNICC, a computer aided dispatch system, specifically designed to support this process. The Government will provide fair opportunity in accordance with FAR 16.505(b)(1)(ii) for these (Outside MAP) resource orders based on a two-tier geographic incident response table (within 450 miles and 450+ miles). The incident response increment of 450 miles from the incident allows for a vendor to arrive within a day after being ordered based on interagency incident driving guidelines.

(ii) If NICC reviews the CAD report and finds no MFSUs in the First Priority, then Second Priority resources will be considered. NICC will run the lowest price formula on Second Priority MFSUs located within 450 miles of the incident. The Second Priority MFSU with the lowest price will be called to verify their availability to meet date and time needed and physical location (at DDP or specified location). If this MFSU can meet date and time needed, they will be dispatched to the incident. If this MFSU is not able to meet date and time needed, they would be deemed ineligible and the next lowest price Second Priority MFSU will be called.

(iii) If all Second Priority MFSU resources within 450 miles are deemed ineligible, then NICC will run another lowest price formula on Second Priority MFSUs 450+ miles of the incident and repeat the lowest price selection process listed above until all Second Priority MFSU have been evaluated.

(iv) The Ordering Official following these stated procedures issues the MFSU a Resource Order which is the ordering document under Priority 2 resources and Contractors must have the Resource Order to mobilize to the new work location.

(v) NICC will maintain the status of these resources and it is the Contractor's responsibility to report any changes in availability and/or position to NICC and the CO in writing.

(3) Priority 3 Resources: Contractors Awarded National MFSU "Parent" IDIQ

(i) ~~As Needed~~ National MFSU TO DDP MFSUs will be ordered solely by the NICC. Once NICC receives an order, it is processed through WildNICC, a computer aided dispatch system, specifically designed to support this process. The Government will provide fair opportunity in accordance with FAR 16.505(b)(1)(ii) for these ~~As Needed~~ resource orders based on a two-tier geographic incident response table (within 450 miles and 450+ miles). The incident response increment of 450 miles from the incident allows for a vendor to arrive within a day after being ordered based on interagency incident driving guidelines.

(ii) If NICC reviews the CAD report and finds no MFSUs in the First Priority or Second Priority, then Third Priority resources will be considered. NICC will run the lowest price formula on Third Priority MFSUs located within 450 miles of the incident. The Third Priority MFSU with the lowest price will be called to verify their availability to meet date and time needed and physical location (at specified location). If this MFSU can meet date and time needed, they will be dispatched to the incident. If this MFSU is not able to meet date and time needed, they would be deemed ineligible and the next lowest price Third Priority MFSU will be called.

(iii) If all Third Priority MFSU resources within 450 miles are deemed ineligible, then NICC will run another lowest price formula on Third Priority MFSUs 450+ miles of the incident and repeat the lowest price selection process listed above until all Third Priority MFSU have been evaluated.

(iv) The Ordering Official following these stated procedures issues the MFSU a Resource Order (RO) which is the ordering document under Priority 3 resources and Contractors must have the Resource Order to mobilize to the new work location. A task order may be placed orally or electronically but will be confirmed in writing by the issuance of a Resource Order. Fire and project orders are subject to the ~~As Needed~~ **National MFSU TO DDP MFSU** ordering process to ensure the best value **lowest price** MFSU is assigned.

(v) NICC will maintain the status of these resources and it is the Contractor's responsibility to report any changes in availability and/or position to NICC and the Contracting Officer in writing **and via IROC**.

B.5 Schedule of Supplies/Services National MFSU "Parent" IDIQ Unit Summary

The Schedule of Items will populate the National Unit Summary for award. *B.5 will go into the award; B.6 is for solicitation purposes only.*

B.6 Schedule of Items is a hard-copy view of the electronic form that must be completed.

Contractor's Contact Information	Contract Number Key Personnel	Dispatch Points (DPs) Availability Dates (AD)	Kitchen Unit	Max. Meals /Period	Meal Type	Rate per Meal
Anytime Food, Inc. 1234 Anywhere Street City, ST 12345 **POC: _____.** p: e: **Handwashing Unit #-sinks:** **$ ___.__ /day** **Mileage Rate:** **$ ____.__ /mile** **Relocation Fee:** **$ ____.__** **Temporary Refrigeration Storage Space Rate (lnft):** **$ ___.__ /day** **Supplemental Tents and Seating Rate 50-persons:** **$ ___.__ /day** **Supplemental Hot Food Delivery Vehicle Rate:** **$ ___.__ /day**	**1202SC25T25xx** **MFS Unit Manager:** _____ **Kitchen Manager:** _____ **Assistant Kitchen Manager:** _____ **Supervisor Cook:** _____	**DP City, ST** 03/01 – 11/15 [Physical Address]	AFI-01	___ ___ ___ ___	Breakfast Cold Can Breakfast Shift Provision Dinner	$ ____.__ $ ____.__ $ ____.__

Kitchen Unit	Equipment Type and Unit ID No.	Other Equipment Types and Unit ID No.
AFI-01	Kitchen Trailer – Refrigeration Trailer – Handwashing Unit –	Sandwich Prep Trailer - Shift Provisions/Sack Luch Assembly Trailer – Salad Bar Trailer (if applicable) – Hot Food Delivery Vehicle (if applicable) –

NATIONAL MFSU "PARENT" IDIQ UNIT SUMMARY – CONTINUED

SUPPLEMENTAL FOODS AND BEVERAGES, REFRIGERATION STORAGE SPACE AND TENTS/SEATING

(OPTIONAL, See C.5.1(h),(i),(j) & D.1.6(a)(9))

Contractor: Anytime Food, Inc.

Supplemental Item	Unit	Unit Price
Beverages		
Bottled Sports Type Drink, i.e. Gatorade®, Powerade®, etc.	ounce	-
Brewed Coffee (outside of incident dining area)	gallon	-
Hot Chocolate (outside of incident dining area)	gallon	-
Tea, Iced or Hot (outside of incident dining area)	gallon	-
Bottled Water (commercially available)	ounce	-
Other Food Items		
Ice	pound	-
Ground Coffee	pound	-
Sandwiches – meat	each	-
Sandwiches – non-meat	each	-
Soup	gallon	-
Temporary Refrigeration Storage Space and Additional Tents/Seating and Hot Food Delivery Vehicle		
Temporary Refrigeration Storage Space /per linear foot	linear foot /day	-
Supplemental Tents & Seating Rate /per 50 Persons	rate /day	-
Hot Food Delivery Vehicle	rate /day	-

Note: Other items not specifically listed and priced above may not be negotiated on site by the Food Unit Leader. (See C.5.1 (c)and (f))

B.6 Schedule of Items is a hard-copy view of the electronic form that must be completed.
It will populate the B.5 Unit Summary for award.

B.6 Schedule of Items – National MFSU "Parent" IDIQ Item Detail & Price Schedule

THIS is a hard copy of the MS Form (https://forms.office.com/g/NPmWSYd30T) that must be completed.

The Schedule of Items will populate B.5 Unit Summary for award.

Complete a separate Schedule of Items and MFSU Number for each MFSU offered.

A Contract Line-Item Number (CLIN) will be established for each National MFSU included in the IDIQ.

Complete the MFSU company information (a-c), unit details (d), equipment details (e) and provide 2025-29 pricing (f) below for each unit you have to offer for the National MFSU "Parent" IDIQ.

(a) **Company Name**: _____

National MFSU "Parent" Unit Physical Location (address, not PO Box): _____

POC:_____ Phone: _____ Email: _____

(b) **National MFSU "Parent" Unit Number (Kit-01 / K-727 / etc.) [unique ID number]**: _____

(c) **24-Hour Contact Telephone Number for Dispatch (if different than Company POC)**

POC:_____ Phone: _____ Email: _____

(d) **MFSU "Parent" Unit Details:**

MFS Unit Manager: _____ Phone: _____

ServSafe® Food Manager Certificate submitted _____

Kitchen Manager: _____ Phone: _____

ServSafe® Food Manager Certificate submitted _____

Assistant Kitchen Manager: _____ Phone: _____

ServSafe® Food Manager Certificate submitted _____

Supervisor Cook: _____

ServSafe® Food Manager Certificate submitted _____

All Food Handlers: Minimum ServSafe® Food Handlers course completed _____

Maximum Number of Breakfasts per Meal Period	_____ /period
Maximum Number of Shift Provisions per Meal Period	_____ /period
Maximum Number of Dinners per Meal Period	_____ /period

(e) **National MFSU "Parent" Equipment Details**:

EQUIPMENT TYPE		VIN	ID NUMBER (K01/R22/etc.)
All equipment (trailers, refers, etc.) comprising the "MFSU" ***must*** have VINs and IDs and listed here.			
Kitchen Trailer			
Refrigeration/Freezer Trailer			
Handwash Unit	#-sinks (min. 8)		
Sandwich Prep Trailer			
Shift Provisions Assembly Trailer (if applicable)			
Salad Bar Trailer (if applicable)			
Hot Food Delivery Vehicle (if applicable)			

National MFSU "Parent" IDIQ Schedule of Prices - When proposing your base period (CY25) and option years 1 (CY26) through 4 (CY29) prices in section (f), please multiply the Price Per Unit by the Total Estimated Quantities shown to determine the Total Evaluated Amount. Please note, the price evaluation for the FAR 52.217-8, Option to Extend Services (OES) will be calculated at 50% of the Total Evaluated Amount for OY4 to evaluate the additional 6 months of performance through June 30, 2030.

The Total Estimated Quantities shown are for price evaluation purposes only. Offerors will not submit the Total Evaluated Amount via MS Forms; this information is for Offerors records.

Prices proposed for Sub Items **X**01 – **X**07 (for all years) will be evaluated to determine prices are fair and reasonable. Supplemental Items **X**10 – **X**22 (for all years) are **optional** items and are not required to be proposed. Supplemental Items will not be used for the price evaluation for contract award but will be evaluated for fair and reasonableness; prices not found fair and reasonable will not be included in contract award. The Government reserves the right to not order Supplemental Items at any time.

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(f) **National MFSU Parent" IDIQ MFSU 2025-2029 Unit pricing**:

LINE 0001 – National MFSU "Parent" IDIQ (Base Period – Date of Award – December 31, 2025)

SUB ITEM	ITEM DESCRIPTION		UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL EVALUATED AMOUNT
1**01**	Hand Washing Unit Rate	#-sinks (min. 8)	Day	$	10	$
1**02**	Mileage Rate		Mile	$	600	$
1**03**	Breakfast Rate		Meal	$	5,000	$
1**04**	Cold Can Breakfast Rate		Meal	$	500	$
1**05**	Shift Provision Rate		Meal	$	7,000	$
1**06**	Dinner Rate		Meal	$	5,000	$
107	*Relocation Fee (only for in-incident moves)*		*Move*	*$*	*1*	*$*
					Total Evaluated Value	$

SUPPLEMENTAL ITEMS

Fill out the prices for the following **optional** Supplemental Items that your company may wish to supply. Supplemental Item prices offered will not be included in the Total Evaluated Price calculation specified in Section E.3.3. Supplemental Item prices that are determined fair and reasonable will be incorporated into awarded contracts.

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL AMOUNT
1**10**	Bottled Sports Type Drink, i.e. Gatorade®, etc.	Ounce	$	19,200	$
1**11**	Brewed Coffee (outside incident dining area)	Gallon	$	80	$
1**12**	Hot Chocolate (outside incident dining area)	Gallon	$	1	$
1**13**	Tea, Iced or Hot (outside incident dining area)	Gallon	$	1	$
1**14**	Bottled Water (commercially available)	Ounce	$	38,400	$
1**15**	Ice	Pound	$	500	$
1**16**	Ground Coffee	Pound	$	10	$
1**17**	Sandwiches – meat	Each	$	250	$
1**18**	Sandwiches – non-meat	Each	$	100	$
1**19**	Soup	Gallon	$	1	$
1**20**	Temporary Refrigeration (1 linear foot)	Day	$	4	$
1**21**	Optional Tents & Seating	50 people/ day	$	10	$
1**22**	Hot Food Delivery Vehicle	Day	$	1	$

Note: The prices proposed on this form shall apply to the specific MFSU designated above. The Total Estimated Quantities are estimated quantities to be used for evaluation purposes only (See Section E.3.3 Evaluation Factors for Award, for additional information).

LINE 0002 – National MFSU "Parent" IDIQ (Option Year 1 – January 1, 2026 – December 31, 2026)

SUB ITEM	ITEM DESCRIPTION		UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL EVALUATED AMOUNT
2**01**	Hand Washing Unit Rate	#-sinks (min. 8)	Day	$	10	$
2**02**	Mileage Rate		Mile	$	-	$
2**03**	Breakfast Rate		Meal	$	5,000	$
2**04**	Cold Can Breakfast Rate		Meal	$	500	$
2**05**	Shift Provision Rate		Meal	$	7,000	$
2**06**	Dinner Rate		Meal	$	5,000	$
207	*Relocation Fee (only for in-incident moves)*		*Move*	*$*	*1*	*$*
					Total Evaluated Value	$

SUPPLEMENTAL ITEMS

Fill out the prices for the following **optional** Supplemental Items that your company may wish to supply. Supplemental Item prices offered will not be included in the Total Evaluated Price calculation specified in Section E.3.3. Supplemental Item prices that are determined fair and reasonable will be incorporated into awarded contracts.

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL AMOUNT
2**10**	Bottled Sports Type Drink, i.e. Gatorade®, etc.	Ounce	$	19,200	$
2**11**	Brewed Coffee (outside incident dining area)	Gallon	$	80	$
2**12**	Hot Chocolate (outside incident dining area)	Gallon	$	1	$
2**13**	Tea, Iced or Hot (outside incident dining area)	Gallon	$	1	$
2**14**	Bottled Water (commercially available)	Ounce	$	38,400	$
2**15**	Ice	Pound	$	500	$
2**16**	Ground Coffee	Pound	$	10	$
2**17**	Sandwiches – meat	Each	$	250	$
2**18**	Sandwiches – non-meat	Each	$	100	$
2**19**	Soup	Gallon	$	1	$
2**20**	Temporary Refrigeration (1 linear foot)	Day	$	4	$
2**21**	Optional Tents & Seating	200 people/ day	$	10	$
2**22**	Hot Food Delivery Vehicle	Day	$	1	$

Note: The prices proposed on this form shall apply to the specific MFSU designated above. The Total Estimated Quantities are estimated quantities to be used for evaluation purposes only (See Section E.3.3 Evaluation Factors for Award, for additional information).

LINE 0003 - National MFSU "Parent" IDIQ (Option Year 2 - January 1, 2027 – December 31, 2027)

SUB ITEM	ITEM DESCRIPTION		UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL EVALUATED AMOUNT
3**01**	Hand Washing Unit Rate	#-sinks (min. 8)	Day	$	10	$
3**02**	Mileage Rate		Mile	$	-	$
3**03**	Breakfast Rate		Meal	$	5,000	$
3**04**	Cold Can Breakfast Rate		Meal	$	500	$
3**05**	Shift Provision Rate		Meal	$	7,000	$
3**06**	Dinner Rate		Meal	$	5,000	$
307	*Relocation Fee (only for in-incident moves)*		*Move*	*$*	*1*	*$*
					Total Evaluated Value	$

SUPPLEMENTAL ITEMS

Fill out the prices for the following **optional** Supplemental Items that your company may wish to supply. Supplemental Item prices offered will not be included in the Total Evaluated Price calculation specified in Section E.3.3. Supplemental Item prices that are determined fair and reasonable will be incorporated into awarded contracts.

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL AMOUNT
3**10**	Bottled Sports Type Drink, i.e. Gatorade®, etc.	Ounce	$	19,200	$
3**11**	Brewed Coffee (outside incident dining area)	Gallon	$	80	$
3**12**	Hot Chocolate (outside incident dining area)	Gallon	$	1	$
3**13**	Tea, Iced or Hot (outside incident dining area)	Gallon	$	1	$
3**14**	Bottled Water (commercially available)	Ounce	$	38,400	$
3**15**	Ice	Pound	$	500	$
3**16**	Ground Coffee	Pound	$	10	$
3**17**	Sandwiches – meat	Each	$	250	$
3**18**	Sandwiches – non-meat	Each	$	100	$
3**19**	Soup	Gallon	$	1	$
3**20**	Optional Refrigeration (1 linear foot)	Day	$	4	$
3**21**	Additional Tents & Seating	200 people/ day	$	10	$
3**22**	Hot Food Delivery Vehicle	Day	$	1	$

Note: The prices proposed on this form shall apply to the specific MFSU designated above. The Total Estimated Quantities are estimated quantities to be used for evaluation purposes only (See Section E.3.3 Evaluation Factors for Award, for additional information).

LINE 0004 - National MFSU "Parent" IDIQ (Option Year 3 - January 1, 2028 – December 31, 2028)

SUB ITEM	ITEM DESCRIPTION		UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL EVALUATED AMOUNT
401	Hand Washing Unit Rate	#-sinks (min. 8)	Day	$	10	$
402	Mileage Rate		Mile	$	-	$
403	Breakfast Rate		Meal	$	5,000	$
404	Cold Can Breakfast Rate		Meal	$	500	$
405	Shift Provision Rate		Meal	$	7,000	$
406	Dinner Rate		Meal	$	5,000	$
407	*Relocation Fee (only for in-incident moves)*		*Move*	*$*	*1*	*$*
					Total Evaluated Value	$

SUPPLEMENTAL ITEMS

Fill out the prices for the following **optional** Supplemental Items that your company may wish to supply. Supplemental Item prices offered will not be included in the Total Evaluated Price calculation specified in Section E.3.3. Supplemental Item prices that are determined fair and reasonable will be incorporated into awarded contracts.

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL AMOUNT
410	Bottled Sports Type Drink, i.e. Gatorade®, etc.	Ounce	$	19,200	$
411	Brewed Coffee (outside incident dining area)	Gallon	$	80	$
412	Hot Chocolate (outside incident dining area)	Gallon	$	1	$
413	Tea, Iced or Hot (outside incident dining area)	Gallon	$	1	$
414	Bottled Water (commercially available)	Ounce	$	38,400	$
415	Ice	Pound	$	500	$
416	Ground Coffee	Pound	$	10	$
417	Sandwiches – meat	Each	$	250	$
418	Sandwiches – non-meat	Each	$	100	$
419	Soup	Gallon	$	1	$
420	Temporary Refrigeration (1 linear foot)	Day	$	4	$
421	Optional Tents & Seating	200 people/ day	$	10	$
422	Hot Food Delivery Vehicle	Day	$	1	$

Note: The prices proposed on this form shall apply to the specific MFSU designated above. The Total Estimated Quantities are estimated quantities to be used for evaluation purposes only (See Section E.3.3 Evaluation Factors for Award, for additional information).

LINE 0005 - National MFSU "Parent" IDIQ (Option Year 4 – January 1, 2029 – December 31, 2029)

SUB ITEM	ITEM DESCRIPTION		UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL EVALUATED AMOUNT
5**01**	Hand Washing Unit Rate	#-sinks (min. 8)	Day	$	10	$
5**02**	Mileage Rate		Mile	$	-	$
5**03**	Breakfast Rate		Meal	$	5,000	$
5**04**	Cold Can Breakfast Rate		Meal	$	500	$
5**05**	Shift Provision Rate		Meal	$	7,000	$
5**06**	Dinner Rate		Meal	$	5,000	$
507	*Relocation Fee (only for in-incident moves)*		*Move*	*$*	*1*	*$*
					Total Evaluated Value	$

SUPPLEMENTAL ITEMS

Fill out the prices for the following **optional** Supplemental Items that your company may wish to supply. Supplemental Item prices offered will not be included in the Total Evaluated Price calculation specified in Section E.3.3. Supplemental Item prices that are determined fair and reasonable will be incorporated into awarded contracts.

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL ESTIMATED QUANTITIES	TOTAL AMOUNT
5**10**	Bottled Sports Type Drink, i.e. Gatorade®, etc.	Ounce	$	19,200	$
5**11**	Brewed Coffee (outside incident dining area)	Gallon	$	80	$
5**12**	Hot Chocolate (outside incident dining area)	Gallon	$	1	$
5**13**	Tea, Iced or Hot (outside incident dining area)	Gallon	$	1	$
5**14**	Bottled Water (commercially available)	Ounce	$	38,400	$
5**15**	Ice	Pound	$	500	$
5**16**	Ground Coffee	Pound	$	10	$
5**17**	Sandwiches – meat	Each	$	250	$
5**18**	Sandwiches – non-meat	Each	$	100	$
5**19**	Soup	Gallon	$	1	$
5**20**	Temporary Refrigeration (1 linear foot)	Day	$	4	$
5**21**	Optional Tents & Seating	200 people/ day	$	10	$
5**22**	Hot Food Delivery Vehicle	Day	$	1	$

Note: The prices proposed on this form shall apply to the specific MFSU designated above. The Total Estimated Quantities are estimated quantities to be used for evaluation purposes only (See Section E.3.3 Evaluation Factors for Award, for additional information). Please note Line 500 prices will be calculated at 50% of the Total Evaluated Amount to evaluate the additional 6 months of performance to account for Option to Extend Services, (OES), through June 30, 2030.

C. CONTRACT CLAUSES – NATIONAL MFSU IDIQ TERMS AND CONDITIONS

The terms and conditions of Solicitation 1202SC24R2100 shall be incorporated into any resultant contract; these terms and conditions shall be incorporated by reference into any subsequent Task Order(s).

C.1 Federal Acquisition Regulation (FAR) - Clauses Incorporated by Reference (IBR) & Authorized Deviations

C.1.1 52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR: https://www.acquisition.gov/browse/index/far AGAR: https://www.acquisition.gov/agar

Applicable Federal Acquisition Regulation (FAR) Clauses – Incorporated by Reference

FAR Cite	Title	Date
52.202-1	Definitions	Sep 2023
52.203-3	Gratuities	Apr 1984
52.204-13	System for Award Management Maintenance	Oct 2018
52.204-18	Commercial and Government Entity Code Maintenance	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	Dec 2014
52.212-4	Contract Terms & Conditions—Commercial Products and Commercial Services	Nov 2023
52.216-32	Task-Order and Delivery-Order Ombudsman, Alt. I (*Inserted "Chief, Compliance and Oversight Branch" sm.fs.pps_cando@usda.gov in paragraph (a))*	Sep 2019
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts	May 2024
52.232-18	Availability of Funds	Apr 1984
52.232-19	Availability of Funds for Next Fiscal Year	Apr 1984
52.242-15	Stop-Work Oder	Aug 1989
52.242-17	Government Delay of Work	Apr 1984
52.245-1	Government Property	Sep 2021
52.245-9	Use and Charges	Apr 2012
52.246-4	Inspection of Service-Fixed-Price	Aug 1996

(End of clause)

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C.1.2 52.252-6 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Agriculture Acquisition Regulations (48 CFR Chapter 4) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation. The full text of a deviation may be accessed electronically at this/these address(es):

FAR:
https://usdagcc.sharepoint.com/sites/USDAAcquisitionWorkforce/Shared%20Documents/Forms/AllItems.aspx?newTargetListUrl=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents&viewpath=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FForms%2FAllItems%2Easpx&id=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FProcurement%20Policy%20Templates%2FOCP%20PPD%2FPolicy%20and%20Regulations%2FFAR%20Class%20Deviations&viewid=9aeee97d%2D3da2%2D4106%2Dbcff%2Dfce647be820c

AGAR:
https://usdagcc.sharepoint.com/sites/USDAAcquisitionWorkforce/Shared%20Documents/Forms/AllItems.aspx?newTargetListUrl=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents&viewpath=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FForms%2FAllItems%2Easpx&id=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FProcurement%20Policy%20Templates%2FOCP%20PPD%2FPolicy%20and%20Regulations%2FAGAR%20Class%20Deviations&viewid=9aeee97d%2D3da2%2D4106%2Dbcff%2Dfce647be820c

(End of clause)

C.2 Federal Acquisition Regulation (FAR) Clauses - Full Text & Addenda

C.2.1 Addenda to FAR 52.212-4 Contract Terms & Conditions--Commercial Products and Commercial Services

(a) *Inspection/Acceptance*

(1) Each year, prior to use, the Government may conduct pre-use inspections of all Contractor equipment for compliance with the contract specifications and conditions. The Government may terminate contracts that provide MFSU's that do not meet minimum equipment requirements.

(2) At any time during use, the Government may make or cause to be made such inspections as deemed necessary for the purpose of determining that equipment, supplies and personnel meet current contract specifications or to determine equipment condition. Reference Attachment D.1.4 Performance Requirement Summary. Inspection may be performed by Federal and State Government representatives such as the COR, LSC or FACL, as designated by the CO. Inspection results will be documented on the Mobile Food Service Unit Inspection Form located in Section D. A copy of the completed form will be provided to the CO.

(3) Inspection by the Government after performance deficiencies or a failure has occurred will be made as promptly as possible after the Contractor has given notice

that the performance deficiencies or the failure has been corrected. Inspection results will be documented on the MFS Unit Inspection Form located in Section D.

(4) When equipment and services are inspected and do not meet contract requirements, the LSC, FDUL or COR shall document deficiencies on form FS 6300-12, Work Order and Notice of Non-Compliance. When appropriate, contract price reductions shall be taken in accordance with the contract (see D.1.9). The CO shall make final decisions on any remedial actions implemented ~~or erroneous payments approved~~ by LSC, FACL or COR as appropriate.

(g) *Invoice*.

(1) In accordance with Custom Clause #1, when billing procedures provide for an individual invoice for each delivery, these invoices shall be accumulated, provided that-

(i) A consolidated payment will be made for each specified period; and

(ii) The period of any discounts will commence on the final date of the billing period or on the date of receipt of invoices for all deliveries accepted during the billing period, whichever is later

(2) Daily invoices shall be accumulated and submitted for payment at regular intervals. These intervals are at a minimum of 7 days but should not exceed 14 days. *LEND-LEASE Daily invoices shall be accumulated and submitted for payment at a minimum of 3 days but should not exceed 7 days.* Please contact the Contracting Officer to determine any other intervals for submitting invoices.

(i) The contractor shall utilize the provided blank Daily sheets (S1-S14) (see D.5 Exhibit 5B for instructions) to input the signed DAILY MEAL ORDER/INVOICE – MOBILE FOOD SERVICES (INVOICE) (see D.5 Exhibits 5 and 5A) totals for each day in the invoice package. The Summary tab will total all the items from each day to create a Summary Sheet to be submitted for payment. *There is a separate invoice workbook for lend-lease use* (see D.5 Exhibit 5C for instructions).

(ii) The signed INVOICE (D.5 Exhibits 5 and 5A) must be provided with the daily invoice sheet as a .pdf, as evidence of the Government's acceptance of the services provided.

(iii) Any recommended deductions by a government representative *must* be approved by the contract COR and/or contract CO.

(iv) The areas in green are the only areas where the Contractor may input data. The other areas of each Daily or Summary sheet are protected as they contain the formulas to calculate the item and daily totals. The bottom total in the orange box is the total to be invoiced for each day and the Payment Total on the Summary sheet.

(v) The Contractor is required to email the Summary sheet including all Daily sheets and all supporting signed Daily Meal Records to ASC at sm.fs.asc_eera@usda.gov to be processed for payment.

(i) *Payment*.

(a) Payment for Meals –

(1) General

(i) Prior to the Contractor departing for an incident, the Government may cancel or reduce the number of meals for the first meal period and be liable for only the reduced number of meals.

(ii) Once the Contractor has departed for an incident, the Government may still cancel or reduce the number of meals, but the Government shall be liable for the number of meals ordered up to the time of departure, not the reduced number ordered after departure, for the first meal.

(iii) Individual meals served shall be counted and totaled at the end of each meal period (i.e., at the end of the breakfast meal period, at the end of the dinner meal period, etc.). The total count is verified in writing by the Government in Block 14 on Form 1276-A DAILY MEAL ORDER/INVOCE (INVOICE) and paid at the rates offered in the Contractor's current Unit Summary.

(iv) Incident personnel not satisfied with the meat portion of their meal may return it for replacement at no additional price to the Government.

(v) For payment purposes, the Contractor shall invoice Shift Provisions on the same day that the Shift Provisions are delivered to the Government.

(2) Minimum Cancellation Enroute Guarantee

Before any Meals are Served - In the event an order is cancelled enroute before any meals are served, the Contractor shall be paid for the number of meals ordered for the first meal plus mileage, if applicable. Beginning and ending odometer readings shall be documented in Block 28 Remarks on the INVOICE.

(i) Payment for Three or Less Meals - Once serving has begun the Contractor will be paid 100% of the initial meals ordered for the first 3 meals (meal periods) or the number of meals actually served, whichever is greater.

Exceptions - If the Contractor's late arrival causes meals to be missed, the Contractor shall only be paid for the number of meals served.

(ii) The Government may obtain meals from another source if the Contractor's late arrival results in meal periods being missed. See above for additional details pursuant when a Contractor does not meet the actual agreed upon date/time of first meal on the Mobile Food Service Request form.

(iii) If the Government causes the Contractor's late arrival, no reduction in the minimum payment guarantee will be made.

(iv) Excluding the first and last day of an incident the Government will provide a minimum daily payment guarantee of $12,000 per MFSU or the total

quantities of meals provided, whichever is greater. The $12,000 minimum payment guarantee only applies towards the total number of meals provided from each complete MFSU. This minimum daily payment guarantee is provided in the event the numbers go below 200 and the Government still has a mobile food services requirement.

(3) Payment for Meals Beginning with the Fourth Meal (Meal Period)

The Contractor will be paid as follows beginning with the fourth meal served:

(i) Hot Meals

The Contractor shall be paid for the number of meals actually served or 100% of the number of meals ordered, whichever is greater, at the rates specified in the Contractor's current Unit Summary. No payment shall be made for the number of meals cancelled four (4) hours in advance of serving time.

(ii) Shift Provisions

Payment shall be made for the number of complete Shift Provisions the Government actually takes possession of or the number of complete Shift Provisions prepared prior to cancellation or reduction of an order (whichever is greater) at the rates specified in the Contractor's current Unit Summary.

(b) Payment for Mileage –

(1) For mileage payment purposes, actual mileage shall be measured from the location of the Contractor's MFSU at time of dispatch to the incident and return to DDP or pre-specified location, using verified written Contractor odometer readings. Beginning and ending odometer readings shall be documented in Block 28 Remarks on the INVOICE.

(2) Only actual mileage for transporting the MFSU (including all equipment, materials, supplies and personnel to support the operation) to and from the incident shall be paid at the rates specified in Contractor's current Unit Summary. Additional mileage rates shall not be paid for getting supplies, bringing additional support equipment or making repairs on the MFSU while performing at an incident.

(3) If an order for a MFSU is canceled before any meals are served, the Contractor shall be paid for actual mileage incurred, if applicable, at the rates specified in Contractor's current Unit Summary. The actual mileage shall be measured using verified written Contractor odometer readings. Beginning and ending odometer readings shall be documented in Block 28 Remarks on the Daily Meal Order/Invoice, (Exhibit D.5). Cancellation shall be documented in Block 28 Remarks on the INVOICE.

(4) The Government shall use Google Maps® or government determined mapping application when Google Maps® is inoperable, to verify the reasonableness of any mileage billed.

(c) Supplemental Items –

(1) Supplemental items shall be ordered, itemized, inventoried, and accepted by the Government. All items shall be recorded in Block 31 on the INVOICE (Continuation Sheet), (Form 1276-B (03/2014) – found in Exhibit D.5A of this solicitation).

(2) Payment shall be made for those items ordered and approved by the FDUL and itemized on the INVOICE (Continuation Sheet), at the rates specified in the Contractor's current Unit Summary.

(3) No price increases or purchase of items not shown in the Supplemental Item list shall be negotiated or approved by the FDUL, LSC or COR.

(4) Temporary Refrigeration Storage Space - The daily usage rate for temporary refrigeration storage space for use by the Government in the MFSU, shall be paid at the rate in the Contractor's current Unit Summary.

(5) Supplemental Tents/Seating - Supplemental tents/seating shall be paid at the rates specified in the Contractor's current Unit Summary. Payment for partial days shall be made at one-half the daily rate when service is provided for 8 hours or less, on the first and last day of the Incident. A full day of usage will be paid when services are performed beyond 12:00 noon.

(6) Supplemental Hot Food Delivery Vehicle – Supplemental delivery vehicle shall be paid at the rates specified in the Contractor's current Unit Summary. This is a Point-of-Hire (POH) item.

(d) Relocation Fee - Each additional setup/takedown of a MFSU, as specified in the PWS shall be paid at the relocation fee rate specified in Contractor's current Unit Summary. Actual mileage incurred due to the relocation shall be measured by verification of Contractor's written odometer readings. Beginning and ending odometer readings shall be documented in the remarks block on the INVOICE.

(e) Hand Washing Stations - Payment for partial days shall be made at one-half the daily rate when service is provided for 8 hours or less, on the first or last day of the incident. Any release prior to noon on the last day of service will be paid one-half of the daily rate. If the Contractor's gray water does not get pumped until after twelve noon on the last day, a full day of usage will be paid.

(f) Miscellaneous Charges and Credits –

(1) Equipment Repair, Supplies and Fuel - Any costs incurred by the Government in repairing the Contractor's equipment and/or providing Government furnished supplies/fuel to the Contractor shall be deducted from payments due to the Contractor on a daily basis on Form 1276-B INVOICE (Continuation Sheet) unless payment is paid directly to the Vendor by the Contractor via a credit card.

(2) Licenses, Fees, and Permits - Contractors are responsible for all licenses, fees, and permits needed to perform work under this contract. However, when an MFSU is dispatched outside the state of their National MFSU "Parent" IDIQ DP or National MFSU TO DDP, the following shall apply:

(i) Any additional licenses, fees and permits shall be reimbursed based on actual receipts received and documented on 1276-B.

(ii) Payment shall be limited to those vehicles that comprise the MFSU as specified in the Contractor's current Unit Summary.

(3) Potable Water Testing Fees - The Contractor shall be responsible for fees associated for potable water testing upon arrival at the incident and once every 30 days afterwards. The Contractor shall be responsible for performing and paying for these routine tests. The Government will reimburse the Contractor for testing whenever switching to a different Government provided potable water source or whenever local health authorities or a government representative request testing more than once every 30 days. The INVOICE shall clearly document any fees in Block 32 when the Government is reimbursing the Contractor for testing.

(g) All fees for the MFSU such as meal charges, daily usage, relocation, mileage, optional equipment and miscellaneous charges or credits will be documented on the INVOICE. The Contractor shall certify on the last invoice of an incident that all miscellaneous charges and credits have been accounted for and documented on Contractor's invoices prior to leaving each incident.

(h) When ordered, temporary refrigerated storage space for Government use, supplemental tents and seating, and supplemental hot food delivery vehicle shall be documented in Block 31 of the INVOICE under Miscellaneous Charges and Credits and paid at the rates specified in the Contractor's current Unit Summary.

(i) Supplemental Item totals shall be documented in Block 31 of the INVOICE and paid at the rates specified in the Contractor's current Unit Summary.

(j) Any additional credits or deductions shall be documented in Block 32 of the INVOICE with clear explanations in the remark's blocks.

(1) Any performance deductions must be discussed and approved by the contract COR and/or contract CO.

(k) The Contractor and designated Government representative must sign their names on the fully completed INVOICE certifying the work was completed by the Contractor and accepted by the designated Government representative. The Government representative shall include title, work address and reliable phone number for any questions that may arise during review, and the Contractor shall include title and phone number. Invoices not signed by the Contractor and Government representative will not be paid.

(l) Incident invoices shall be dispersed as follows:

(1) The completed and signed invoices must include all necessary supporting documentation and shall be emailed to sm.FS.ASC_eera@usda.gov by the Contractor. Each email shall include:

(i) Contractor's contract number and name of the incident.

(ii) List of all attached documents to the email.

(iii) Signed, unique numbered invoice (to ensure each invoice is only submitted and paid once) for each invoice.

(iv) Dates of performance included on the attached invoice(s).

(v) All supporting documentation including the invoice workbook.

(2) The invoices sent to the email address will be processed by the USDA, Forest Service Albuquerque Service Center (ASC) for payment.

(3) The Contractor shall keep a copy of all submitted invoice packages for their personal records.

(4) The FDUL shall keep a copy of all submitted invoice packages for their personal records.

(5) The Finance Section Chief shall keep a copy of all submitted invoice packages for their incident files.

(m) No payment shall be made under this contract for supplies or services not shown and priced in the Contractor's current Unit Summary.

MAP Daily Availability Rate invoices for National MFSU DDP TOs shall be dispersed as follows:

(1) The completed and signed company or commercial invoices **will be submitted monthly at the end of the month and** must include all necessary supporting documentation and shall be submitted in IPP (www.ipp.gov) by the Contractor. Each invoice shall include:

(i) Contractor's contract number.

(ii) Signed, unique numbered invoice (to ensure each invoice is only submitted and paid once) for each invoice.

(iii) Dates of MAP performance included on the attached invoice(s) and all supporting documentation including the invoice workbook.

(2) The Contractor shall keep a copy of all submitted invoice packages for their personal records.

Payment shall be made upon receipt of proper and completed invoices in accordance with the payment terms in this contract and paid in accordance with the Prompt Payment Act.

(End of FAR 52.212-4 addenda)

C.2.2 52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders--Commercial Products and Commercial Services (Jan 2025) (DEVIATION DEC 2023, FEB 2025)

Federal Acquisition Regulation (FAR) Clauses

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

#	FAR Cite	Title	Date
(1)	52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	Jan 2017
(2)	52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities	Dec 2023
(3)	52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	Nov 2021
(4)	52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	Nov 2015
(5)	52.232-40	Providing Accelerated Payments to Small Business Subcontractors (31 U.S.C.3903 and 10 U.S.C. 3801)	Mar 2023
(6)	52.233-3	Protest After Award (31 USC 3553)	Aug 1996
(7)	52.233-4	Applicable Law for Breach of Contract Claim (PL 108-77, 108-78 (19 USC 3805 note))	Oct 2004

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
✓	(1)	52.203-6	Restrictions on Subcontractor Sales to the Government, with Alternate I (41 U.S.C. 4704 and 10 U.S.C. 4655)	Jun 2020 w/Alt I (Nov 2021)
✓	(2)	52.203-13	Contractor Code of Business Ethics and Conduct (41 U.S.C. 3509)	Nov 2021
	(3)	52.203-15	Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Section 1553 of Pub L. 111-5) (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009)	Jun 2010

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
✓	(4)	52.203-17	Contractor Employee Whistleblower Rights (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a)	Nov 2023
✓	(5)	52.204-10	Reporting Executive compensation and First-Tier Subcontract Awards (Pub. L. 109-282) (31 U.S.C. 6101 note)	Jun 2020
	(6)	[Reserved]		
	(7)	52.204-14	Service Contract Reporting Requirements (Pub. L. 111-117, section 743 of Div. C)	Oct 2016
✓	(8)	52.204-15	Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Pub. L. 111-117, section 743 of Div. C)	Oct 2016
✓	(9)	52.204-27	Prohibition on a ByteDance Covered Application (Section 102 of Division R of Pub L 117-328)	Jun 2023
	(10)	52.204-28	Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Pub. L. 115–390, title II)	Dec 2023
	(11)	52.204-30	Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Pub. L. 115–390, title II)	Dec 2023
		(ii) Alternate I	of 52.204-30	Dec 2023
✓	(12)	52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment, or Voluntarily Excluded. (31 U.S.C. 6101 note)	Jan 2025
✓	(13)	52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters (41 U.S.C. 2313)	Oct 2018
	(14)	[Reserved]		
	(15)	(i) 52.219-3	Notice of HUBZone Set-Aside or Sole-Source Award (15 U.S.C. 657a)	Oct 2022

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
	(16)	(i) 52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a)	Oct 2022
	(17)	[Reserved]		
✓	(18)	(i) 52.219-6	Notice of Total Small Business Aside (15 U.S.C. 644)	Nov 2020
		(ii) Alternate I	of 52.219-9	Mar 2020
	(19)	(i) 52.219-7	Notice of Partial Small Business Set-Aside (15 U.S.C. 644)	Nov 2020
		(ii) Alternate I	of 52.219-7	Mar 2020
✓	(20)	52.219-8	Utilization of Small Business Concerns (15 U.S.C. 637(d)(2) and (3))	Jan 2025
	(21)	(i) 52.219-9	Small Business Subcontracting Plan (15 U.S.C. 637 (d)(4))	Jan 2025
		(ii) Alternate I	of 52.219-9	Nov 2016
		(iii) Alternate II	of 52.219-9	Nov 2016
		(iv) Alternate III	of 52.219-9	Jun 2020
		(v) Alternate IV	of 52.219-9	Jan 2025
✓	(22)	(i) 52.219-13	Notice of Set-Aside of Orders (15 U.S.C. 644(r))	Mar 2020
		(ii) Alternate I	of 52.219-13	Mar 2020
✓	(23)	52.219-14	Limitations on Subcontracting (15 U.S.C. 637s)	Oct 2022
	(24)	52.219-16	Liquidated Damages—Subcontracting Plan (15 U.S.C. 637(d)(4)(F)(i))	Sep 2021

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
	(25)	52.219-27	Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (DEVIATION DEC 2023) (15 U.S.C. 657f)	Feb 2024
✓	(26)	(i) 52.219-28	Postaward Small Business Program Representation (15 U.S.C. 632(a)(2))	Jan 2025
		(ii) Alternate I	of 52.219-28	Mar 2020
	(27)	52.219-29	Notice of Set-Aside for, or Sole Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (15 U.S.C. 637(m))	Oct 2022
	(28)	52.219-30	Notice of Set-Aside for, or Sole Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (15 U.S.C. 637(m))	Oct 2022
	(29)	52.219-32	Orders Issued Directly Under Small Business Reserves (15 U.S.C. 644(r))	Mar 2020
	(30)	52.219-33	Nonmanufacturer Rule (15 U.S.C. 637(a)(17))	Sep 2021
✓	(31)	52.222-3	Convict Labor (E.O. 11755)	Jun 2003
	(32)	52.222-19	Child Labor—Cooperation with Authorities and Remedies	Feb 2024
	(33)	[Reserved]		
	(34)	[Reserved]		
✓	(35)	(i) 52.222-35	Equal Opportunity for Veterans (38 U.S.C. 4212)	Jun 2020
		(ii) Alternate I	of 52.222-35	Jul 2014

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
✓	(36)	(i) 52.222-36	Equal Opportunity for Workers with Disabilities (29 U.S.C. 793)	Jun 2020
		(ii) Alternate I	of 52.222-36	Jul 2014
✓	(37)	52.222-37	Employment Reports on Veterans (38 U.S.C. 4212)	Jun 2020
✓	(38)	52.222-40	Notification of Employee Rights Under the National Labor Relations Act (E.O. 13496)	Dec 2010
✓	(39)	(i) 52.222-50	Combating Trafficking in Persons (22 U.S.C. chapter 78 and E.O. 13627)	Nov 2021
		(ii) Alternate I	of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627)	Mar 2015
✓	(40)	52.222-54	Employment Eligibility Verification (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803)	Jan 2025
✓	(41)	(i) 52.223-9	Estimate of Percentage of Recovered Material Content for EPA-Designated Items (42 U.S.C. 6962(c)(3)(A)(ii)) (Not applicable to the acquisition of commercially available off-the-shelf items)	May 2008
		(ii) Alternate I	of 52.223-9 (42 U.S.C. 6962(i)(2)(C)) (Not applicable to the acquisition of commercially available off-the-shelf items)	May 2008
	(42)	52.223-11	Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (E.O.13693)	Jun 2016
	(43)	52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (E.O. 13693)	May 2024
	(44)	25.223-20	Aerosols (E.O. 13693)	May 2024

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
	(45)	52.223-21	Foams (E.O. 13693)	May 2024
✓	(46)	52.223-23	Sustainable Products and Services (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 76711)	May 2024
	(47)	(i) 52.224-3	Privacy Training (5 U.S.C. 552 a)	Jan 2017
		(ii) Alternate I	of 52.224-3	Jan 2017
	(48)	(i) 52.225-1	Buy American—Supplies (41 U.S.C. chapter 83)	Oct 2022
		(ii) Alternate I	Of 52.225-1	Oct 2022
	(49)	(i) 52.225-3	Buy American-Free Trade Agreements-Israeli Trade Act (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43	Nov 2023
		(ii) Alternate I	(Reserved)	
		(iii) Alternate II	of 52.225-3	Jan 2025
		(iv) Alternate III	of 52.225-3	Feb 2024
		(v) Alternate IV	of 52.225-3	Oct 2022
	(50)	52.225-5	Trade Agreements (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note)	Nov 2023
✓	(51)	52.225-13	Restrictions on Certain Foreign Purchases (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury)	Feb 2021

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
	(52)	52.225-26	Contractors Performing Private Security Functions Outside the United States (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note)	Oct 2016
	(53)	52.226-4	Notice of Disaster or Emergency Area Set-Aside (42 U.S.C. 5150)	Nov 2007
	(54)	52.226-5	Restrictions on Subcontracting Outside Disaster or Emergency Area (42 U.S.C. 5150)	Nov 2007
✓	(55)	52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving (E.O. 13513)	May 2024
	(56)	52.229-12	Tax on Certain Foreign Procurements	Feb 2021
	(57)	52.232-29	Terms for Financing of Purchases of Commercial Products and Commercial Services (41 U.S.C. 4505), 10 U.S.C. 2307(f))	Nov 2021
	(58)	52.232-30	Installment Payments for Commercial Products and Commercial Services (41 U.S.C. 4505, 10 U.S.C. 2307(f))	Nov 2021
✓	(59)	52.232-33	Payment by Electronic Funds Transfer— System for Award Management (31 U.S.C. 3332)	Oct 2018
	(60)	52.232-34	Payment by Electronic Funds Transfer—Other Than System for Award Management (31 U.S.C. 3332)	Jul 2013
	(61)	52.232-36	Payment by Third Party (31 U.S.C. 3332)	May 2014
	(62)	52.239-1	Privacy or Security Safeguards (5 U.S.C. 552a)	Aug 1996
	(63)	52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.)	Nov 2024

Federal Acquisition Regulation (FAR) Clauses

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
	(64)	52.242-5	Payments to Small Business Subcontractors (15 U.S.C. 637(d)(13)	Jan 2017
	(65)	(i) 52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels (Feb 2006) (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631)	Nov 2021
		(ii) Alternate I	of 52.247-64	Apr 2003
		(iii) Alternate II	of 52.247-64	Nov 2021

Federal Acquisition Regulation (FAR) Clauses

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
✓	(1)	52.222-41	Service Contract Labor Standards (41 U.S.C. chapter 67)	Aug 2018
✓	(2)	52.222-42	Statement of Equivalent Rates for Federal Hires (29 U.S.C. 206 and 41 U.S.C. chapter 67) In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332. This Statement is for Information Only: It is not a Wage Determination *(classifications from - Wage Determination: 1995-0221 / Revision: 66 / Date: 7/22/2024)* Employee — Monetary Wage -Fringe Benefits 07041 Cook I (WG-06, Step 02) — $18.70 07042 Cook II (WG-08, Step 03) — $23.75 07070 Dishwasher (WG-02, Step 02) — $12.13 07130 Food Service Worker (WG-02, Step 02) — $12.13 23530 Machinery Mechanic (WG-10, Step 02) — $27.99 31364 Truck-driver, Tractor-Trailer (WG-08, Step 02) — $23.01	May 2014

Federal Acquisition Regulation (FAR) Clauses

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:
[Contracting Officer check (✓) as appropriate.]

✓	#	FAR Cite	Title	Date
✓	(3)	52.222-43	Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (29 U.S.C.206 and 41 U.S.C. chapter 67)	Aug 2018
	(4)	52.222-44	Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (29 U.S.C. 206 and 41 U.S.C. chapter 67)	May 2014
	(5)	52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (41 U.S.C. chapter 67)	May 2014
	(6)	52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (41 U.S.C. chapter 67)	May 2014
✓	(7)	52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	Jan 2022
✓	(8)	52.222-62	Paid Sick Leave Under Executive Order 13706 (E.O. 13706)	Jan 2022
✓	(9)	52.226-6	Promoting Excess Food Donation to Nonprofit Organizations (42 U.S.C. 1792)	Jun 2020
	(10)	52.247-69	Reporting Requirements for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (49 U.S.C. 40118(g)	Jan 2025

(d) *Comptroller General Examination of Record*. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor 's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

#	FAR Cite	Title	Date
(i)	52.203-13	Contractor Code of Business Ethics and Conduct (41 U.S.C. 3509)	Nov 2021
(ii)	52.203-17	Contractor Employee Whistleblower Rights (41 U.S.C. 4712)	Nov 2023
(iii)	52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions))	Jan 2017
(iv)	52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities	Dec 2023
(v)	52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	Nov 2021
(vi)	52.204-27	Prohibition on a ByteDance Covered Application (Section 102 of Division R of Pub l 117-328)	Jun 2023
(vii)	(A) 52.204-30	Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II)	Dec 2023

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

#	FAR Cite	Title	Date
	(B) Alternate I	of 52.204-30	Dec 2023
(viii)	52.219-8	Utilization of Small Business Concerns (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds $700,000 ($1.5 million for construction of any public facility), the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities	Jan 2025
(ix)	[Reserved]		
(x)	[Reserved]		
(xi)	52.222-35	Equal Opportunity for Veterans (38 U.S.C. 4212)	Jun 2020
(xii)	52.222-36	Equal Opportunity for Workers with Disabilities (29 U.S.C. 793)	Jun 2020
(xiii)	52.222-37	Employment Reports on Veterans (38 U.S.C. 4212)	Jun 2020
(xiv)	52.222-40	Notification of Employee Rights Under the National Labor Relations Act (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40	Dec 2010
(xv)	52.222-41	Service Contract Labor Standards (41 U.S.C. chapter 67)	Aug 2018
(xvi)	_✓_ (A) 52.222-50	Combating Trafficking in Persons (22 U.S.C. chapter 78 and E.O. 13627)	Nov 2021
	___ (B) Alternate I	of 52.222-50 (22 U.S.C. chapter 78 E.O. 13627)	Mar 2015
(xvii)	52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (41 U.S.C. chapter 67.)	May 2014
(xviii)	52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (41 U.S.C. chapter 67)	May 2014
(xix)	52.222-54	Employment Eligibility Verification (E. O. 12989)	Jan 2025
(xx)	52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026	Jan 2022
(xxi)	52.222-62	Paid Sick Leave Under Executive Order 13706 (E.O. 13706)	Jan 2022
(xxii)	___ (A) 52.224-3	Privacy Training	Jan 2017
	___ (B) Alternate I	of 52.224-3	Jan 2017

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

#	FAR Cite	Title	Date
(xxiii)	52.225-26	Contractors Performing Private Security Functions Outside the United States (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note)	Oct 2016
(xxiv)	52.226-6	Promoting Excess Food Donation to Nonprofit Organizations (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6	Jun 2020
(xxv)	52.232-40	Providing Accelerated Payments to Small Business Subcontractors (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40	Mar 2023
(xxvi)	52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.)	Nov 2024
(xxiv)	52.247-64	Preference for Privately-Owned U.S. Flag Commercial Vessels (46 U.S.C. Appx 1241(b) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64	Nov 2021

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

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C.2.3 52.216-18 Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of task orders by the individuals or activities designated herein. Such orders may be issued from *Date of Award (DOA)* through *12/31/2029 (6/30/2030 if FAR 52.217-8, Option to Extend Services is exercised).*

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when –

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

C.2.3.1 Addendum to FAR 52.216-18 Ordering

Due to the sporadic occurrence of fire incident activity, the placement of orders outside the stated minimum guarantee under this contract IS NOT GUARANTEED. All orders under this contract for fire suppression related activities, all-hazard incidents and severity/preparedness assignments must be ordered in accordance with the following:

Task Order (TO) Procedures – (2 different processes for ordering under this contract): i) DDP TOs are to award MAP locations and obligate applicable MAP Daily Availability Rates and will be issued by the CO; 2) incident performance will be ordered via Resource Orders (RO) and will be issued by designated Ordering Officials as specified below.

(1) Dispatch TOs / MFSU Resource Orders to order work for fire suppression related activities, all-hazard incidents and severity/preparedness assignments:

Incident Ordering, Relocating, Reducing, Releasing, Reassigning, and Cancelling. The ordering process provides for: rapid movement of requests, agency review, efficient utilization of resources, and cost effectiveness. Orders under this contract shall be placed by issuing a Resource Order from the Incident Resource Ordering

Capability (IROC) or other Resource Ordering system. All orders must be placed in accordance with the following:

(i) Individuals Authorized to issue Task Orders (TO) / Resource Orders (RO).

(A) Designated Incident Ordering Officials - National Interagency Coordination Center (NICC) via Resource Orders.

(ii) Information Required by NICC on the Mobile Food Service Request Form (SRF) when placing orders:

(A) Incident Name, Financial Code, Resource Order Number, Food Service Request Number, Date of Order.

(B) Requested Date and Number of Meals:

a. Date of first meal. **First meal ordered shall always be dinner.**

b. Time of first dinner meal.

c. Estimated number for the first three meals.

(C) Reporting location.

(D) Contact person at the incident.

(E) Spike Camp information.

(F) Dispatch contact and Telephone number.

(d) Dispatch Procedures (incident response will be ordered under RO):

(1) The Government intends to dispatch resources in accordance with the procedures outlined herein. However, the Contracting Officer may deviate from these procedures, and it will not be deemed a violation of this contract when conditions merit an exception in accordance with FAR 16.505(a)(2).

(2) NICC is the only designated dispatch center authorized to place incident Task Orders via Resource Order.

(3) The Government has contracts with multiple Contractors for MFSU services. All awarded MFSUs shall be maintained in the Government's Computer Aided Dispatch (CAD) system by NICC and shall be considered for orders. The ordering process is established based on priority levels, defined as follows:

Priority Level	MFSU Status	Description
First	Awarded a National MFSU DDP Task Order. Within MAP	To be considered First Priority a MFSU must be: • Available and able to meet date/time needed. • Physically located at the DDP.

Priority Level	MFSU Status	Description
		• Closest MFSU of the incident that is not already dispatched.
Second	Awarded a National MFSU DDP Task Order. Outside MAP	To be considered Second Priority a MFSU must be: • Available and able to meet date/time needed. • Physically located at the DDP or National MFSU "Parent" IDIQ DP. • Lowest-Priced closest MFSU less than (<) 450-mi to the incident that is not already dispatched. • Lowest-Priced closest MFSU greater than (>) 450-mi to the incident that is not already dispatched.
Third	Awarded National MFSU "Parent" IDIQ	To be considered Third Priority a MFSU must be: • Available and able to meet date/time needed. • Physically located at National MFSU "Parent" IDIQ DP. • Lowest-Priced closest MFSU less than (<) 450-mi to the incident that is not already dispatched. • Lowest-Priced closest MFSU greater than (>) 450-mi to the incident that is not already dispatched.

(i) Availability and unavailability criteria are cited in the following PWS (see D.1.1(j)).

(ii) Prior to ordering MFSUs, the ordering agency (NICC) shall perform the following ordering selection process:

Priority 1 -

(A) NICC generates a CAD report showing all available MFSUs in order by closest resource to the incident using straight line (commonly referred to "as the crow flies") miles already incorporated in their CAD system. NICC reviews the report to determine which MFSU, if any, meet First Priority Level. The MFSU that is the closest resource to the incident will be called to verify their ability to meet date and time needed and physical location (at DDP). If this MFSU is available to meet date and time needed, they will be issued the order. If this MFSU is not available to meet date and time needed, the next closest resource to the incident MFSU will be called. This process will continue until all First Priority Level MFSUs have been considered.

Priority 2 -

(B) If NICC reviews the CAD report and finds no MFSUs in the First Priority Level, then Second Priority Level resources will be considered. NICC will run the lowest price formula cited in (E) below on Second Priority Level resources using a two-tier incident response (Within 450 miles and 450+ miles).

- Tier 1 - Within 450 miles: The MFSU with the lowest price within 450 miles will be called to verify their availability to meet date and time needed and physical location (at DDP or enroute to DDP from incident). If this MFSU can meet date and time needed, they will be issued the order. If this MFSU is not available to meet date and time needed, they would be ineligible for the order and the next closest MFSU will be called until all Priority Level 2 resources within 450 miles have been considered.

- Tier 2 - 450+ Miles: The MFSU with the lowest price 450+ miles will be called to verify their availability to meet date and time needed and physical location (at DDP, enroute to DDP from incident, or National MFSU IDIQ dispatch point). If this MFSU can meet date and time needed, they will be issued the order. If this MFSU is not available to meet date and time needed, they would be ineligible for the order and the next lowest price MFSU will be called until all Priority Level 2 resources 450+ miles have been considered.

Priority 3 -

(C) If NICC reviews the CAD report and finds no MFSUs in the First or Second Priority Level, then Third Priority Level MFSUs (National MFSU “Parent” IDIQ) will be considered. NICC will run the lowest price formula cited in (E) below on Third Priority resources using a two-tier incident response.

- Tier 1 - Within 450 miles: The MFSU with the lowest price within 450 miles will be called to verify their availability to meet date and time needed and physical location (at National MFSU “Parent” IDIQ DP). If this MFSU can meet date and time needed, they will be issued the order. If this MFSU is not available to meet date and time needed, they would be ineligible for the order and the next lowest price MFSU will be called until all Priority Level 3 resources within 450 miles have been considered.

- Tier 2 - 450+ Miles: The MFSU with the lowest price 450+ miles will be called to verify their availability to meet date and time needed and physical location (at National MFSU “Parent” IDIQ DP). If this MFSU can meet date and time needed, they will be issued the order. If this MFSU is not available to meet date and time needed, they would be

ineligible for the order and the next lowest price MFSU will be called until all Priority Level 3 resources 450+ miles have been considered.

(D) For all orders, regardless of priority, the MFSU must respond to the NICC within 30 minutes of being contacted whether they accept the order or not. In the event the Contractor cannot confirm in the specified timeframe, the NICC will proceed with the dispatch procedures outlined above. When the NICC determines no National IDIQ "Parent" MFSUs can meet the requirement, the Government reserves the right to utilize non-National MFSUs.

(E) The formula used to determine the lowest evaluated price for Second or Third Priority Level orders considers the first three meals on the Service Request Form (SRF) and the following parameters:

- (Input total actual mileage to and from the incident) x $ price per mile = total mileage
- 1 handwashing unit x $ price/day x 2 days = total handwashing unit
- Meals to include sum of all items below (from the SRF):
    1. (Input total breakfast meals) x $ breakfast price
    2. (Input total shift provisions) x $ shift provision price
    3. (Input total dinners) x $ dinner price
- The total summed value of this scenario will be compared to other offerors and the lowest total price will be used to determine dispatch recipient.
- Actual mileage in the formula is determined using Google Maps® for the distance from the current location of each MFSU to the address specified on the Resource Order. In the event that Google Maps® is not operable, the Government may use any other consistent method of determining the distance.

(F) The NICC shall document the selected MFSU on the Resource Order and maintain appropriate ordering procedure documentation. The NICC shall send the documentation to the CO at the time of placing the order.

(G) When a Contractor's MFSU agrees to a delivery schedule at the time the order is placed, the Contractor is required to perform in accordance with the agreed upon schedule documented on the Mobile Food and Shower Service Request Form. In addition, the Contractor is required to follow DOT regulations at all times. Failure to meet delivery time will be reported to the COR/CO as this may result in poor past performance evaluation, temporary

suspension of the unit, and risk not receiving a renewal of their next Option Year resulting in that MFSU's removal from the contract.

(iii) At-Incident Procedures:

(A) Release

1. Priority for Releasing a MFSU – First Priority MFSUs shall be released after all additional MFSUs and Non-National MFSUs have been released. Releases for National MFSUs will go through established dispatch channels including notifying NICC. The Contractor shall contact NICC to confirm status of release. When there is more than one National MFSU at the same incident or complex of incidents, the LSC and COR will determine which National MFSU will be the first to be released based on design, capability, size, need, performance, price and/or set-up location at the incident. The LSC or COR will notify the CO of this decision in writing.

2. The FDUL under the direction of LSC may release the Contractor after it is determined there is no longer a need for mobile food service.

(B) Need for Additional MFSU: If an additional MFSU is ordered for the same incident, dispatch priority will be in accordance with the Priority Level status stated above.

(iv) Procedure for Canceling a MFSU: The Government reserves the right to cancel any order at any time. Payment for services rendered will be made in accordance with Section ~~C.5.1.~~ **C.2.1(i)(2)**. Notice of cancellation will be provided to the MFSU Contractor from NICC.

(v) Procedure for Relocating MFSU(s) at an Incident:

(A) The Relocation Fee (in addition to mileage) is paid in the following cases:

1. After a MFSU is on order and has arrived and completed the initial set-up at the incident; the Government may have a need to relocate the MFSU to another location within the same camp, or to a new, or different camp (in support of the same incident), or

2. When the original incident is or becomes incorporated into a complex and relocating the MFSU becomes necessary in support of that complex of incidents, or

3. Reduction in force resulting in reorganization within the incident or complex, but not demobilization. The relocation fee is paid when camps in a complex are collapsed and MFSU(s) are relocated within that complex.

(vi) Procedure and Times for Ordering Hot Meals, Shift Provisions, and Hot or Cold Container Meals:

(A) Orders for hot meals, Shift Provisions, hot and cold container meals, and the times to be served shall be placed by the FDUL and documented on the INVOICE. The Contractor shall be notified of the anticipated number of hot meals, and hot and cold container meals, at least six (6) hours before the time to be served or delivered. Whenever possible, the Government will notify the Contractor of the anticipated number of Shift Provisions by 12:00 p.m. the day before issuance and the Contractor shall refrigerate Shift Provisions ordered until the agreed upon delivery time. While every attempt will be made to adhere to these ordering schedules, it may be necessary to order additional meals with very little notice, due to the sporadic nature of emergency incidents.

(B) If Shift Provisions orders increase beyond the contractors maximum stated capacity as identified in the Schedule/Summary of Items the contractor may meet these additional needs by expanding on-site capacity. The LSC may decide to purchase off-site Shift Provisions that the contractor is unable to provide.

(C) Failure on the part of the Contractor to meet the meal or Shift Provisions schedule may result in a reduction in the contract meal prices, poor past performance evaluation, temporary suspension of the unit, and risk not receiving a renewal of their next Option Period resulting in that MFSU's removal from the contract. No reduction in contract meal prices shall be made for any additional meals when not ordered by the required time frames (see D.1.9 Performance Standards and Deductions).

(vii) Procedure for Ordering Optional Supplemental Food and Beverage Items: Optional supplemental food and beverage items listed in Section B may be ordered by the FDUL subject to mutual agreement of the Contractor. Orders for optional supplemental food and beverage items must be approved in advance, inventoried upon delivery, and accepted by the FDUL. The Government, at its option, may choose to procure these items under this contract or from other sources. The Contractor may choose to accept or not accept any orders for optional supplemental food and beverage items under this contract.

(viii) Procedure for Ordering Optional Refrigeration Storage Space: Optional refrigeration storage space within the MFSU listed in Section B may be ordered by the FDUL subject to mutual agreement of the Contractor. Orders for optional refrigeration storage space shall be clearly documented under Block 31 of the INVOICE. The Government, at its option, may choose to procure these items under this contract or from other sources. The Contractor may choose to accept or not accept any orders for temporary refrigeration storage space under this contract.

(ix) Procedure for Ordering Optional Tents and Seating: Optional supplemental tents and seating listed in Section B, may be ordered by the FDUL subject to

mutual agreement of the Contractor. Orders for supplemental tents and seating shall be clearly documented under Block 31, of the INVOICE. The Government, at its option, may choose to procure these items under this contract or from other sources. The Contractor may choose to accept or not accept any orders for supplemental tents and seating under this contract.

(x) Procedure for Ordering Supplemental Hot Food Delivery Vehicle: Supplemental delivery vehicle listed in Section B, may be ordered by the FDUL subject to mutual agreement of the Contractor. Orders for a supplemental delivery vehicle shall be clearly documented under Block 31, on the INVOICE. The Government, at its option, may choose to procure these items under this contract or from other sources. The Contractor may choose to accept or not accept any orders for a supplemental hot food delivery vehicle under this contract.

(xi) Procedure for Canceling and Reducing Hot Meal Orders: Cancellation or reduction in hot meals shall be made in writing four (4) hours prior to serving time and documented in Block 28 Remarks on the INVOICE.

(xii) Procedure for Canceling and Reducing Shift Provisions Orders: Any cancellation or reduction in Shift Provisions shall be made in writing as soon as practical after an order has been placed and documented in Block 28 Remarks on the INVOICE.

(End of FAR 52.216-18 addenda)

C.2.4 52.216-19 Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than ***200 meals per meal period, for at least 72 hours,*** *the Government is not obligated to purchase,* nor is the Contractor obligated to furnish those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of ***90 days or $15M***; or

(2) Any order for a combination of items in excess of ***90 days or $15M***; or

(3) A series of orders from the same ordering office within ***seven (7)*** days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) Notwithstanding paragraph (b) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within ***90*** days after issuance, with written notice stating the Contractor's intent not to provide the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

C.2.5 52.216-22 Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after ***12/31/2029 – or if assigned to an incident, upon completion of said assignment should it exceed the contract end date of 12/31/2029 (6/30/2030 if FAR 52.217-8,Option to Extend Services is exercised)***.

(End of clause)

C.2.6 52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within ***30 days***.

(End of clause)

C.2.7 52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed ***5-years and 6-months if option is exercised***.

(End of clause)

C.3 Dept. of Agriculture Acquisition Regulations (AGAR) Supplemental Clauses - Full Text

C.3.1 452.204-70 Modification for Contract Closeout (DEVIATION Jun 2024) (Dec 2024)

Upon contract closeout for contracts utilizing anything other than cost reimbursement:

(a) If unliquidated funds in the amount of $1000 or less remain on the contract, the Contracting Officer (CO) shall issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but will not be required to provide a signature. The CO shall immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) Upon contract closeout for contracts utilizing SAP: if unliquidated funds of more than $1000 remain on the contract, the CO shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and will be required to provide a signature. (The CO may also request a "Contractor Release of Claims" be completed by the contractor, although not required for contracts and orders using SAP.) If the bilateral modification and Release of Claims are not returned to the CO within 60 days, the CO shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(c) Upon contract closeout for contracts utilizing anything other than cost reimbursement, if unliquidated funds of more than $1000 remain on the contract, the CO shall issue a bilateral modification for deobligation. The contractor will receive a copy of the modification and a "Contractor Release of Claims" and will be required to provide a signature on both forms. If the bilateral modification and Release of Claims are not returned to the CO within 120 days, the CO shall release the modification as unilateral and proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(End of Clause)

C.4 USDA Forest Service Custom Clauses - Full Text

C.4.1 Custom Clause #1 Economic Price Adjustments-Cost Indexes of Labor or Material (Jan 2025)

(a) *General*. IAW FAR 16.203-4(d) - The mileage prices in Section B - Schedule of Items shall be adjusted annually at contract option renewal based on increases or decreases to *DOL Bureau of Labor Statistics - Table 1. Consumer Price (CPI),* in accordance with paragraphs (d) and (e) of this clause, except that-

(1) In no event shall the total amount paid under this contract exceed any ceiling price included in the contract.

(2) Any adjustment shall be limited to the effect on the elements increased or decreased in the rates for unit prices shown in the Schedule. There shall be no adjustment for-

(i) Supplies or services for which the cost is not affected by such changes;

(ii) Changes in rates or unit prices other than those shown in the Schedule; or

(iii) Changes in the quantities of labor or material used from those shown in the Schedule for each item.

(3) No upward adjustment shall apply to supplies or services that are required to be delivered or performed before the effective date of the adjustment, unless the Contractor's failure to deliver or perform according to the delivery schedule results from causes beyond the Contractor's control and without its fault or negligence, within the meaning of the Default clause.

(4) There shall be no adjustment for any change in unit prices which would not result in a net change of at least 3 percent of the then-current unit price.

(5) The aggregate of the increases in any contract unit price made under this clause shall not exceed 10 percent of the original unit price. There is no percentage limitation on the number of decreases that may be made under this clause.

(b) *Definitions*. "Unit," as used in this clause, means unit pricing, not mobile food service 'unit'.

(c) The Government has determined the following unit price element adjustments allocable as calculated in paragraph (d) based on common industry standards:

(1) Transportation

(i) *Mileage Rate* - Labor costs for incident drivers (non-allocable) comprise approximately 50 percent of the rate with remaining 50 percent attributable to various allocable operational costs, etc.

(ii) *Transportation Index* - Allocable transportation costs represent mileage, maintenance, fuel, fees, etc. (approx. 75% of the index), *minus* non-allocable costs such as public transportation, leases, and rentals (approx. 25% of the index).

(d) Contract unit price adjustments applicable to each contract option renewal period will be based on increases or decreases in:

(1) the **Unadjusted percent change (Oct. 20## – Oct. 20##)** to the Food, Transportation services, and Services less energy services indexes found in Table 1 - Consumer Price Index for all Urban Consumers (CPI-U) – Expenditure category;

(i) The calculation of the of the percent change to the CPI-U Transportation index for each renewal option period will be based on the Unadjusted percent change, October through October. ***For example***, *price adjustments for calendar year 2025 will be based on unadjusted percent changes (Oct 2023 – Oct 2024) from the October 2024 news release (.pdf is best)*.

https://www.bls.gov/bls/news-release/cpi.htm#2024 → print

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(See *examples* below, CPI-U Transportation = 8.2%)

Table 1. Consumer Price Index for All Urban Consumers (CPI-U): U.S. city average, by expenditure category, October 2024
[1982-84=100, unless otherwise noted]

Expenditure category	Relative importance Sep. 2024	Unadjusted indexes			Unadjusted percent change		Seasonally adjusted percent change		
		Oct. 2023	Sep. 2024	Oct. 2024	Oct. 2023-Oct. 2024	Sep. 2024-Oct. 2024	Jul. 2024-Aug. 2024	Aug. 2024-Sep. 2024	Sep. 2024-Oct. 2024
All items	100.000	307.671	315.301	315.664	2.6	0.1	0.2	0.2	0.2
Food	13.458	325.731	332.083	332.678	2.1	0.2	0.1	0.4	0.2
Transportation services	6.521	407.526	436.331	440.755	8.2	1.0	0.9	1.4	0.4

(e) The newly adjusted prices will become effective upon renewal of each Option year, using the following formulas:

(1) The Mileage rate will be adjusted as follows:

(i) 50% of the current mileage rate multiplied by 75% of the **Unadjusted percent change** in the CPI-U for the Transportation index.

For example: If the unadjusted percent change to the CPI-U Transportation index = 8.2% with a hypothetical current mileage rate of $15.00.

($15.00 x 50%) x (0.082 x 75%) = ($7.50) x (.0615) = $0.46

New adjusted rate: $15.00 + $0.46 = $15.46

(f) *Contract modifications*. Each adjustment of prices shall be evidenced by a unilateral modification to this contract, providing the adjusted unit prices (unit summary) that apply during the next performance period; provided that the Government gives the Contractor timely preliminary written notice of its intent to extend IAW Contract Section C – Contract Clauses - C.3.7. (FAR 52.217-9, Option to Extend the Term of the Contract) with the unit summary for contractor review and concurrence that mileage rate is correct.

(g) The Contracting Officer may examine the Contractor's books, records, and other supporting data relevant to the changes until the end of 3 years after the date of final payment under this contract or the time periods specified in subpart 4.7 of the Federal Acquisition Regulation (FAR), whichever is earlier.

(End of custom clause)

C.4.2 Custom Clause #2 Key Personnel (Dec 2024)

(a) The Contractor shall assign to this contract the following Key Personnel: 1. Mobile Food Service Unit Manager; 2. Kitchen Manager; 3. Assistant Kitchen Manager; 4. Supervisory Cook for each Mobile Food Service Unit, as Key Personnel for each MFSU offered (also see D.1 Exhibit 1, PWS D.1.5.(i)):

MFSU #	Mobile Food Service Unit Manager	Kitchen Manager	Assistant Kitchen Manager	Supervisory Cook

(b) During the first ninety (90) days of performance, the Contractor shall make no substitutions of Key Personnel unless the substitution is necessitated by illness, death, or termination of employment. The Contractor shall notify the Contracting Officer within 15 calendar days after the occurrence of any of these events and provide the information required by paragraph (c) below. After the initial 90-day period, the Contractor shall submit the information required by paragraph (c) to the Contracting Officer at least 15 days prior to making any permanent substitutions.

(c) The Contractor shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. Proposed substitutes should have comparable qualifications to those of the persons being replaced. The Contracting Officer will notify the Contractor within 15 calendar days after receipt of all required information of the decision on substitutions. The IDIQ will be modified to reflect any approved changes of Key Personnel.

(End of custom clause)

C.4.3 Custom Cause #3 Period of Performance (Dec 2024)

The period of performance of this contract is from ***Date-of-Award (DOA)***, through ***12/31/2025***, plus four additional 12-month option years as follows:

Option Year 1 (OY1)	January 1, 2026 through December 31, 2026
Option Year 2 (OY2)	January 1, 2027 through December 31, 2027
Option Year 3 (OY3)	January 1, 2028 through December 31, 2028
Option Year 4 (OY4)	January 1, 2029 through December 31, 2029

Note, pricing for the Option Year immediately prior will be utilized for the additional 6 months of performance if FAR 52.217-8 Option to Extend Services (OES) is exercised prior to OY4.

(End of custom clause)

C.4.4 Custom Clause #4 Effective Period of the Contract (Dec 2024)

The effective period of this contract is from ***Date-of-Award,*** through ***6/30/2030***, pending options (including FAR 52.217-8) being exercised.

(End of custom clause)

C.4.5 Custom Clause #5 Post-Award Conference (Dec 2024)

A post award conference with the successful offeror(s) is required. It will be scheduled within ***sixty (60) days*** after the date of contract award. The conference will be held at: ***virtually*** via an acceptable meetings platform. The government currently utilizes MS Teams.

(End of custom clause)

C.4.6 Custom Clause #6 Minimum and Maximum Contract Amounts (Dec 2024)

During the period specified in FAR clause 52.216-18, Ordering (see C.2.3), the Government shall place orders totaling a minimum of ***$5,000.00***, but not in excess of ***$15M per MFSU***.

(End of custom clause)

C.4.7 Custom Clause #7 Insurance Coverage Dec 2024)

Pursuant to FAR clause 52.228-5, Insurance-Work on a Government Installation, the Contractor will be required to present evidence to show, as a minimum, the amounts of insurance coverage indicated below:

(a) *Workers Compensation and Employer's Liability.* The Contractor is required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least ***$100,000.00*** shall be required, except in States with exclusive or monopolistic funds that do not permit worker's compensation to be written by private carriers.

(b) *General Liability.*

(1) The Contractor shall have bodily injury liability coverage written on a comprehensive form of policy of at least ***$500,000.00*** per occurrence.

(2) The Contractor shall have property damage liability insurance shall be required in the amount of ***$100,000.00*** per occurrence.

(c) *Automobile Liability.* The Contractor shall have automobile liability insurance written on a comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least ***$200,000.00*** per person and ***$500,000.00*** per occurrence for bodily injury and ***$20,000.00*** per occurrence for property damage or loss.

(d) *Aircraft Public and Passenger Liability.* When aircraft are used in connection with performing the contract, the Contractor shall have aircraft public and passenger liability insurance. Coverage shall be at least ***$200,000.00*** per person and ***$500,000.00*** per occurrence for bodily injury, other than passenger injury. Coverage for passenger injury shall be at least ***$200,000.00*** multiplied by the number of seats or passengers, whichever is greater.

(End of custom clause)

C.5 Additional Conditions for Performance

C.5.1 Use of Premises

(a) Before any camp, quarry, borrow pit, storage, detour, or bypass site, other than shown on the drawings, is opened or operated on USDA land or lands administered by the USDA, the Contractor shall obtain written permission from the Contracting Officer. A camp is interpreted to include a campsite or trailer parking area of any employee working on the project for the Contractor.

Note: Written permission is given by the Contracting Officer any time a Contractor is ordered by Resource Order or Order in accordance with this clause.

(b) Unless excepted elsewhere in the contract, the Contractor shall (i) provide and maintain sanitation facilities for the work force at the site and (ii) dispose of solid waste in accordance with applicable Federal, State and local regulations.

C.5.2 Commercial Filming or Videotaping

(a) In accordance with 36 C.F.R. Part 251 and U.S. Forest Service Manuals 1600 and 2700 all commercial filming or videotaping (e.g., filming for feature films, reality shows, documentaries, television specials, etc.) on National Forest System lands requires the filming entity to apply for, and obtain, a special use authorization prior to the start of any filming, or associated activities, on National Forest System lands. This requirement is applicable to filming directly by contractors and is also applicable to filming of contractors of the U.S. Forest Service while on National Forest System lands.

(b) Any filming, or associated activities, occurring on National Forest System lands pursuant to a properly acquired special use authorization may be limited or prohibited during a firefighting or incident support situation at the discretion of the Incident Commander.

C.5.3 Government Liability

(a) The Government shall not be liable for damages to contractor equipment or personnel provided under this contract except for damages caused by Government personnel acting within the scope of their official duties as compensable under the Federal Tort Claims Act, 28 U.S.C. 2671-2680.

(b) The MFSU Manager is responsible for managing the resource within its operating limits, responsible for safety of their employees and cargo and shall comply with the directions of the Government, except when in the judgment of the MFSU Manager such compliance will be a violation of applicable Federal or State regulations. The MFSU shall refuse any operation considered hazardous or unsafe.

C.5.4 Workmanship

(a) All work under this Contract shall be performed in a safe and professional manner. The Incident Commander may order the release of any Contractor employee deemed incompetent, careless, or otherwise objectionable including violation of Harassment Free Workplace Policy. It will be left to the discretion of the COR to demobilize an entire resource or to allow replacement of the noncompliant personnel. Documentation of the rationale for release will be provided to the CO subsequent to the action. Accordingly, the CO may require, in writing, the Contractor remove from use under this Contract, any employee found incompetent,

careless, or otherwise objectionable including violation of Harassment Free Workplace Policy. The CO may require other proof of mitigation. Misconduct may result in the suspension or termination of this Contract.

(b) If an employee or crew is terminated, quits, or otherwise is released from the incident for any reason, the Contractor is responsible for returning the employee(s) to the DP or DDP with a departure time from the Incident Command Post (ICP) no later than 12 hours or another time agreed to with the COR. The Contractor is required to provide such transportation. If the Contractor does not act in a timely manner, as agreed with the COR, the IMT has authority to transport said employee or arrange for employee's transportation and to deduct all such transportation costs from Contractor's payment.

C.5.5 Incident Behavior

It is extremely important that inappropriate behavior be recognized and dealt with promptly.

(a) Inappropriate behavior is all forms of harassment including sexual and racial harassment. Harassment in any form will not be tolerated.

(b) Possession or use of Non-prescription unlawful drugs and alcohol are not permitted at the incident fire camp; violation will result in the Contractor, or its employees being released from the incident. During off-incident periods, personnel are responsible for proper conduct and maintenance of fitness for duty. Drug or alcohol abuse resulting in unfitness for duty will result in the Contractor or its employees being released from the incident.

(c) Firearm / Weapon Prohibition - The possession of firearms or other dangerous weapon (18 USC 930 (f)(2) are always prohibited while on Government Property and during performance of services, under this contract. The term dangerous weapon does not include a pocketknife with a blade less than 2 ½ inches in length or a multi-purpose tool such as a Leatherman® tool.

(d) MFSU Contractors shall foster an atmosphere of cooperation on incidents with assigned personnel, and internal and external stakeholders, in order to facilitate the accomplishment of the overall organizational mission. All MFSU personnel shall actively participate in building a cohesive and collaborative work environment by considering diverse viewpoints, modeling integrity, actively listening, treating everyone with respect, and supporting the successful operation of others.

C.5.6 Notice of Contractor Performance Assessment Reporting System

(a) The US Forest Service has implemented the Contractor Performance Assessment Reporting System (CPARS) for reporting all past performance information. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.

(b) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.

(c) We request that you furnish the Contracting Officer with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or

not the Contractor agrees with the evaluation, before returning the report to the Assessing Official. The report information must be protected as source selection sensitive information not releasable to the public.

(d) When your Contractor Representative(s) (Past Performance Points of Contact) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS are available at http://www.cpars.csd.disa.mil/. The CPARS User Manual, registration for Online Training for Contractor Representatives, and a practice application may be found at this site.

(e) Within 60 days after the end of a performance period, the Contracting Officer will complete an interim or final past performance evaluation, and the report will be accessible at http://www.cpars.csd.disa.mil/. Contractor Representatives may then provide comments in response to the evaluation or return the evaluation without comment. Comments are limited to the space provided in Block 22. Your comments should focus on objective facts in the Assessing Official's narrative and should provide your views on the causes and ramifications of the assessed performance. In addition to the ratings and supporting narratives, blocks 1 – 17 should be reviewed for accuracy, as these include key fields that will be used by the Government to identify your firm in future source selection actions. If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in Block 22, and then signing and dating Block 23 of the form. Without a statement in Block 22, you will be unable to sign and submit the evaluation back to the Government. If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment." Your response is due within 60 calendar days after receipt of the CPAR.

(f) The following guidelines apply concerning your use of the past performance evaluation:

(1) Protect the evaluation as "source selection information." After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the Contracting Officer for instructions.

(2) Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.

(3) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

(g) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the Contracting Officer no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 30-day review period.

(h) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

End of C. Contract Terms & Conditions

D. Contract Documents, Exhibits or Attachments

EXHIBIT D.1: SPECIFICATIONS / PERFORMANCE WORK STATEMENT

USDA FOREST SERVICE
NATIONAL INTERAGENCY FIRE CENTER (NIFC)
2025-2029 NATIONAL MOBILE FOOD SERVICE UNIT (MFSU) SUPPORT

PERFORMANCE WORK STATEMENT (PWS)

January 2025

D.1.1 Scope

(a) The scope of this effort is to obtain the services of Mobile Food Service Units (MFSU) at various field locations during fire suppression related activities, all-hazard incidents and severity/preparedness assignments throughout the contiguous western states. The expectation and desired result of this Performance Work Statement (PWS) is to provide appetizing, nutritional, well balanced hot meals, Shift Provisions, hot and cold container meals, and supplemental items.

(b) MFSU Requirements - The MFSU is to include all equipment, supervision, labor, materials, and supplies (except for those items listed as Government furnished) to accomplish the full scope of work defined herein. Only equipment necessary for the operation of a MFSU will be allowed and approved for use under this contract. Equipment must be capable of operating in adversely impacted urban areas to remote primitive locations with access limitations such as tight one lane roads or over limited load capacity bridges or culverts.

(c) These services shall include complete management, control, purchase, receipt, storage, issue, handling, processing, packaging, preparation, food serving, clean up, transport, repair, and maintenance. All hot meals shall be served by Contractor personnel, except for those meals served at Spike Camps. All meals shall be served and consumed at the Incident dining area except Shift Provisions and hot/cold container meals, which will be delivered to the Government at a specified time and place. Exceptions to meals eaten outside the dining area may be approved on a case-by-case basis by the Food Unit Leader (FDUL).

(d) The Contractor shall have the capability to feed personnel when requested by the FDUL at times other than those established for regular meals. The intent is to provide meals on an "as requested" basis but does not require the kitchen to be open continuously 24 hours per day.

(e) Ordering Requirements - Any time mobile food services are needed for federal fire suppression related activities, all-hazard incidents and severity/preparedness assignments in the western United States, the Federal Wildland Fire Agencies, herein after referred to as the Government, are obligated to order services from the National MFSU Contractors any time (a) the number of people to be fed is at or above 200 persons per meal and; (b) the headcount is estimated to remain at those numbers, or greater, for at least 72 hours from when the headcount first reaches 200 per meal, provided that the Contractor can reasonably meet the incident’s needs and required time frames. MFSU Contractors will be given the opportunity to provide three meals per day up to their maximum stated capacity unless the needs of the incident require alternate feeding methods. Notice of the deviation in meal service will be provided by the FDUL under the direction of the LSC and COR 48 hours in advance of the change.

(f) Ordering Additional MFSUs - The Government may, at any time, order more than one MFSU Unit to support an incident.

(g) Non-Fire Incidents - MFSU also may be ordered for other types of incidents at the Government’s option. State and other federal cooperators may utilize this contract at their option. However, the ordering procedures at C.5.4, Custom Clause #4, will be followed for all orders.

(h) Hot Food and Beverage Containers - The Government, at its option, may order hot meals and/or cold breakfast to be prepared and placed in Government furnished food and drink

containers (Hot Food Container NFES 0246 and Hot Beverage Container NFES 0244).

(i) Supplemental Items - The Government may order, and the Contractor at its option, may provide supplemental items, temporary refrigeration storage space, supplemental tents/seating, and supplemental hot food delivery vehicles as shown and at the rates offered in the Contractor's current Unit Summary. The FDUL shall clearly document and approve the order on INVOICE, (Continuation Sheet) under Miscellaneous Charges.

(j) Status - Used to populate availability throughout the season and determines MAP Daily Availability Rate payments as the intent of this contract is to have MFSUs available to the Government during MAPs.

The following provides information to sign up, status and use the Interagency Resource Ordering Capability (IROC) system: https://www.wildfire.gov/page/iroc-accountspasswordweb-status

(1) The Contractor is required to maintain their MFSU correct availability/status in the Interagency Resource Ordering Capability (IROC) system or other Resource Status System in coordination with the NICC.

(i) This status shall be updated daily by 9:00 am Mountain Time to facilitate the NICC in determining resource availability.

(ii) If status is not updated by 9:00 am Mountain Time, then the NICC will use the status listed in IROC for determining who is available to receive an order for that day. Status will not be verified until the next day that statuses can be updated. (The NICC may at its discretion, review IROC status multiple times daily depending on fire conditions).

(2) MFSUs are required to notify the NICC when they are released from an incident.

(i) Failure to status proper availability or excessive unavailability (20 percent or greater) during an MFSU's MAP may result in a poor past performance evaluation, suspension of the unit, nonpayment of the Daily Availability Rate, and/or risk not receiving a renewal of their next Option Period resulting in that MFSU's removal from the contract.

(ii) To be considered for an assignment outside of an MFSU's MAP, the resource is required to be physically located at either their DDP or National MFSU IDIQ dispatch point and status availability in IROC.

(iii) The Contractor must email a request for modification to the CO if the physical location of the MFSU changes.

(iv) The Government reserves the right to periodically verify the availability and location of all units.

D.1.2 Government Furnished Property

The Government shall deliver to the MFSU Contractor the following Government Furnished Property:

(a) Approved single-use, disposable food and beverage containers (NFES 0244, NFES 0246, etc.) when hot or cold meals are ordered.

(b) Electronic versions of the invoices may be obtained at https://www.fs.usda.gov/business/incident/logistics.php?tab=tab_l.

(c) Containers for used kitchen cooking oil and grease disposal only.

D.1.3 Government Furnished Services

(a) Waste Products - The Government will arrange for pick up and disposal of all waste products, trash, and cooking oil and grease after the waste products have been placed in the Government provided containers by the Contractor at a Government designated location.

(b) Gray Water - The Government will arrange for removal of wastewater from the Contractor's holding facilities.

(c) Dust Control - The Government shall provide for dust control for the main serving area as needed.

(d) Potable Water - The Government shall deliver potable water to the MFSU, as needed, after the initial 480 gallons required to be furnished by the Contractor is used. The Government shall also deliver potable water to the hand washing stations that are required as part of the MFSU, as needed.

(e) Refrigeration - The Government will be responsible for refrigeration of Shift Provisions and supplemental items upon delivery by the Contractor.

(f) Meal Count

(1) The Government will provide a person to count the number of hot meals being served. These counts shall be performed by head count at the serving lines. All items served from the serving window, or from the self-service breakfast/salad bar, shall be considered a meal. Second helpings at breakfast or from the self-service breakfast/saladbar shall not be considered an additional meal. Second helpings at the dinner meal of a meat/vegetarian entrée are considered an additional meal.

(2) The number of meals counted shall be recorded on the INVOICE, reconciled with the Contractor, and signed by the FDUL and Contractor on a daily basis.

(3) Items listed in the Twenty-Four-Hour Service Bar are already included in the meal prices. These items do not constitute a separate meal count.

(4) Contractor employee meals will be counted as part of the daily meal count. The Contractor is responsible for notifying the FDUL of the initial employee count and changes to that number thereafter.

(g) Health Authority Notification - When the MFSU is dispatched to an Incident, a government representative may notify local health authorities of the time and location of services to be performed.

(h) Fuel Tender - The Government may allow the Contractor to use a government fuel tender when available. The Contractor shall pay directly via credit card for any costs of these supplies. At times it may be necessary for the Contractor to deduct the cost of petroleum products from payments due on Form 1276-B Daily Meal Order/Invoice - Mobile Food Service Continuation Sheet when no credit card services are available.

(i) Government Escort - When it is difficult for the Contractor to locate an incident with the directions provided by the Government, the Contractor may request an escort to the incident.

(j) Showers - When Shower Facilities are available for incident personnel, Contractor personnel may use the showers without charge.

(k) Hot and Cold Container Assembly – When available, the Government may provide personnel to assemble the cardboard sections of the hot and cold food containers. This service may not be available at all incidents. Requests for help must be sent through the FDUL.

D.1.4 Contractor Furnished Equipment, Supplies and Personnel

The Contractor shall furnish the following:

(a) All cooking, serving equipment, utensils, eating dishes and cups. Utensils shall be heavy weight and factory wrapped. All drinking cups shall be a minimum of 12 ounces. All disposable products shall comply with bio-preferred requirements or shall be made of bio-based materials capable of withstanding a minimum temperature of 160° F. www.biopreferred.gov,

(b) All equipment, labor, supervision, fuel, electricity, and maintenance necessary for the full operation of the MFSU,

(c) All food and condiments,

(d) A small weighing scale for spot-checking of minimum weight requirements,

(e) Hot and cold food thermometers for monitoring of food temperatures,

(f) Single-use, food-grade gloves for food service at camp and any support sites,

(g) Automated touchless glove dispenser and bio-based food grade gloves for use at self-service bars. If the automated touchless glove dispenser is not available, then bio-based food grade gloves shall be provided.

(h) Current test strips for checking dish washing sanitizing solution and chlorine residual,

(i) Phosphate-free, antibacterial liquid soap and paper towels for hand washing facilities,

(j) Waterproof tent(s) for the eating area(s) that are able to accommodate a minimum of 250 persons comfortably. Supplemental tents and seating may be provided only when ordered by the FDUL, at the rates specified in the Contractor's current Unit Summary. The order shall be clearly documented under miscellaneous charges and credits on Form 1276-B, Daily Meal Order/Invoice (Continuation Sheet),

(k) Appropriate tables and chairs (in good condition), for an eating area that accommodates a

minimum of 250 people comfortably,

(l) Adequate lighting for the serving and dining areas,

(m) At least one employee trained in safe food handling procedures who is assigned to monitor and maintain all self-service bars during hours of operation,

(n) Garbage cans with bio-based or bio-preferred liners for the MFSU; to include all peripheral food handling, preparation areas and dining area,

(o) Refrigeration and freezer units for the storage of meat and other perishables.

(p) Dry storage unit for non-perishable food and dry goods. Clean, rodent, insect and dust-free trailer for all non-perishable food, lunch items, and dry goods. Food storage shall meet all applicable Federal, State, and local laws and regulations.

(q) A minimum of 500 gallons potable water storage tank capacity and initial supply of 480 gallons of potable water,

(r) A minimum of 1,000 gallons of gray water storage capacity (any configuration),

(s) Living accommodation for Contractor's personnel shall be a reasonable distance from the kitchen area, designated by the FDUL,

(t) Adequate fire extinguishers meeting current Occupation Safety and Health Act (OSHA), National Fire Protection Association (NFPA) 10# Class K standard in Kitchen Unit that has cooking equipment, and other extinguisher types as appropriate to their surroundings,

(u) Separation and rinsing of kitchen recyclable materials by type (glass, plastic, aluminum, and cardboard) when the Government is recycling on an Incident,

(v) A current copy of the Food and Drug Administration (FDA) Food Code issued by the U.S. Department of Health and Human Services to be kept with each MFSU at all times.

D.1.5 Contractor Responsibilities

The Contractor shall perform in a professional, cooperative, and workmanlike manner. All equipment and services are required to meet current Federal, State and local laws or regulations, the National Electric Code (NEC), the Uniform Plumbing Code (UPC), Federal and State potable water codes, Occupational Safety and Health Administration (OSHA), Food and Drug Administration Food Code (Food Code), National Restaurant Association Standard (NRA), National Sanitation Foundation Standards (NSF), and other contractual requirements. Specific Contractor responsibilities are listed below:

(a) Immediately report to the FDUL or Logistics Section Chief (LSC) to verify setup location upon arrival at the Incident site.

(b) All equipment shall be in acceptable condition and meet minimum equipment requirements. The Government reserves the right to reject equipment that is not in a safe or operable condition. Rejection of equipment may result in the release of the contractor from the incident. If a contractor is released due to non-compliance before serving the first meal, they will not be entitled to payment for mileage and the first meal as specified in Sections C.5.1.

The Government may allow the Contractor to correct minor deficiencies within 24 hours upon arriving at the incident. Repairs to equipment shall be made and paid for by the Contractor. At the Contractor's request, the Government may, at its option, make repairs when necessary to keep the equipment operating. The cost of such repairs will be determined by the Government and deducted from payments to the Contractor. No payment will be made for time the equipment was not available.

(c) Record, in a logbook, the minimum and maximum temperatures inside all refrigerator units. The temperatures shall be recorded a minimum of three times per day (at least 6 hours apart), between 4:00 a.m. and 12:00 a.m. The logbook shall be made accessible to the Government and Health Authorities at all times.

(d) Contain all grease products.

(e) Maintain all facilities and equipment used for meal preparation, serving, storage, seating, and cleanup in a sanitary condition. General cleanup shall include cleaning tables, condiment containers and chairs, removing trash from around the eating area.

(f) Ensure that employees are neat and clean. All employees shall wear uniforms; a tee- shirt or baseball cap will suffice as a uniform. Key Personnel will wear identification tags that clearly show the employee's name, position and identifies the MFSU Contractor's company. Food service employees shall wear hair restraints such as hats, hair coverings or nets, beard restraints, and clothing that cover body hair. Long hair hanging out of hats does not meet this requirement. Single-use, food-service gloves shall be worn when handling ready to eat foods and during meal service. Gloves will be changed during the shift as needed and especially when a change in duties occurs i.e., taking out trash, cleaning, preparing, and serving food. Clean aprons are required throughout the shift.

(g) Ensure employees cooking or handling food are free of communicable diseases. The Contractor shall train employees in the importance of hand washing as a means of preventing the spread of food borne illnesses.

(h) Ensure each MFSU Key Personnel (Food Service Unit Manager, Kitchen Manager, Assistant Kitchen Manager, and Supervisory Cook) hold a Certificate of Completion for Certified Food Protection Manager in food service management, handling, and sanitation training.

(i) Ensure all food handlers have completed at a minimum a ServSafe® Food Handler's course.

(j) The MFSU Manager shall be responsible for training/supervising all employees in food preparation, handling, packaging, food serving, and cleanup requirements. A MFSU Manager or designated representative shall be available on-site at all times. All representatives shall be designated in writing and have all the certifications, training, and authority of the MFSU Manager.

(k) Ensure all Food Protection Manager and ServSafe® Certificates for managers and employees are posted in the MFSU.

(l) No alcoholic beverages and/or controlled substances are allowed. There shall be no use of tobacco or nicotine products within the immediate area of or in the MFSU.

(m) Ensure that only those Contractor employees essential to the mission remain at the Incident.

(n) Provide rodent, insect, and dust control in all areas within the MFSU where food is stored, prepared, served or eaten.

(o) Maintain copies of the contract; all modifications; invoice forms; Quality Control Plan and Work/Rest Plan with the MFSU at all times. Completed past performance evaluation forms shall be kept with the unit at all times. The Quality Control Plan shall address the Contractor's self- inspection procedures. The Work/Rest Plan shall address the Contractor's oversight and monitoring of work/rest and length of assignment guidelines.

Note: During the Option Years, evaluation forms from the current contract cycle shall be kept with the MFSU at all times.

(p) Food shall be prepared and cooked inside enclosed units, with the exception of food cooked and served from FDUL approved outdoor barbecues and smokers. Outdoor barbecues/smokers will be used in compliance with current fire restrictions.

Note: Barbecues will be allowed if the FDUL inspects and approves the use based on the sanitary condition of the equipment.

(q) All hot food shall be served with utensils from the kitchen unit, with the exception of beverages, soup and hot cereal which may be self-served from self-contained heated holding equipment at the breakfast/salad bar.

(r) The Contractor shall perform one microbiological test for total coliform bacteria upon arrival at the incident and once every 30 days afterwards. The Contractor shall be responsible for performing and paying for these routine tests. The Contractor will be reimbursed for additional water testing fees if the Government requires a water sample to be submitted more than once every 30 days or if the Government chooses to change water sources, while the unit is assigned to the same incident. The costs of the additional water tests will be added as a credit on Form 1276-B Daily Meal Order/Invoice – Mobile Food Services (Continuation Sheet). The purpose for the required additional water test shall be clearly documented on the invoice form.

Note: Violation of any of the above requirements may result in suspension of the unit, poor past performance evaluation, risk not receiving a renewal of the next Option Period, and/or partial or complete termination of the Contractor's Mobile Food Service contract.

D.1.6 Minimum Mobile Food Unit Equipment Requirements

(a) Mobile Food Service Unit

A MFSU meeting all responsibilities cited in Exhibit D.1 Section D.1.5 Contractor Responsibilities shall consist of trailers where the cooking is done, sandwiches and salads are prepared, lunches are assembled, and where refrigerated fresh and frozen food and dry goods are stored. Each MFSU shall be capable of feeding 1,200 persons at breakfast and dinner at the minimum rate of 350 persons per hour and 1,500 Shift Provisions. Listed below are the minimum equipment requirements for a MFSU.

(1) Mobile Food Service Unit (Including All Peripheral Equipment):

(i) General:

(A) All food preparation and serving units shall be fully enclosed except when serving. A fully enclosed unit shall use one or a combination of the following methods to enclose the unit: 1) screens, 2) air curtains or 3) other effective means for rodent, insect, and dust control. Units that do not have screens or effective air curtains must keep all windows and doors closed.

(B) All equipment shall be sealed to the floor or raised at least 6” off the floor to prevent moisture from getting under the equipment.

(C) Equipment, including the interior of cabinets or compartments, walls, corners, ceilings, and floors shall be easily accessible and have easily cleanable surfaces. Equipment surfaces shall be free from channels, crevices, flanges, ledges, sharp or jagged edges, and other cleaning obstructions.

(D) Unfinished wood surfaces are not permitted. This requirement does not apply to pallets being used by distributors in delivery vehicles.

Food contact surfaces shall be constructed of stainless steel, high-pressure laminated plastics or other food grade material. These surfaces must be kept free of cracks, cuts, and other obstructions that would interfere with proper cleaning. Hard maple or an equivalent hard closed grain wood may be used for cutting boards.

(E) Utility and service lines shall not obstruct or prevent cleaning of floors, walls, and ceilings. Service lines may not be unnecessarily exposed.

(F) All junctures where floors and walls meet shall be coved. All seams, cracks, and junctures where walls and ceiling meet shall be sealed. Walls and ceilings shall have a smooth finish to allow easy cleaning.

(G) All plumbing equipment shall preserve potable water quality throughout the kitchen unit and peripheral equipment where potable water is stored and used. No galvanized pipe, fittings, or fixtures are allowed in the food zone, or food splash zone per National Sanitation Foundation (NSF) standards. Space around pipes, conduits, or hoses that extend through cabinets, floors, or outer walls shall be sealed.

(H) Light fixtures, light bulbs, and light tubes, etc., shall be covered with completely enclosed plastic safety shields, approved shatter proof type bulbs or the equivalent. All non-dedicated electrical receptacles will be ground fault protected.

(ii) Steam Table (Electric or Gas):

(A) Shall be capable of holding at least 4 full sized hotel pans (12" x 20").

(B) Shall be capable to maintain hot food at a minimum of 140° F.

(C) Steam tables shall be used for serving only and must be permanently installed inside the kitchen or serving trailer. Steam tables shall not be used in tents at any time.

(iii) Three Compartment Sink - One (1) three-compartment metal sink properly labeled for washing, rinsing, and sanitizing:

(A) Shall be equipped with continuous gravity flow or pressurized hot (120° F) and cold running water.

(B) The minimum dimensions of each compartment shall be 18" wide x 20” long x 12" deep (inside dimensions) or equivalent volume. The sink dimensions must accommodate all of the cooking pans being utilized.

(C) Shall be equipped with a mixing faucet capable of servicing any sink compartment.

(D) The sink shall have smooth sanitary drain boards or equivalent drying area.

(E) Sinks shall be labeled for the proper use (wash, rinse, sanitized).

(iv) Food Preparation Sink - One (1) food preparation sink:

(A) Shall be dedicated to food preparation only.

(B) Shall be maintained the same as any other food contact surface.

(v) Hand Washing Sinks for Contractor Personnel:

(A) Shall be provided within all food preparation, cooking, serving and ware washing area(s).

(B) Must have permanent plumbed sink fixtures.

(C) Hand Washing Sinks are to be used for hand washing only and shall be labeled as such.

(D) Shall be provided with hot and cold water, paper towels and antibacterial/phosphate free soap.

(E) Shall be labeled for handwashing only.

(vi) Hand Washing Sinks for Incident Personnel:

Each individual mobile hand washing station shall have the following:

(A) Sinks - Minimum eight (8) sinks per unit.

Each wash basin (sink) shall provide hot and cold water, shall control gray water, and shall have a minimum of one liquid soap dispenser and one enclosed paper towel dispenser for every two sinks.

(B) Faucets - Hot and cold water through a mixing faucet that allows for the washing of both hands while the water is running and have continuous hot water heating capable of maintaining 100º F.

(C) Paper Towels and Soap - One paper towel dispenser and one phosphate-free liquid soap dispenser for every two sinks.

(D) Ground covering and rain/shade protection (such as waterproof tents, awnings, and canopies) shall be provided and set up over all wash basins, unless exempted by the FDUL or LSC.

(E) Potable Water Storage Tank - Minimum 400 hundred gallons potable water holding capacity. Potable water tank shall be constructed of food grade safe, non-corrosive and non-absorbent material, have smooth easily cleanable surfaces and shall be designed with an access port for inspection and cleaning. The access port opening shall be flanged upward at least 13mm (1/2 inch) and be equipped with a cover to overlap the opening. The entire inside of the tank shall be visible and accessible for an ocular inspection, cleaning, and sanitizing. The tank shall be sloped to drain completely. Each tank shall have the size and description stenciled on it in letters no less than 4 inches high (for example: ("400 GAL - POTABLE WATER”). Shall be equipped with a locking cover or inside a locked trailer.

(F) Potable Water Pump - Potable water pumps shall be constructed of food grade materials and certified as National Sanitation Foundation NSF61.

(G) Gray Water Storage - Minimum 400 gallons gray water holding capacity with the size and description stenciled in letters no less than 4 inches high (for example: “400 GAL. GRAY WATER”).

(H) Lightning - Adequate self-contained outside lighting for use of the hand washing station in darkness.

(I) Mirrors are optional.

(vii) Ventilation Equipment:

(A) Hood System - An electrically powered exhaust hood ventilation system with grease filters or screens shall be provided over all cooking equipment to adequately remove cooking odors, smoke, steam, grease and vapors. The use of galvanized hoods, filters or screens is prohibited.

(B) Fire Extinguisher System - All exhaust hood ventilation systems shall be equipped with an NFPA approved automatic fire extinguisher system.

(C) Filters - Grease filters shall be constructed from stainless steel, aluminum or other (NSF approved material), and be readily accessible for cleaning.

(viii) Waste Receptacles shall be readily accessible, smooth, non-absorbent, and easy to clean.

(ix) Storage of cleaning supplies, insecticides, engine oil, and clothing shall be completely separate from food storage and food preparation areas.

(x) Sneeze guards shall be provided for all self-service food serving lines.

(2) Refrigeration/Freezer Storage Unit(s):

(i) Food in refrigeration and freezer storage units shall be stored a minimum of 6 inches off the floor; 4-inch plastic pallets may be used for temporary storage only. Adequate access must be provided; walking on pallets is not acceptable access.

(ii) Adequate refrigeration storage space, capable of maintaining stored food at a temperature of 41° F or lower and adequate freezer storage space capable of maintaining frozen food at 0° F is required.

(iii) Refrigeration and freezer storage units shall be equipped with a thermometer that is equivalent to a “min/max” type or a “continuous graphing” type. The thermometer shall be placed within 8 feet from the entrance.

(iv) Contractor owned or leased refrigeration and freezer storage units shall have shelving that is non-absorbent, non-corrodible, and easily cleanable. Wood is not acceptable.

(3) Sandwich Preparation Trailer:

(i) Shall maintain a temperature of 72° F or less.

(ii) Shall provide rodent, insect and dust control.

(iii) May be used for Shift Provision assembly.

(iv) Shall have shelving that is non-absorbent, non-corrodible, and easily cleanable. Wood is not acceptable. Storage on the floor or pallets is not allowed.

(4) Shift Provision Assembly Trailer:

(i) Shall maintain a temperature of 72° F or less during sack lunch assembly.

(ii) Shall provide rodent, insect, and dust control.

(iii) Shall have shelving that is non-absorbent, non-corrodible, and easily cleanable. Wood is not acceptable. Storage on the floor or pallets is

not allowed.

(5) Salad Bar Area:

(i) Shall be located in enclosed trailers or tents with sides and doors capable of providing effective protection from rodents, insects, and dust. If tent is utilized for the salad bar area, the entire tent area shall be covered with flooring used for keeping dust to a minimum. When the salad bar tent is set up on hard surface (asphalt, cement) additional flooring is not required.

(6) Potable Water Storage Tank – Equipment:

(i) Potable Water Storage Tank - Minimum 500 hundred gallons potable water holding capacity for kitchen use. Potable water tank shall be constructed of food grade safe, non-corrosive and non-absorbent material, have smooth easily cleanable surfaces and shall be designed with an access port for inspection, cleaning, and sanitizing. The access port opening shall be flanged upward at least 13mm (1/2 inch) and be equipped with a cover (lid) to overlap the opening. The entire inside of the tank shall be visible and accessible for an ocular inspection, cleaning, and sanitizing. The tank shall be sloped to drain completely. Each tank shall have the size and description stenciled on it in letters no less than 4 inches high (for example: ("500 GAL - POTABLE WATER”). Shall be equipped with a locking lid or inside a locked trailer.

(ii) Minimum of 480 gallons of potable water shall be provided in the storage tank(s) upon arrival at each incident which supersedes the requirement that the tank shall arrive empty as stated in the POTABLE WATER TANK SPECIFICATION in Exhibit D.8.

(7) Potable Water Pump - Potable water pumps shall be constructed of food grade material and National Sanitation Foundation NSF61 compliant.

(8) Gray Water Storage - A minimum enclosed storage capacity of at least 1,000 gallons of gray water storage shall be provided. The storage container(s) shall have the size and description stenciled on the container in letters no less than 4 inches high (for example: "1,000 GAL - GRAY WATER").

(9) Temporary Refrigeration Storage Space / Supplemental Tents and Seating / Supplemental Hot Food Delivery Vehicle

(i) Refrigeration – linear foot – space for government use priced per linear foot (lft) per day; for example, the government refer goes down and needs 2 lft for 2 days, that’d amount to $4 if $1 /lft /day ($1 /lft x 2 x 2 days = $4.00).

(ii) Tents – 20’ x 20’ (50 /ppl)

(iii) Hot Food Delivery Vehicle –

(A) Minimum holding capacity 200 hot meals.

(B) Daily transport of breakfast and dinner.

(C) Self-contained and thermostatically controlled hot food holding capability with minimum holding temperature of 140° degrees Fahrenheit.

(D) Six (6) hour minimum hot holding capability.

(E) Contractor provided 12” x 24” x 4” heavy duty disposable aluminum steamtable pans.

(F) Contractor provided aluminum foil/covers for steamtable pans.

(G) Exterior lighting at service doors (side and rear).

(H) Contractor provided oven mitts for hot pan transfer.

(I) Contractor responsible for all loading/unloading food in holding oven(s).

(J) Rodent, insect, dust and rain protection (environmental protection).

(K) Minimum of two (2) employees with ServSafe® certification.

(L) Contractor must meet the NWCG incident guidance for work-rest-ratio.

(b) Additional Safety Equipment

Any steps or platforms shall have solid handrails, not chain linked, in addition to other current OSHA standards for handrails and stairs (see 29 CFR 1910.23-1910.24). All Stationary equipment shall have oil spill containment kits consisting of both pads and pans, under the fuel tank, engine, and any other petroleum containers, except miscellaneous “fuel containers” under 5 gallons. Stationary equipment is defined as that remaining in one position for 24 hours or more, or that is parked in the same location for over 24 hours.

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D.1.7 Minimum Mobile Food Meal Requirements

(a) General

(1) Quantities, variety, and quality standards for meals are specified. The intent is for the Contractor to provide high quality, regular and vegetarian meals while providing for variety. The FDUL is responsible for notifying the Contractor of the number of meals required.

(2) Bi-weekly (14 days) menus shall be submitted within 24 hours of arrival at an incident by the Contractor for approval by the FDUL/LSC. Subsequent menus shall be submitted 2 days prior to the current bi-weekly menu expiring, for the duration of the incident. The menu forms in Exhibit D.6 of the solicitation are examples of the format that may be used when submitting the menu. The FDUL/LSC shall ensure that the variety and content proposed is in accordance with the contract specifications. The daily menus with portion sizes shall be posted at the dining area.

(3) Pre-cooked, canned, chopped, sliced, diced meats and processed items after the fourth meal shall be clearly listed as such on the menu and approved in advance by the FDUL and shall be used on a limited basis only.

(b) Standard Menu Requirements:

The Government retains its full right to reject any product offered if the quality of the product is rejected by users.

Standard menu items and quantities to be available per person are listed below for each type of meal.

(1) Hot Breakfast

(i) Eggs - 2 fresh eggs (3 when scrambled) or 6 oz. of liquid eggs (no egg product or powdered eggs). Fried or poached eggs a minimum of 3 times per week.

(ii) Meat 4 oz.

(iii) Non-meat (vegetarian) protein option 4 oz.

(iv) Milk ½ pint.

(v) Bread and Tortillas 1 to 2 oz.

(vi) Pancakes, French Toast, Waffles, Biscuits, or other bread equivalent 3 to 4 oz.

(vii) Potatoes 6 oz. or equivalent starch.

(viii) Fruit - Fresh (no apples or oranges) or Canned - 2 (1/2 cup) servings, at least one fresh option.

(ix) Chilled 100% Fruit Juice – minimum 5½ oz.

(x) Cooked Cereal - 6 oz. (3/4 cup).

(xi) Yogurt – a minimum of 4 oz. (1/2 cup).

(2) Hot Container Breakfast - Hot Container Breakfasts are to be the same quality and as the hot breakfasts served in camp. These meals shall be packed using Government furnished containers.

(i) Dry Cereal - 2 individual serving boxes, min of 3/4 oz. each.

(ii) Breakfast Meat Protein Item - One or more items with a combined weight of 8 oz.

(iii) Breakfast Non-Meat Protein Item (vegetarian) - One or more items with a combined weight of 8 oz.

(iv) Milk ½ pint.

(v) Bread or equivalent starch.

(vi) Fresh (no apples or oranges) or Canned Fruit (5 ½ oz.)

(vii) 100% Fruit Juice – minimum of 5½ oz.

(viii) Yogurt – minimum of 4 oz.

(3) Cold Container Breakfasts – Cold Container Breakfasts shall be packed using Government furnished Containers. A cold container breakfast shall contain the following items:

(i) Dry Cereal – 2 individual serving boxes, minimum of ¾ oz. each.

(ii) Breakfast Meat Protein Item – One or more items with a combined weight of 8 oz.

(iii) Breakfast Non-Meat Protein Item (vegetarian) – One or more items with a combined weight of 8 oz.

(iv) Milk – ½ pint.

(v) Bread or equivalent starch – 5 oz.

(vi) Fresh (no apples or oranges) or Canned Fruit – 5 ½ oz.

(vii) 100% Fruit Juice – minimum of 5 ½ oz.

(viii) Yogurt – minimum of 4 oz.

(4) In addition to the above, the items listed below shall be made available for the breakfast meals including hot and cold container meals:

(i) Butter, margarine, cream cheese (breakfast availability only), instant hot cereal, jelly or jam, peanut butter, salt, pepper, sugar, cream (or substitute), tea and hot chocolate. These items shall be individually packaged.

(ii) Salt, pepper, mustard, ketchup, steak sauce, salsa, hot peppers, brown sugar, raisins, or other dried fruit, shall be provided in approved dispensers or

original bottles in the dining tent area.

(iii) Appropriate items for hot and cold container breakfast will be determined and approved by the FDUL.

(iv) Brewed coffee and hot water for hot and cold container breakfasts shall be included at no additional cost if ordered by the FDUL.

(5) Shift Provisions: 2 Types are available:

(i) Regular and vegetarian, Shift Provisions shall be provided as ordered by the FDUL and prepared at incident. If lunches are approved to be made off-site a menu must be provided for approval by the LSC and all food item specification data sheets shall be attached. Off-site lunches not meeting this requirement will not be approved.

(ii) Vegetarian Shift Provisions shall be prepared for the Ovo-Lacto vegetarian classification level and shall consist of the same quantities and items as regular Shift Provisions. Non-meat protein substitutes such as vegetarian lunch meats require FDUL approval. Definition: Ovo-Lacto Vegetarian - This is the most common form of vegetarianism. Ovo-Lacto vegetarians do not eat meat, chicken, fish or flesh of any kind, but do eat eggs and dairy products. Subcategories are Ovo vegetarians that eat eggs but not dairy products, while Lacto vegetarians eat dairy products but not eggs, and dairy products.

(iii) The Shift Provisions (formerly known as sack lunch) consist of the primary entrée, seven shift food item categories (see table below) and the fruits and vegetables. The term Shift Provisions is used to support the idea of multiple eating episodes throughout the shift rather than items to supply a lunch during the work shift. In preparation of Shift Provisions, no two items in each category shall be the same. To ensure variety, shift food items shall not be repeated in a three-day period.

(iv) Shift Provisions shall consist of the following items:

(A) Primary Entree – 1 Sandwich/Wrap

1. The sandwich/wrap shall contain a minimum of 1.5 oz. of bread or bread equivalent. This is equivalent to two slices of bread or one tortilla.

2. The meat sandwich/wrap shall contain two different proteins totaling a minimum of 4 oz. (no artificial cheese product).

3. The vegetarian sandwich/wrap shall contain two different non-meat proteins totaling a minimum of 4 oz. (no artificial cheese products). No raw tofu; must be baked or prepared in some fashion.

4. Appropriate individually packaged condiments shall be provided and not be put directly on the sandwich.

(B) Secondary Entrée – Whole food item consisting of a minimum of 400 calories. Contractors may choose various items for the secondary entre, including second sandwich.

(C) Alternative Protein - Must provide a minimum of the following: 50 - 200 Calories > 5g protein. Tuna, beef or turkey jerky, hard-boiled eggs, hummus, nut butter, baked tofu, prepared tempeh, roasted edamame, or equivalent. No protein bars.

(D) Shift Provisions - Contractors shall select one item from each category listed. These items are to be included in packaging along with the primary entrée. To ensure variety, shift food items shall not include more than one type of bar per day and not be repeated in a three-day period. The table below outlines each food category.

Category	Specifications	Examples
Snack	Must provide a minimum of the following: - 100 - 300 Calories - 25 - 30g carbohydrate	R Bar, Rx Bars, Kind Bars, Clif Bar, Nutri-grain Bars, Nature Valley Bars, Nature Valley Fruit and Nut bars, or equivalent commercially prepared items.
Candy/Cookie/Desert	Must provide a minimum of the following: - 150 - 300 Calories - 15 - 30g carbohydrate	Candy such as Snickers, Twix, Skittles; Grandma's Cookies, Fig Newton's, Famous Amos or equivalent commercially prepared item.
Chips/Pretzels/Crackers	Must provide a minimum of the following: - 100 - 250 Calories - 20 - 30g carbohydrate	Chips; Pretzels; Popcorn, Individual bags of crackers or equivalent commercially prepared item.
Dried/Pureed Fruit	This item shall have a minimum nutritional value of at least 200 calories. All ingredients shall be identified and attached to the product for easy identification. (Note: Most dried fruits have a caloric value of approximately 75 calories per ounce.	Factory-wrapped or resealable, individually wrapped by the Contractor
Nuts/Seeds/Trail Mix	Must provide a minimum of the following: - 200 - 300 Calories - < 25g carbohydrates - >5g protein	Trail mix packets, almonds, cashews,peanuts, macadamia nuts, sunflower seeds, or equivalent commercially prepared item.
Trial Item	Must provide a minimum of the following: - 150 - 300 Calories - 15 – 30 g carbohydrate	May include various food items and types including examples listed above and other miscellaneous items which meet specifications.

* Note: No imitation cheese or cheese spread (except as a snack item) allowed.

(E) Fresh Fruit and Vegetables – Contractors shall select 3 items from this category (to include at least one fruit and one vegetable). These items will be included with the shift provisions and either contained in a re-sealable bag, container, or by itself. To ensure variety, shift

food items shall not be repeated in a three-day period.

Fruit Name	Minimum Size	Fruit Name	Minimum Size
Apple	100 Count, 3 ⅛" diameter (1 apple)	Nectarine	88-96 count, 2" – 2 ¼" diameter (1 nectarine)
Apricot	Medium (16 per lb.), fresh (2 whole apricots)	Orange	138 count 2 ¾" to 3 ¼" diameter (1 orange)
Avocado	1 avocado	Peach	Fresh, 80 count (1 peach)
Banana	150 count, 7" - 7 ⅞" (1 whole banana)	Pear	Fresh, 150 count (1 pear)
Blueberries	Medium size (roughly 65 to 95 berries per ½ cup)	Plum	Black/red, 2-inch diameter (1 plum)
Cherries	Fresh (14 cherries)	Raspberries	62 g or roughly 15 raspberries
Dates	3.5 oz. or roughly four pitted	Strawberries	Fresh, roughly 4 strawberries
Grapes	Fresh, seedless, (14 whole)	Tangerine	One large (2 ¾" diameter) or two small

- Fresh Fruit - Items listed with quantity needed to credit as a ½ cup serving minimum.
- Fruit minimum size as specified by US Food Grade 1.
- Red delicious and Granny Smith Apples can only be served once in a two-week cycle. Any exceptions to this require FDUL approval.
- Fresh Vegetables - Items listed with quantity needed to credit as a ½ cup serving minimum.

Vegetable Name	Minimum Quantity	Vegetable Name	Minimum Quantity
Broccoli Florets	4-5 florets	Peas, Snap/Snow	7 whole peas
Carrots	9 baby carrots – 2 inches length	Peppers, Bell	Equivalent to 1 whole bell
Celery	6 – 3" sticks	Tomatoes, Cherry	6 cherry tomatoes
Mini Cucumber	2 whole	Radishes	3 whole radishes

- Condiments - Four individual factory-wrapped packets of condiments appropriate for the items being served.
- Paper Napkin and Pre-Moistened Towelette - Two each.

(6) Hot Dinners

(i) Primary entrée/hot dinners shall include the items and quantities identified below. Any deviations from this rotation shall be approved by the FDUL in advance providing the variety is met.

Week	Day 1	Day 2	Day 3	Day 4	Day 5	Day 6	Day 7
1	Pork (Roast, Chops, or Loin)	Fish/Ground Beef or Bison	Stew/Ground Beef or equivalent	Chicken Breast	Beef or Pork Ribs	Poultry / Whole pieces or ground breast	Beef Steak
2	Pork Loin Roast	Fish/Sausage	Roast Beef	Poultry	Stew/Sliced Beef	Poultry / Whole pieces or ground breast	Beef Steak

(A) Whole/Full Muscle Meat (Raw Weight)

- Steak -10 oz. (boneless) or 14 oz. (bone-in), or
- Beef - 10 oz. (boneless) or 14 oz. (bone-in), or
- Beef and Pork Ribs - 10 oz. (boneless) or 18 oz. (bone-in), or
- Pork - 10 oz. (boneless) or 14 oz. (bone-in), or
- Poultry – 8 oz. (boneless) or 14 oz. (bone-in), or
- Fish – 8 oz.
- Bison – 10 oz. (boneless) or 14 oz. (bone-in)

Note: Any meat used that is not specified above must be the equivalent quantity and meet the dinner quality standards cited in Section D.1.7(g). The actual weight of any specific cut of meat shown above may vary in accordance with specifications covered under the USDA Institutional Meat Purchase Specifications (IMPS). The portion weight is specified on the supplier's label.

1. Precooked meat shall meet equivalent weight of raw meat products.

2. Vegetarian Entrée (when ordered)– shall be prepared for the OvoLacto vegetarian classification level and contain a variety of non-meat substitute equaling 8 oz. servings. Items containing less than the 8 oz. serving of non-meat protein will require supplemental protein items available;

3. Contractors may elect to serve an entree such as lasagna or casseroles. However, these entrees must have a meat/vegetarian side dish which ensures the total meat/vegetarian quantity standard is met.

(B) Secondary Entrée (Non Meat) – Shall contain 4 oz. or more of non-meat protein referenced in Section D.1.7(d).

(C) Vegetables - 4 oz. (1/2 cup) (cooked portion size).

(D) Potatoes – 8 oz. (1 cup diced, mashed, fried, or baked or 1 medium boiled/baked)) or equivalent starch (cooked portion size). Instant potatoes may only be served twice in 7 days.

(E) Bread - Two - 1 to 1½ oz. slices or equivalent starch.

(F) Milk - 1/2 pint.

(G) Dessert - 4 oz.

(H) Self-Service Salad Bar shall contain: One tossed green salad with equal amounts of three types of leafy vegetables, (may not include iceberg lettuce) seven salad toppings, including five fresh vegetables and two other toppings.

- Two prepared salads,
- One fresh fruit or fruit salad,
- Five types of salad dressings (regular and/or low/non-fat),
- Three salad condiments.

(7) Hot Container Dinners

(i) Primary entrée shall include the items and quantities identified below.

(A) Whole/Full Muscle Meat (Raw Weight)

- Steak -10 oz. (boneless) or 14 oz. (bone-in), or
- Beef - 10 oz. (boneless) or 14 oz. (bone-in), or
- Beef and Pork Ribs - 10 oz. (boneless) or 18 oz. (bone-in), or
- Pork - 10 oz. (boneless) or 14 oz. (bone-in), or
- Poultry - 8 oz. (boneless) or 14 oz. (bone-in), or
- Fish - 8 oz.

Note: Any meat used that is not specified above must be the equivalent quantity and meet the dinner quality standards cited in Section D.1.7(g). The actual weight of any specific cut of meat shown above may vary in accordance with specifications covered under the USDA Institutional Meat Purchase Specifications (IMPS). The portion weight is specified on the supplier's label.

Precooked meat shall meet equivalent weight of raw meat products.

(ii) Vegetarian Entrée – shall be prepared for the OvoLacto vegetarian classification level and contain a variety of non-meat substitute equaling 8 oz. servings.

Contractors may elect to serve an entree such as lasagna or casseroles. However, these entrees must have a meat/vegetarian side dish which ensures the total meat/vegetarian quantity standard is met.

(iii) Secondary Entrée Non-Meat Protein - Shall contain 4 oz. or more

of non-meat protein referenced in Section D.1.7(d).

(iv) Vegetables - 4 oz. (1/2 cup). (cooked portion size)

(v) Potatoes - 8 oz. (1 cup diced, mashed, or baked or 1 medium boiled/baked) or equivalent starch (cooked portion size). Instant potatoes may only be served twice in 7 days.

(vi) Bread - Two 1 to 1½ oz. slices or equivalent starch.

(vii) Milk - 1/2 pint.

(viii) Dessert - 4 oz.

(ix) Two salads - 4 oz. each

- One tossed green salad with equal amounts of three (3) types of leafy vegetables (may not include iceberg lettuce)
- Five fresh vegetable salad toppings and five types of salad dressings (regular and/or low/non-fat).
- One prepared salad.

(8) Additional Items for Hot Dinners and Hot Container Dinners - In addition to the above,the items listed below, shall be made available for the hot dinner meals: Appropriate items for hot container dinners will be determined by the FDUL.

(i) Butter, margarine, jelly or jam, peanut butter, sugar, cream (or substitute), tea and hot chocolate. These items shall be individually packaged.

(ii) Salsa, hot peppers, mustard, ketchup, steak sauce, salt, and pepper shall be provided in approved dispensers or original bottles in the dining tent area.

(iii) Brewed Coffee, Hot Water, Cold Drinks, and Iced Tea for hot container dinners shall be included at no additional cost if ordered by the FDUL.

(c) Twenty-Four Hour Service Bar

The following items shall be available in a service bar 24 hours per day at the incident dining area with the exception of cold cereal and milk, which shall be available between 4:00 a.m. and 10:00 a.m. There is no additional charge for any of these items, due to the fact that the costs for these items are calculated in the daily meal prices.

(1) Hot Regular Brewed Coffee (regular and decaffeinated). Flavored coffee may be served in addition to regular coffee at the Contractor’s option.

(i) Available 24-Hours. A high-quality ground or liquid concentrate shall be available. FDUL may purchase supplemental coffee by the gallon for consumption away from the dining area.

(ii) Available during Hot Meals. Fresh brewed coffee shall be made available

from high quality (ground) beans. If coffee is brewed outside, it must be in a tent with sides and flooring.

(2) Hot Water

(3) Hot Chocolate

(4) Tea Bags (regular and decaffeinated)

(5) Cold Drinks

(6) Iced Tea (regular and decaffeinated)

(7) Dry Cereal

(8) Milk

(d) Menu Variety

Menu items shall provide variety daily as to the types of meat and bread used in sandwiches, other shift provisions, fruit, snacks, juices, and other meal items served. Menus may include a wide variety of recipes.

If meat is an ingredient of a pre-cooked item, the meat portions per meal must meet the meat quantity standard defined in Exhibit D.1 Section D.1.7(b) Entrees such as stew, lasagna, spaghetti, linguine, chili, chicken chop suey or casseroles may be used if approved by the LSC and FDUL. The following are examples of variety options:

(1) Meat

(i) Beef

- Steaks - rib, loin, T-bone, New York, sirloin, filet, and pepper steak.
- Roast - Prime rib, pot roast.
- Short Ribs.
- Ground Beef - meat loaf, meatballs, tacos, lasagna, and ground beef patties.

(ii) Pork

- Chops - loin cut.
- Spareribs, country style ribs.
- Roast – sirloin, loin, tenderloin, or pulled pork.
- Ham.
- Sausage – links or patties.
- Bacon.

(iii) Poultry

- Whole pieces (such as breast, thigh or leg) or ground breast.
  - Chicken
  - Cornish Game Hens
  - Turkey

(iv) Fish – non-breaded fillets or steaks.

(v) Processed Meat Items - pastrami, Polish/Italian sausage and corned beef, salami, pepperoni.

(vi) Breakfast Meat - ham, bacon, sausage, steak, pork chops, hamburger patties.

(vii) Bison – Roast and burger.

(2) Vegetarian Meat Substitute - veggie patty, veggie ground round, tofu, tempeh. Seasoned beans, vegetarian patty, vegetarian sausage links, vegetarian hot dog, soybean product, quinoa, hummus, and assorted beans/legumes or equivalent.

(3) Eggs - Fried, hard-boiled, poached, omelets or scrambled.

(4) Bread and Equivalent Starches – white, whole wheat, 7-grain, rye, pumpernickel, French, garlic, biscuits, muffins, rolls, croissants, bagels, donuts, cornbread, sourdough,tortilla, and pita pockets.

(5) Breakfast Hot Starch - Pancakes, french toast, waffles or equivalent to include crepes, Mexican coquilles or quesadillas.

(6) Dry Cereal - Varieties of flaked, toasted, or baked cold cereals and granola.

(7) Hot Cereal – Oatmeal, grits, grains, or equivalents.

(8) Fresh Fruit - oranges, tangerines, apples, bananas, grapes, pears, peaches, plums, nectarines, grapefruit, melons, or berries.

(9) Fresh Vegetables - broccoli, cauliflower, asparagus, corn, peas, green beans, mixed vegetables.

(10) Potatoes and Equivalent Starches - baked, mashed, fried, boiled, scalloped, rice, stuffing, pasta, sweet potatoes, yams, and macaroni and cheese.

(11) Juice – 100% Juice: orange, tomato, grape, V8® type, apple, cranberry, orpineapple.

(12) Sandwich/wrap Meat - ham, corned beef, roast beef, turkey, pork, beef, pastrami, chicken, salami, sausage.

(13) Sandwich/wrap Cheese - Cheddar, Swiss, or other natural cheeses.

(14) Vegetarian Sandwich/Wrap Equivalent– Peanut Butter, hummus, quinoa, cheese, beans, vegetarian patty, tofu entrees, and burritos.

(15) Lunch Secondary Entrée – Sandwich, uncrusted sandwich, freshly made wrap, canned chili, canned stew, canned ravioli, canned macaroni and cheese, tuna pouch or can, lentils pouch, beans and rice pouch, canned fish, chicken pouch or can.

(16) Salad Bar -

(i) Fresh Salad Toppings - carrots, mushrooms, celery, onions, cauliflower, sweet bell peppers, broccoli, beets, peas, tomatoes, cucumbers, squash, avocado.

(ii) Other Salad Toppings – black, kidney, garbanzo or pinto beans; cheese, cottage cheese, eggs.

(iii) Prepared Salads - macaroni, carrot and raisin, potato, pea, coleslaw, fruit, rice, or pasta salads.

(iv) Tossed Salad Greens - romaine, endive, green leaf, red leaf, butter,spinach, or cabbage.

(v) Fresh Fruit - melons, peaches, grapes, bananas, strawberries, pears, or seasonal fruit.

(vi) Salad Dressings - regular and low/non-fat French, Ranch, Italian, Vinaigrette,Thousand Island, Blue Cheese or other acceptable varieties.

(vii) Salad Condiments - croutons, wheat nuts, sunflower seeds, pumpkin seeds, crackers and taco chips, bread sticks, olives, pickles, or other fresh pickled or marinated vegetables.

(17) Dessert - cakes, cookies, pies, cobblers, puddings, pastries, or ice cream.

(18) Tea - black, herbal, green, and spiced. Flavored tea may be served in addition to regular tea at the Contractor's option.

(19) Milk - white, (Whole, 2%, Skim, Rice, Almond, Soy), and Chocolate (must be purchased as chocolate milk).

(e) Cooking Requirements:

(1) All foods shall be cooked in accordance with the requirements stated below and identified in the current FDA Food Code to minimize health hazards.

(i) Ground Meat, Pork, Poultry, and Fish - All ground meat, pork, poultry,and fish shall be cooked well done to the minimum internal temperature defined in the current FDA Food Code or higher.

(ii) Whole Muscle Beef - Roast beef and steaks for sandwiches shall be well done. Roast beef and steaks for dinner meals may be medium rare to well done, as approved by the FDUL.

(iii) Fresh Eggs - Fresh eggs may be cooked to order. Fresh eggs cooked to order shall be cooked to heat all parts of the egg to the minimum internal

temperature defined in the current FDA Food Code or higher. Boiled eggs shall be well done.

(f) Serving Container Requirements:

(1) Milk - Shall be available in individual cartons, approved milk dispensers, or must be served from cartons or jugs. Milk must remain in the original purchase container.

(2) Juice - Shall be available in individual pop-top cans, non-crushable paper/foil type containers, and re-sealable plastic bottles. Approved dispensers may be used.

(3) Yogurt – shall be in individual factory packaged serving containers.

(4) Desserts - Shall be either served at the serving line, or in individually wrapped dishes or covered for protection from contamination if served at a dessert bar.

(5) Salad Dressing and Condiments - Shall be available in individual packets, approved dispensers, or original bottles. Salsa and hot peppers shall be served in approved containers at the salad bar.

(6) Bread - Shall be either served at the serving line or covered for protection from contamination if available at a salad bar. Tongs are required for self-service.

(7) Dry Cereal - Cold cereal shall be available in individual boxes or in approved bulk dispensers.

(g) Food Quality Standards:

(1) Beef, Bison, Pork, Poultry, and Fish:

The term “whole muscle” in this section shall mean whole muscle or sliced from whole muscle. Beef, bison, pork, poultry, and fish shall not contain additives in raw products. No more than 15% pump in all USDA Choice pre-cooked and/or further processed beef items with the exception of corned beef brisket which may be 20%.

(i) Beef - Fresh or fresh frozen whole/full muscle USDA inspected, USDA Choice or better with 1/4-inch trim, (lower grades of beef, including "no roll/select", are not acceptable).

(ii) Bison - Fresh or fresh frozen whole/full muscle USDA inspected with ¼ inch trim.

(iii) Ground Beef - USDA inspected 100 % ground beef or ground beef patties meeting USDA ingredient and labeling requirements, not to exceed 20% fat. Need not be USDA Choice.

(iv) Beef for Shift Provisions - USDA inspected, need not be USDA choice. Whole/full muscle, flats, top and bottom rounds and eye of the round only (no shoulder cuts allowed). Pre-cooked further processed beef or cured beef such as corned beef or pastrami may be used. No ground beef products shall be used. No soy additives shall be included in beef products. (No more than

15% pump in all precooked, further processed, or cured beef items, with the exception of corned beef brisket and pastrami, which shall not exceed 20% pump.) Roast beef for sandwiches shall not appear to have a "green sheen".

(v) Pork - USDA inspected, USDA Grades 1-4. Bacon, sausage, and whole/full muscle pork items. Whole/full muscle cured ham and natural juices or cured ham with water added not to exceed 15% pump (ham and water product, ham with water and isolated soy protein added and turkey-ham is not allowed).

(vi) Cornish Game Hens - Whole/full muscle, USDA inspected, need not be USDA Grade A.

(vii) Poultry - Whole raw chicken shall be obtained from USDA inspected facilities and shall be USDA Grade "A" whole/full muscle. Cut raw chicken product shall be obtained from USDA inspected facilities and may be USDA Grade "A" or equivalent. Cooked product that does not have a USDA grade shall have been obtained from USDA inspected facilities and purchased from among the supplier's top quality labels. Acknowledgement of a top-quality (Best Label) and equivalent product does not necessarily constitute acceptance as an end product if that product is otherwise objectionable in appearance, taste or quality. Processed or precooked turkey shall not exceed 3 lobes per product of breast meat only. No more than 15% pump in all processed or precooked poultry items. No soy additives, or chunked, chopped and/or formed product allowed.

(viii) Fish - Whole muscle steaks or fillets. No breaded, chunked, chopped, formed, pressed or imitation product allowed.

(2) Dairy Products - Pasteurized, USDA Grade A or better.

(3) Cheese - Natural cheese. No imitation cheese, cheese product, cream cheese, cheese food, or cheese spread (except as a snack item) allowed.

(4) Fresh Shelled Eggs - USDA inspected, Grade A.

(5) Frozen or Liquid Whole Egg(s) - USDA inspected and pasteurized. No egg product or powdered eggs.

(6) Canned Vegetables - US No. 1 or equivalent (top quality label).

(7) Canned Fruits - US No. 1 or equivalent (top quality label).

(8) Fresh Fruits and Vegetables - First Quality. When grading is available, fruit in the shift food provisions must be U.S. No. 1 or better. The Contractor shall provide documentation that validates that the quality of the product is equal to U.S. No. 1 or better. Containers, cases, and crates shall be marked for grade.

(9) Frozen Fruits and Vegetables (All Meals) - Grade A.

(10) Juice - 100% fruit juice, 100% fruit juice blend; 100% vegetable juice. All juice must be pasteurized.

(11) Dry Cereal (Breakfast) - Vitamin enriched.

(12) Bread – Whole grain or enriched.

(13) Coffee - Premium Grade or better.

(14) Tea - High quality.

(15) Oil - Pure vegetable oil and/or olive oil, no trans-fats.

(16) Prepared Salads - Top Quality label.

(17) Canned Tuna Fish - Chunk Light Tuna, Dolphin-safe, and water packed.

(18) Shift Food Items - Factory-wrapped or re-sealable individually wrapped by the contractor at the incident. All ingredients shall be listed on the label for easy identification.

(19) Dried fruit – Fruit dried without added sugar.

D.1.8 Packaging and Marking

(a) Shift Provisions - General:

(1) Shift Provisions shall be bagged in heavy-duty paper sacks, minimum 35# weight, to protect the food.

(2) The Government must be able to distinguish between vegetarian and regular Shift Provisions by use of different colored bags. Brown bags shall be used to designate regular lunches.

(3) Individual Shift Provisions shall be packed in cardboard boxes holding exactly 10 Shift Provisions in each box. A consume by date shall be written on the cardboard box.

(4) Sandwiches ordered as supplemental items or made off-site shall be individually wrapped in a plastic sandwich bags or other packaging and have the date and time made and consume by date clearly marked on the wrapping. The packaging shall keep the sandwiches intact and/or not excessively add to waste disposal; (i.e., no Styrofoam).

(5) Snack items must be individually wrapped with labels that clearly list all ingredients contained in the package for identification of food allergens.

(b) Shift Provisions and Supplemental Sandwiches:

Labels for all meat and cheese products used in off-site preparation of sandwiches shall be provided to FDUL for product approval. Sandwiches made from products that are not approved in advance may be deemed unacceptable.

(1) The FDUL shall determine how long Shift Provisions and supplemental sandwiches made on-site may be held after preparation. The “Consume by Date” is generally

within 24 hours of preparation date. A longer or shorter period of time may be deemed appropriate by the FDUL depending on refrigeration or storage conditions utilized.

(2) Shift Provisions shall be marked "Consume by (date and time; i.e. mm/dd, 00:00)". The “Consume by Date” cannot exceed 48 hours for lunches made off-site.

(3) All Supplemental Meat and Non-Meat Sandwiches – Shall be stamped or labeled "Prepared on (date and time; i.e. mm/dd, 00:00)”. The “Consume by Date” cannot exceed 48 hours for sandwiches made off-site.

(c) Frozen and Packaged Items:

Frozen items shall not be frozen longer than the manufacturer “use by date” and items shall be used by the manufacturer's “sell-by or expiration date”.

(d) Equipment Marking:

(1) Mobile Food Service Units - All vehicles comprising a complete Mobile Food Service Unit shall be permanently marked with Company Name, Unit Identification Number (UIN). Marking shall be in an obvious place and have letters no less than four inches in height.

(2) Potable Water Tanks - All potable water tanks shall have the size and use labeled on them in a conspicuous place with letters no less than 4 inches in height (for example: "500 GAL - POTABLE WATER").

(3) Gray Water Bladder Bags/Storage Containers - All gray water bladder bags/storage containers used shall have the size and use labeled on them in a conspicuous place with letters no less than 4 inches in height (for example: "1000 GAL - GRAY WATER").

(4) Hoses - All hoses shall be labeled at both ends to identify their use (i.e., gray or potable).

(e) Combination Hot Food/Drink Containers:

The Contractor is responsible for filling all combination Hot Food/Drink Containers, sealing, and stamping or labeling them with the date and time they were filled and the contents within. A statement as follows shall be stamped or labeled on the container:

Prepared on (date and time; i.e. mm/dd, 00:00).

Must be Served within _____ Hours of Time Prepared.

Contents: _____

The serving time is normally within 4 hours of filling, unless otherwise approved by the FDUL. Hot or cold container meals shall only be packed in Government furnished hot food containers (NFES 0244) and beverage containers (NFES 0246). All hot/cold food containers shall be labeled with food contents and portion size. Food for hot/cold container meals that is not temperature sensitive or is in individually packaged containers such as milk may be

packed in reusable coolers or sent without further packaging as approved by the FDUL. Portion size shall be in simple terms (for example: Corn - 2 scoops per person, Chicken - two pieces per person). FDUL shall manifest hot/cold containers to remote camps.

The Government may have official trial items which are allowed to deviate from these standards.

(f) Food Labels:

The quality standards of the foods served shall be clearly visible and/or verifiable. Meat and poultry quality standards shall be visible on the unopened boxes or individual packages. In the case of poultry, a USDA Poultry Certificate is also acceptable for verification. In the case of products other than meat or poultry, appropriate USDA/industry/food supply company standards must be visible and/or verifiable.

Examples of appropriate labeling are: USDA Choice beef package labeling shall clearly show the USDA inspection symbol (bug) and the USDA Choice shield or the words USDA Choice stamped on the box. USDA Grade A poultry package labeling shall clearly show the USDA inspection symbol (bug) and the USDA Grade A shield. Frozen fruits and vegetable packages shall clearly show the Grade A wording on the package or boxes, etc.

Food items in packages not clearly labeled or identified by a USDA certificate or other appropriate verifiable identification, properly identifying the quality standards required under this contract, may be rejected by the Government.

Note: Shift Provision or hot/cold can spreads, such as vendor made sandwich/wrap spreads, homemade burritos, etc. need to be labeled for content due to allergy or special diet needs.

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D.1.9 Performance Standards & Deductions

REQUIRED SERVICE	PERFORMANCE STANDARD	ACCEPTABLE QUALITY LEVEL	IMPACT ON PAYMENT
D.1.4 - Contractor Furnished Equipment, Supplies and Personnel	Supplies Equipment and Personnel meet operational needs of the MFSU and are available at all times.	No more than 2 substantiated supply, equipment, or personnel deviations identified within a 14-day period.	5% deduction from Block 27 "Total Invoice Amount". (each occurrence 3+ until resolved)
D.1.5 - Contractor Responsibilities	Contractor performs in a professional, cooperative and workmanlike manner and provided all supplies and services as specified.	No more than 3 substantiated customer complaints within a 14-day period.	5% deduction from Block 27 "Total Invoice Amount". (each occurrence 4+)
D.1.7(a)(2) – Minimum Mobile Food Meal Requirements	Contractor submitted a biweekly menu within 24 hours of arrival of the incident that provides a variety of high-quality meals that meet quality standards.	Submission of biweekly menu with high quality meals that meet quality standards occurs within 30 hours of contractor's arrival at the incident.	5% deduction from Block 27 "Total Invoice Amount".
D.1.7(b) - Standard Menu Requirements	Food meets quantities standards.	No more than 3 substantiated quantity deviations per meal period.	20% deduction from Block 16 "Total"-Meal Dependent.
D.1.7(b)(5) – Shift Provisions	Shift Provisions must be made on-site.	No more than 2 unapproved occasions where Shift Provisions are made off-site.	40% deduction from Block 16 "Total"-Shift Provisions.
D.1.7(d) - Menu Variety	Bi-weekly menus provide variety on a daily basis for all items served. Menus may include a wide variety of recipes.	No more than 2 substantiated variety deviations identified within a 14-day period.	10% deduction from Block 16 "Total"-Meal Dependent. (each occurrence 3+)
D.1.7(e) – Cooking Requirements	All food is cooked in accordance with stated requirements and as identified in the current FDA Food Code to minimize health hazard.	No more than 3 substantiated deviations per meal period.	20% deduction from Block 16 "Total"-Meal Dependent.
D.1.7(f) – Serving Container Requirements	Milk, juice, desserts, salad dressings, condiments, bread and dry cereal is served and available as specified.	No more than 3 substantiated deviations per meal period.	20% deduction from Block 16 "Total"-Meal Dependent.
D.1.7(g) - Food Quality Standards	All meats, poultry, fish, dairy products, canned or frozen vegetables and fruits, dry goods, breads, canned goods, coffee, tea, oil, prepared salad, and beef jerky meet specified qualitystandards.	No more than 3 substantiated quality deviations per meal period.	20% deduction from Block 16 "Total" Meal Dependent.
D.1.8 - Packaging and Marking	Contractor met packaging and labeling standards.	No more than 2 substantiated packaging/labeling deviations identified daily.	40% deduction from Block 16 "Total"-Shift Provisions.
D.1.5(h) - Key Personnel	Key Personnel are available at the incident.	Two (of the four) Key Personnel must be at the incident and available at all times.	25% deduction from Block 27 "Total Invoice Amount".

The Contractor is responsible for quality control and management actions to meet the performance requirements and terms of the Contract. The Government performs quality assurance to assess the quality of services rendered, if the services meet the contract requirements, and if the contract performance standards are achieved in accordance with this section (see **SAM.gov** Attachment ~~1~~: Government's Quality Assurance Surveillance Plan (QASP)).

(a) Impact on payment:

(1) A payment deduction for a specific meal and/or daily invoice may be recommended by the Government representative (that must be approved by the contract COR and/or CO) when substantiated deviations exceed the stated Acceptable Quality Level (AQL) listed in this table.

(i) Substantiated – verified with supporting information after government inspection/investigation.

(b) Surveillance:

(1) Performed by – FDUL, LSC, contract COR, and/or contract CO.

(2) Methods –

(i) Random visual checks and sampling - Contractor Furnished Equipment, Minimum Mobile Food Meal Requirements, Menu Variety, Shift Provisions, Supplies and Personnel; Food Quality Standards; Packaging and Marking; Key Personnel.

(ii) Submitted documents - Bi-weekly menu.

(iii) Review customer complaints - Contractor Responsibilities; Standard Menu Requirements.

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D.2 Exhibit 2: Mobile Food Service / Shower Facility Request Form

Incident Name: _____ Financial Code: _____

Resource Order #: _____ Food Service Request E #: _____

Shower Unit Request E #: _____

I. FOOD SERVICE: Requested Date, Time, Meal Types, and Number of Meals (Dinner will always be the first meal served)

Date of first meal: _____ Time of first meal: _____

Estimated number for the first three meals:

1st meal: _____ ☐ Dinner

2nd meal: _____ ☐ Hot Breakfast

3rd meal: _____ ☐ Shift Provisions/Sack Lunch

This Block for National Interagency Coordination Center Use Only

Actual agreed upon Date/Time first meals are to be served: Date:_____Time:_____

1st meal:_____ Dinner

2nd meal:_____ Hot Breakfast

3rd meal:_____ Shift Provisions

II. LOCATION

Reporting Location: _____

Contact person at the Incident: _____

III. ADDITIONAL INFORMATION

Spike Camps: Yes _____ No _____ Unknown _____

Estimated Duration of Incident: _____ Estimated Personnel at Peak: _____

Dispatch Contact: _____ Telephone Number:_____

IV. SHOWER SERVICE: Requested Date and Time Mobile Shower Unit is needed

Date Requested: _____ Time Requested: _____

Mobile Shower Unit type ordered: Large (12+ stalls) ☐ Small (4-11 stalls) ☐

National Interagency Coordination Center – 208-387-5400

This Block for National Interagency Coordination Center Use Only

Actual agreed upon Date/Time Mobile Shower Unit to be operational: Date:_____ Time:_____

D.3 Exhibit 3: Mobile Food Service Unit Inspection Form – submitted to - (Inspect.lwm9s5790cygsqli@u.box.com)

Contractor: _____ **Unit Number:** _____ **Contract Number:**_____
Date of Inspection: _____ **Incident:**_____ **Inspector Name:**_____

Performance Item	Performance Standard	Pass/Fail or Needs Improvement
D.1.4 - Contractor Furnished Equipment, Supplies and Personnel	Supplies Equipment and Personnel meet operational needs of the MFSU and are available at all times.	
D.1.5 - Contractor Responsibilities	Contractor performs in a professional, cooperative and workmanlike manner and provided all supplies and services as specified.	
C.7(b)(6) - Agreed Upon Delivery Schedule and Timely Performance.	Delivery of MFSU first meal on time.	
D.1.6 & D.1.7 - Equipment Requirements and Feeding Rates	Equipment and feeding rates meet minimum requirements.	
D.1.7(a)(2) - Minimum Mobile Food Meal Requirements	Contractor submitted a biweekly menu within 24 hours of arrival to the incident that provides a variety of high-quality meals that meet quality standards.	
D.1.7(b) - Standard Menu Requirements	Food meets quantities standards.	
D.1.7(c) - Twenty-Four Hour Service Bar	All required items are available 24 hours/day.	
D.1.7(d) - Menu Variety	Bi-weekly menus provide variety on a daily basis as to the types of meat and bread used in sandwiches, other shift provisions, fruit, snacks, juices and other meal items served. Menus may include a wide variety of recipes.	
D.1.7(e) - Cooking Requirements	All food is cooked in accordance with stated requirements and as identified in the current FDA Food Code to minimize health hazard.	
D.1.7(f) - Serving Container Requirements	Milk, juice, desserts, salad dressings, condiments, bread and dry cereal is served and available as specified.	
D.1.7(g) - Food Quality Standards	All meats, poultry, fish, dairy products, canned or frozen vegetables and fruits, dry goods, breads, canned goods, coffee, tea, oil, prepared salad, and beef jerky meet specified quality standards.	
D.1.8 - Packaging and Marking	Contractor met packaging and labeling standards.	
D.1.5(m) - Quality Control Plan and Inspections	The Contractor provided and maintained inspection system acceptable to the Government.	
D.1.5(h) - Key Personnel	Key Personnel are available at the incident at all times.	

Narrative Comments: _____

_____

_____

Government Representative		Contractor's Representative	
Signature:	Title:	Signature:	Title:
Phone:		Phone:	

D.4 Exhibit 4: National Mobile Food Services Performance Evaluation (1276-E)

(Reference: FAR 42.15)

Contractor Name	**Unit Number:**	**Contract/BPA No.**
		Incident Name
		Incident No.
		Inclusive Dates

Ratings: Summarize Contractor performance and check the descriptive rating corresponding to each rating category. (Rating definitions are on page two of this form.) The rating official must provide specific details and comments supporting each rating assigned.

Quality of Services/ Equipment	**Comments:**	☐ **Exceptional** ☐ **Very Good** ☐ **Satisfactory** ☐ **Marginal** ☐ **Unsatisfactory**
Schedule: • **Timeliness of Performance**	**Comments:**	☐ **Exceptional** ☐ **Very Good** ☐ **Satisfactory** ☐ **Marginal** ☐ **Unsatisfactory**
Management/ Business Relations: • **Working with Government & Other Contractors**	**Comments:**	☐ **Exceptional** ☐ **Very Good** ☐ **Satisfactory** ☐ **Marginal** ☐ **Unsatisfactory**

Additional Comments: Outstanding Workers and/or Individuals / Areas needing Improvement

Rating Official Name/Title	Rating Official Signature	Rating Official Phone No. Rating Official E-Mail:	Date
Contractor Representative Name/Title	Contractor Representative Signature. **This rating has been discussed with me**.	Contractor Rep Phone No. Contractor Rep E-Mail (Optional)	Date

Form 1276-E (06/2019)

Any Contractor comments regarding this performance evaluation must be submitted, in writing, to the Contracting Officer within 30 days of receipt by the Contractor's Representative.

SUBMIT ORIGINAL – perform.ct5w8ujitbvot9yi@u.box.com; Copy – KITCHEN UNIT; Copy – FDUL; Copy – USING AGENCY

Exhibit 4A: Evaluation Rating Definitions (Reference Table 42-1 Far 42.1503) (Continuation Sheet 1276-H)

Rating	Definition	Note
Exceptional	Performance meets contractual requirements and exceeds many to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with few minor problems for which corrective actions taken by the contractor were highly effective.	To justify an Exceptional rating, identify multiple significant events and state how they were of benefit to the Government. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
Very Good	Performance meets contractual requirements and exceeds some to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	To justify a Very Good rating, identify a significant event and state how it was a benefit to the Government. There should have been no significant weaknesses identified.
Satisfactory	Performance meets contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	To justify a Satisfactory rating, there should have been only minor problems, or major problems the contractor recovered from without impact to the contract/order. There should have been NO significant weaknesses identified. A fundamental principle of assigning ratings is that contractors will not be evaluated with a rating lower than Satisfactory solely for not performing beyond the requirements of the contract/order.
Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being evaluated reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	To justify Marginal performance, identify a significant event in each category that the contractor had trouble overcoming and state how it impacted the Government. A Marginal rating should be supported by referencing the management tool that notified the contractor of the contractual deficiency (e.g., management, quality, safety, or environmental deficiency report or letter).
Unsatisfactory	Performance does not meet most contractual requirements, and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective.	To justify an Unsatisfactory rating, identify multiple significant events in each category that the contractor had trouble overcoming and state how it impacted the Government. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating. An Unsatisfactory rating should be supported by referencing the management tools used to notify the contractor of the contractual deficiencies (e.g., management, quality, safety, or environmental deficiency reports, or letters).

Form 1276-H (06/2019)

Any Contractor comments regarding this performance evaluation must be submitted, in writing, to the Contracting Officer within 30 days of receipt by the Contractor's Representative.

SUBMIT ORIGINAL – perform.ct5w8ujitbvot9yi@u.box.com; Copy – KITCHEN UNIT; Copy – FDUL; Copy – USING AGENCY

D.5 Exhibit 5: Daily Meal Order/Invoice – Mobile Food Services

DAILY MEAL ORDER/INVOICE **MOBILE FOOD SERVICES**	**1.** Contract Number	**2.** Invoice Date / /	**3.** Mobile Food Service Unit ID No.	**4.** Invoice No.
	5. Incident Name	**6.** Job Code	**7.** Resource Order No. / Request No.	**8.** Benefiting Unit, Region / Agency
9. Paying Unit **Attn: Incident Business - Contracts** **Albuquerque Service Center** **101B Sun Avenue NE** **Albuquerque, NM 87109**	**10.** Contractor Name and Address			

11. Meal Period	Time to be Served	**12.** Meals Ordered and Time Ordered	**13.** Meals Served and Actual Time Meals Served	**14**. Number of Meals for PaymentPurposes		**15.** Price Per Meal	**16.** Totals
Breakfast				Breakfast		$	$
Cold Cntr Breakfast				Cold Cntr Breakfast		$	$
Shift Provisions				Shift Provisions		$	$
Dinner				Dinner		$	$
						17. SUB-TOTAL FOR MEALS	$
						18. MINIMUM DAILY GUARANTEE (See Section C.15(a)(2)(v))	$ 12,000.00

19. Unit ID Numbers		**20.** Location for Mileage (List Actual City Name)		**21.** Mileage		**22.** Mileage, Relocation, & Hand Wash Fees			**23.** Totals
				No. of Miles	Price per Mile	Unit No.	Price/Fee		
Kitchen Unit (MFSU)		From:			$		$	Mileage	$
Hand Wash Station		To:					$	Relocation Fee	$
							$	Hand Wash Usage Fee	$
								24. SUPPLEMENTAL ITEMS (total from 1276-B)	$
								25. MISCELLANEOUS CHARGES AND CREDITS (total from 1276-B)	$
								26. SUB-TOTAL FOR MILEAGE, RELOCATION FEE, HAND WASH SINKS, SUPPLEMENTAL ITEMS, MISCELLANEOUS CHARGES AND CREDITS	$
								Compare amounts for Items 17 and 18. Excluding first and last day of the assignment add the larger of these two amounts to the Sub-Total in Item 26 and enter the result in Item 27. Total Invoice Amount. **27. TOTAL INVOICE AMOUNT**	$

28. REMARKS	
29. I certify that the above-mentioned services have been received(Government Representative)	**30.** I certify that this bill is correct, and payment has not been received (Contractor Representative)
Name (print and sign), Title, Work Address & Phone No.	Name (print and sign), Title & Phone No.

1276-A (03/2014)

SUBMIT ORIGINAL–PAYING UNIT; Copy–CONTRACTOR; Copy–FDUL; Copy–USING AGENCY

D.5 Exhibit 5A: Daily Meal Order/Invoice – Mobile Food Services (Continuation Sheet)

31. SUPPLEMENTAL ITEMS

Date Ordered	Food Unit Leader			Contractor			Invoice No.
Item	Unit	Units Ordered	Units Received	Date Received& Initials		Unit Price	Extended Price
Beverages							
Bottled Sports Type Drink, i.e. Gatorade, etc.	ounce					$	$
Brewed Coffee (outside of incident dining area)	gallon					$	$
Hot Chocolate (outside of incident dining area)	gallon					$	$
Tea, Iced or Hot (outside of incident dining area)	gallon					$	$
Bottled Water (commercially available)	ounce					$	$
Ice	pound					$	$
Ground Coffee	pound					$	$
Other Food Items							
Sandwiches – Meat (Min. 25 qty.)	each					$	$
Sandwich - Non-Meat (Min. 25 qty.)	each					$	$
Soup	gallon						
Temporary Refrigeration Storage Space / Supplemental Tents and Seating / Hot Food Delivery Vehicle							
Temporary Refrigeration Storage Space	Linear foot					$	$
Supplemental Tents & Seating	day					$	$
Hot Food Delivery Vehicle (if applicable)	day					$	$
						TOTAL:	**$**

32. MISCELLANEOUS CHARGES AND CREDITS

Item	Description	Amount
		$
		$
		$
		$
		TOTAL: $

33. REMARKS

34. I certify that the above charges and/or credits are correct.

Government Representative Sign and Date	Contractor Representative Sign and date

1276-B (03/2014)

SUBMIT ORIGINAL–PAYING UNIT; Copy–CONTRACTOR; Copy–FDUL; COPY–USING AGENCY

D.5 Exhibit 5B: Guidance for Mobile Food Services Invoicing (Dated 6/21/2024)

1. The Contractor will use the spreadsheet daily sheets (D1 – D14) to input the DAILY MEAL ORDER INVOICE – MOBILE FOOD SERVICES (Exhibit D.5 and D.5A) totals for each day in the invoice package. The Summary Sheet will total all the items from each day to calculate an Invoice Total at the bottom of the Summary Sheet, for all days in the invoice package, to be submitted for payment.

2. The areas in green are the only areas where the Contractor may input data. The other areas of the daily sheets or Summary Sheet are protected as they contain the formulas to calculate the item and daily totals. The bottom total in the orange box is the total for each day and the Payment Total on the Summary Sheet is the total to be invoiced. The Payment Total is the value the automated "bot" will submit to IPP for payment.

3. The Contractor is required to use Exhibit D.5 and D.5A each day to create the Daily Meal Record to be signed by the Government Representative (generally a FDUL). The signed Daily Meal Records (Exhibit D5 and D.5A) must be provided in the invoice package as evidence of the Government Representative's acceptance of the Daily Meal Record.

4. The Contractor is required to email the Summary Sheet including all spreadsheet daily sheets (D1 – D14) and all supporting signed Daily Meal Records no less than every 7 days or at the end of an incident to **sm.fs.asc_eera@usda.gov** to be processed for payment.

5. The Government will process the invoices for payment and will periodically perform audits.

Contractor:			Starting Inv. No:	2023 - 0001	
Unit No.:			Ending Inv. No:	2023 - 0014	
Contract No.:			Inv. Start Date:		
			Inv. End Date:		
			Incident Name:		
			Incident Number:		
			Resource No.:		
* Green fields to be filled by contractor			Job Code:		
SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL QUANTITY	TOTAL CALCULATED AMOUNT
101	Hand Washing Unit Rate	Day	$0.00	0	$0.00
102	Mileage Rate	Mile	$0.00	0	$0.00
103	Breakfast Rate	Meal	$0.00	0	$0.00
104	Cold Can Breakfast Rate	Meal	$0.00	0	$0.00
105	Sack Lunch Rate	Meal	$0.00	0	$0.00
106	Dinner Rate	Meal	$0.00	0	$0.00
107	Relocation Fee Rate	Move	$0.00	0	$0.00
Supplemental Items					
110	Bottled Sports Type Drink	Ounce	$0.00	0	$0.00
111	Brewed Coffee	Gallon	$0.00	0	$0.00
112	Hot Chocolate	Gallon	$0.00	0	$0.00
113	Tea (iced or hot)	Gallon	$0.00	0	$0.00
114	Bottled Water	Ounce	$0.00	0	$0.00
115	Ice	Pound	$0.00	0	$0.00
116	Ground Coffee	Pound	$0.00	0	$0.00
117	Sandwiches Meat	Each	$0.00	0	$0.00
118	Sandwiches Non-Meat	Each	$0.00	0	$0.00
119	Soup	Gallon	$0.00	0	$0.00
120	Addtnl. Refer Space	/cu.ft.	$0.00	0	$0.00
121	Addtnl. Tents & Seating	/60 Pers.	$0.00	0	$0.00
Miscellaneous Charges and Credits					$0.00
Contract Guarantee Meals Served $12000					**$0.00**
	Summary Total ***		**$0.00**		
	Sumbit complete invoice package to : **sm.fs.asc_eera@usda.gov**				
	****Each email (invoice package) shall contain one Summary sheet and the supporting daily				
	sheets and corresponding, signed DAILY MEAL ORDER/INVOICE – MOBILE FOOD				
	SERVICES (Exhibit D.5 and D.5A) attached, for that payment package.****				

Contractor:	0		Daily Inv. No:	2022 - 0001	
Unit No.:	0		Invoice Date:	19-Jul-22	
Contract No.:	0		Incident Name:	0	
			Incident Number:	0	
			Resource No.:	0	
* Green fields to be filled by contractor			Job Code:	0	
	If this is the first or last day of incident type: yes				
SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	DAILY QUANTITY	TOTAL CALCULATED AMOUNT
101	Hand Washing Unit Rate	Day	$0.00		$0.00
102	Mileage Rate	Mile	$0.00		$0.00
103	Breakfast Rate	Meal	$0.00		$0.00
104	Cold Can Breakfast Rate	Meal	$0.00		$0.00
105	Sack Lunch Rate	Meal	$0.00		$0.00
106	Dinner Rate	Meal	$0.00		$0.00
107	Relocation Fee Rate	Move	$0.00		$0.00
Supplemental Items					
110	Bottled Sports Type Drink	Ounce	$0.00		$0.00
111	Brewed Coffee	Gallon	$0.00		$0.00
112	Hot Chocolate	Gallon	$0.00		$0.00
113	Tea (iced or hot)	Gallon	$0.00		$0.00
114	Bottled Water	Ounce	$0.00		$0.00
115	Ice	Pound	$0.00		$0.00
116	Ground Coffee	Pound	$0.00		$0.00
117	Sandwiches Meat	Each	$0.00		$0.00
118	Sandwiches Non-Meat	Each	$0.00		$0.00
119	Soup	Gallon	$0.00		$0.00
120	Addtnl. Refer Space	/cu.ft.	$0.00		$0.00
121	Addtnl. Tents & Seating	/60 Pers.	$0.00		$0.00
Miscellaneous Charges and Credits					$0.00
	Total Daily Amount:		**$0.00**		

D.5 Exhibit 5C: Guidance for Mobile Food Services *Lend-Lease* Invoicing (Dated 7/14/2024)

1. The Contractor will use the spreadsheet daily sheets (D1 – D14) to input the DAILY MEAL ORDER INVOICE – MOBILE FOOD SERVICES (Exhibit D.5 and D.5A) totals for each day in the invoice package. The Summary Sheet will total all the items from each day to calculate an Invoice Total at the bottom of the Summary Sheet, for all days in the invoice package, to be submitted for payment.

2. The areas in green are the only areas where the Contractor may input data. The other areas of the daily sheets or Summary Sheet are protected as they contain the formulas to calculate the item and daily totals. The bottom total in the orange box is the total for each day and the Payment Total on the Summary Sheet is the total to be invoiced. The Payment Total is the value the automated "bot" will submit to IPP for payment.

3. The Contractor is required to use Exhibit D.5 and D.5A each day to create the Daily Meal Record to be signed by the Government Representative (generally a FDUL). The signed Daily Meal Records (Exhibit D5 and D.5A) must be provided in the invoice package as evidence of the Government Representative's acceptance of the Daily Meal Record.

4. The Contractor is required to submit a Lend-Lease Summary Sheet including all spreadsheet daily sheets (D.1 – D.7) and all supporting signed Daily Meal Records at least every 3 days or at the end of an LL use to sm.fs.eera@usda.gov to be processed for payment.

5. The Government will process the invoices for payment and will periodically perform audits.

6. The Government will provide a separate S-## for invoicing purposes only. This should be provided by the local GACC.

7. Lend-Lease will count towards the minimum daily guarantee ($12,000.00) at the primary incident (E-## assignment) but in and of itself will not be eligible for the minimum daily guarantee.

8. Lend-Lease is only for support under a separate P-Code (job code) and/or incident name; spike camp services under the same P-Code as the original assignment does not count as Lend-Lease, it will continue to be invoiced as part of the original meals.

Contractor:	XYZ Company	Starting Inv. No:	2022 - 0001
Unit No.:	MFSU Unit X	Ending Inv. No:	2022 - 0007
Contract No.:	12024B20T25XX	Inv. Start Date:	1-Jun-22
		Inv. End Date:	7-Jun-22
		Incident Name:	Big Apple Fire
		Incident Number:	ID-PDF-000001
LEND-LEASE ONLY		Resource No.:	S-
* Green fields to be filled by contractor		Job Code:	ABC-20-5600

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	TOTAL QUANTITY	TOTAL CALCULATED AMOUNT
103	Breakfast Rate	Meal	$0.00	0	$0.00
104	Cold Can Breakfast Rate	Meal	$0.00	0	$0.00
105	Sack Lunch Rate	Meal	$0.00	0	$0.00
106	Dinner Rate	Meal	$0.00	0	$0.00
	Supplemental Items				
110	Bottled Sports Type Drink	Ounce	$0.00	0	$0.00
111	Brewed Coffee	Gallon	$0.00	0	$0.00
112	Hot Chocolate	Gallon	$0.00	0	$0.00
113	Tea (iced or hot)	Gallon	$0.00	0	$0.00
114	Bottled Water	Ounce	$0.00	0	$0.00
115	Ice	Pound	$0.00	0	$0.00
116	Ground Coffee	Pound	$0.00	0	$0.00
117	Sandwiches Meat	Each	$0.00	0	$0.00
118	Sandwiches Non-Meat	Each	$0.00	0	$0.00
119	Soup	Gallon	$0.00	0	$0.00
Miscellaneous Charges and Credits					$ -
	Invoice Total		**$0.00**		

Sumbit complete invoice package to : **sm.fs.asc_eera@usda.gov**
****Each email (invoice package) shall contain one Summary sheet and the supporting daily sheets and corresponding, signed DAILY MEAL ORDER/INVOICE – MOBILE FOOD SERVICES (Exhibit D.5 and D.5A) attached, for that payment package.****

Contractor:	XYZ Company	Daily Inv. No:	2022 - 0001
Unit No.:	MFSU Unit X	Invoice Date:	1-Jun-22
Contract No.:	12024B20T25XX	Incident Name:	Big Apple Fire
		Incident Number:	ID-PDF-000001
LEND-LEASE ONLY		Resource No.:	S-
* Green fields to be filled by contractor		Job Code:	ABC-20-5600

SUB ITEM	ITEM DESCRIPTION	UNIT OF MEASURE	PRICE PER UNIT	DAILY QUANTITY	TOTAL CALCULATED AMOUNT
103	Breakfast Rate	Meal	$0.00		$0.00
104	Cold Can Breakfast Rate	Meal	$0.00		$0.00
105	Sack Lunch Rate	Meal	$0.00		$0.00
106	Dinner Rate	Meal	$0.00		$0.00
	Supplemental Items				
110	Bottled Sports Type Drink	Ounce	$0.00		$0.00
111	Brewed Coffee	Gallon	$0.00		$0.00
112	Hot Chocolate	Gallon	$0.00		$0.00
113	Tea (iced or hot)	Gallon	$0.00		$0.00
114	Bottled Water	Ounce	$0.00		$0.00
115	Ice	Pound	$0.00		$0.00
116	Ground Coffee	Pound	$0.00		$0.00
117	Sandwiches Meat	Each	$0.00		$0.00
118	Sandwiches Non-Meat	Each	$0.00		$0.00
119	Soup	Gallon	$0.00		$0.00
Miscellaneous Charges and Credits					$0.00
	Total Daily Amount:		**$0.00**		

D.5 Exhibit 5D: ICS 213 Deduction Form National MFSU

Currently PDF, will include at solicitation.

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D.5 Exhibit 5E: Vendor Forest Service Incident Payment Information

(Keep for reference during fire season)

- All Forest Service Incident Contract payments will be made through IPP (Invoice Processing Platform) on behalf of the vendor starting 2022 Fire Season
- Invoices will continue to be sent to ASC EERA inbox: sm.fs.asc_eera@usda.gov
  - Invoices need to be thoroughly reviewed prior to submission.

Invoice Processing Platform (IPP)

- What does this mean for the Vendor?
  - Vendors may see increased e-mail communication from IPP
  - Vendors **DO NOT** initiate payment in IPP for this process. Invoices will be created on behalf of the vendor in IPP for incident contracts that are paid by the U.S. Forest Service.
  - Payment agency might be other than the Forest Service, depending on incident jurisdiction and contract type. Please review your contract/agreement for that information.
  - To minimize payment delay:
    - Thoroughly review invoices for accuracy PRIOR to signature
    - Make sure electronic POC in SAM is up to date
    - Keep SAM Active and EFT (Electronic Fund Transfer) information updated
- Vendor Enrollment into the IPP system:
  - Enrollment will be initiated by the agency and will be completed by IPP. Once enrolled, vendors will receive two emails with an IPP login ID and a temporary password. *Note- these emails do periodically end up in your SPAM (junk folder) so make sure to check that location for ID and Password.
  - If you are working with a government agency that uses IPP for payment and would like to enroll your organization to receive an IPP account prior to initial invoice, please complete the following steps:
    - Go to https://www.ipp.gov/vendors/enrollment-vendors and follow the steps.
    - This is not a required step in order to be paid in IPP.
  - By completing one of the steps above, vendors will be able to monitor invoice status within IPP under the collector portal.
  - Reminder: Active SAM registration is **Required**.
- IPP Training and Vendor Information: https://www.ipp.gov/vendors/index
  - To help vendors understand how their companies can use the IPP Collector module, IPP offers training in a variety of formats. See below for information on webinars and print-based documentation designed to help vendors learn the fundamentals of using IPP:
    - Vendor Training Page
    - IPP Collector User Guide
    - Quick Reference Guide

Invoice Issues

- Attempt to resolve invoice issues with the incident prior to signing the invoice.
- If invoice status questions cannot be answered by checking IPP, vendors may call or e-mail the ASC B&F Contact Center at **1-877-372-7248 or asc_support@usda.gov**
- Vendors need to have the following information for status of invoice (whether calling or emailing):
  - Name of Company/Name as written on the invoice
  - Agreement Number
  - Incident Name/Number
  - Resource Order Number
  - Incident Dates of Service
  - Amount of invoice
  - Date Invoiced was Signed

Version 1.1 | 04/10/2022

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D.6 Exhibit 6: Sample Contractor Menus

(For Advance Approval by FDUL)

SERVING DATES_____ **CONTRACTOR/UNIT**_____ **FIRE INCIDENT**_____

HOT AND HOT CONTAINER BREAKFASTS	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	*APPROVED* YES	*APPROVED* NO	*SERVED* YES	*SERVED* NO
EGGS, fresh (2 or 3) ;or liquid (6oz)											
MEAT, Four (4) oz. Raw Weight Type: Fresh **OR** Frozen **OR** Precooked											
Non-MEAT, Four (4) oz. Raw Weight Type: Fresh **OR** Frozen **OR** Precooked											
BREAD, 1 – 1 1/2 oz. Pancakes, French Toast or Waffles; 3to 4 oz, **AND** Potatoes, 6 oz.											
MILK, ½ Pint Whole, 2%, Skim, Rice, Soy, Almond White and Chocolate											
FRUIT, Fresh **OR** Canned **AND** 100% Juice, 5 ½ oz.											
CEREAL, Cooked, 6 oz.											
YOGURT, 4 oz.											

PROPOSED BY_____ **DATE**_____ **APPROVED BY**_____ **DATE**_____

Kitchen Manager *Food Unit Leader*

--All changes to a previously approved menu MUST be reviewed and approved in advance by the Food Unit Leader.

--This form does not constitute an order for meals. It verifies ONLY advance agreement on, and approval of the Contractor's menu items.

D.6 Exhibit 6: Sample Contractor Menus, Continued

(For Advance Approval by FDUL)

SERVING DATES_____ **CONTRACTOR/UNIT**_____ **FIRE INCIDENT**_____

COLD CONTAINER BREAKFASTS	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	APPROVED YES	APPROVED NO	SERVED YES	SERVED NO
CEREAL, Dry-Cold, Two (2), ¾ oz.											
BREAKFAST MEAT PROTEIN ITEM, Minimum 8 oz											
BREAKFAST Non-MEAT PROTEIN ITEM, Minimum 8 oz											
100% JUICE, One (1), Minimum 5 ½oz.											
MUFFINS **OR** Equivalent Equal - 5oz.											
MILK, ½ Pint Whole, 2%, Skim, Rice, Soy White and Chocolate											
FRUIT, Fresh **OR** Canned 5 ½ oz. **OR**											
YOGURT, Minimum 4 oz.											

PROPOSED BY_____ **DATE**_____ **APPROVED BY**_____ **DATE**_____

Kitchen Manager *Food Unit Leader*

--All changes to a previously approved menu MUST be reviewed and approved in advance by the Food Unit Leader.

--This form does not constitute an order for meals. It verifies ONLY advance agreement on, and approval of the Contractor's menu items.

D.6 Exhibit 6: Sample Contractor Menus, Continued

(For Advance Approval by FDUL)

SERVING DATES_____ **CONTRACTOR/UNIT**_____ **FIRE INCIDENT**_____

HOT AND HOT CONTAINER DINNERS	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	*APPROVED* YES	*APPROVED* NO	*SERVED* YES	*SERVED* NO
ENTREE 1-Meat Type:											
ENTRÉE 2-Non Meat, 4 oz.											
VEGETABLES, 4 oz.											
POTATOES **OR** Substitute, 6 oz.											
BREAD, Two (2) slices, 1 to 1 ½ oz.											
MILK, ½ Pint Whole, 2%, Skim, Rice, Soy, Almond White and Chocolate											
DESSERT, 4 oz.											
SALAD FOR HOT CONTAINER, Two (2) types One (1) tossed green **AND** One (1) prepared.											
SALAD BAR, One (1) Tossed Green Salad **AND** Two (2) Prepared Salads **AND** One (1) Fresh Fruit or Fruit Salad Seven (7) Salad Toppings (5 fresh vegetable, 2 other) Three (3) other salad toppings											

PROPOSED BY_____ **DATE**_____ **APPROVED BY**_____ **DATE**_____

Kitchen Manager *Food Unit Leader*

--All changes to a previously approved menu MUST be reviewed and approved in advance by the Food Unit Leader.
--This form does not constitute an order for meals. It verifies ONLY advance agreement on, and approval of the Contractor's menu items.

D.7 Exhibit 7: Shift Provisions Options

SHIFT PROVISIONS	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	DATE:	YES	NO	YES	NO
PRIMARY ENTREE 1- Type: Sandwich/Wrap											
VEGETARIAN PRIMARY ENTRÉE 1- Sandwich/Wrap Non Meat, 4 oz.											
FOOD BAR											
SNACK BAR											
CANDY/COOKIE/DESSERT											
CHIPS/PRETZELS/CRACKERS											
ALTERNATIVE PROTEIN											
NUTS/SEEDS/TRAILMIX											
TRIAL ITEM											
FRESH FRUIT AND VEGETABLES #1											
FRESH FRUIT AND VEGETABLES #2											
FRESH FRUIT AND VEGETABLES #3											

D.8 Exhibit 8: Potable Water Standards

Potable Water Tank Specification (Revised 10/20/17)

Equipment Requirements

The potable water system, including filling hose and lines, pumps, tanks, and distributing pipes, shall be separate and distinct from other water systems.

Potable water tanks shall be:

(a) Used exclusively for drinking water. Do not use containers from non-food products. Do not use containers that have ever been previously used for gray water, toxic or bio-hazardous substances. (Reference: Code of Federal Regulations, Title 21, Section 129.40)

(b) Clearly and conspicuously labeled with the words "POTABLE" or "FOR DRINKING WATER USE ONLY" on both sides of the tank in lettering at least 4 inches in height. The capacity of the tank (in gallons) displayed on both sides of the tank or on both cab doors in lettering at least 2 inches in height. Name and address of Contractor shall appear on both sides of the tank or on both truck cab doors in lettering at least 2 inches in height. A seal or sticker provided by the State or local authority shall be affixed to the upper left quarter of the rear of the tank or other location if specified by the issuing agency and shall be visible at all times indicating that the tankhas been inspected, certified and found to be in compliance with State requirements. If stickers are not provided by a State, a copy of the certificate or label shall be kept in the transport vehicle at all times. An annual inspection and certification of the tank by the local health authority is required. In addition, the carrier shall meet all laws and regulations for hauling on public roads. If the tank is part of the transport vehicle, then both the tank and vehicle shall meet State requirements, and the appropriate inspection and certification will be maintained for the vehicle. If the State does not do certification, then the hiring agency will be responsible for inspecting and ensuring the tank meets the requirements.

(c) Made of non-toxic, non-corrodible/nonabsorbent materials or coated with non-toxic coatings National Safety Foundation (NSF) International Standard 61 that can be adequately cleaned and sanitized. Examples are stainless steel, food contact plastics (polyethylene), and food contact epoxy coatings. Surfaces that come in contact with water shall be smooth, without pits, dents, or crimps that may hold contaminating matter, and welds shall be of non-corrosive material.

Tank Construction

Tanks shall be constructed to the following requirements at a minimum and meet all State requirements for certification compliance if the State has these established:

Openings: Hatches and other openings shall be completely covered and sealed with tight fitting coverings (lids), permanently mounted food-grade gaskets, and security locks. Water inlets and outlets shall be equipped with threaded or clamped caps, tethered to the ports with chain or cable. Inlet and outlet caps shall be in place on all fittings except when water is being discharged or loaded.

Tank vents: Vents will be designed to prevent water contamination. Tanks shall be vented by a downward facing, or otherwise protected vent opening of a sufficient size to allow air to replace water as it is discharged. This opening shall be protected by an appropriate screen as requiredin the state that certifies the equipment. If a State does not certify the equipment, the screen shall be made from non-toxic, non-absorbent material at a minimum.

Drain: Each potable water tank shall provide a means of drainage and, if it is equipped with a manhole, overflow, vent, or a device for measuring depth of water, provision shall be made to prevent entrance into the tank of any contaminating substance. No deck or sanitary drain or pipe carrying non-potable water or liquid shall be permitted to pass through the tank. A bottom drain shall be provided to facilitate complete discharge of water during sanitation procedures.

Tank Filling Mechanisms

There shall be no backflow or cross connection between potable water systems and any other systems. Pipes and fittings conveying potable water to any fixture, apparatus, or equipment shall be installed in such a way to prevent backflow. Waste pipes from any part of the potable water system, including treatment devices, discharging to a drain, shall be suitably protected against backflow. Either of the following methods may be used:

(1) An approved backflow prevention device complying with Uniform Plumbing Codes 603.3.1, 2, 3, 4, 5 and 8 such as acceptable double check valves on the direct filling connection to the tank. No connections shall be located between the tank and the checkvalve.

(2) Overhead filling through a hatch opening at the top of the tank; the filling spout must not be allowed to intrude into the tank further than two diameters of the filling pipe abovethe highest water level that is possible when the tank is filled. If an overhead filler pipe is mounted on the vehicle, when not being used for filling, this pipe shall be capped at eachend with threaded or clamped caps and tethered to the fittings at the ends of the filler pipe.

Sanitary techniques must be observed in the water transfer operation. Care must be exercisedto prevent foreign materials from entering the water. Since contamination could be present on the exterior surfaces of hoses or pipes, they must never be submerged in a receiving vessel. Adequate cleaning and sanitizing procedures shall be used on hauling vehicle(s) and associated equipment at the following times:

(1) When the equipment is placed into service, or when it has been unused and storedin a sealed condition for a period of 4 weeks or more.

(2) When the filled or empty tank has been exposed by open or unsealed cover caps or fittings to any condition of possible contamination of the tank or contents, including contact with dust, smoke, rain, or chemical substances.

(3) When any fault or defect becomes apparent in the seals, vents, hatch doors, welds, valves, pipes, pumps, hoses or other equipment that may contaminate the water.

(4) When bacterial analysis of the water indicates presence of coliform bacteria.

Pumps

Pumps shall be made of food grade materials meeting NSF International Standard 61. Only potable/food grade water pumps which can be readily disassembled to demonstrate the condition

of the impeller and impeller chamber shall be used. Internal pump water contact surfaces, including seals and bearings must be constructed from food grade materials or materials meeting NSF International Standard 61 and must be smooth, non-porous, and corrosion resistant. Lubricants must be food grade or a material meeting NSF International Standard 61 The Contractor shall have available at all times the manufactures product data sheet that demonstrates the materials in the pump housing are made of food grade material orstates the pump is suitable for Domestic, Sanitary or Potable water use.

Note: Unacceptable Pumps: Any pump using non-food grade lubricant, seals or bearings; porous, pitted or corroded impellers or impeller chamber surfaces; cast ironpumps; petroleum lubricated pumps.

Hoses, Fittings, Valves and Similar Equipment

Hoses, Fittings, Valves and Similar Equipment shall have a smooth interior surface made of food-grade standard materials or materials meeting NSF International Standard 61; shall be kept clean, disinfected and operated or handled in a manner that prevents contamination; andcapped or closed when not in use. Hoses shall be marked/labeled “potable water” and the useof galvanized pipes or fittings is prohibited. The ends of all hoses shall be provided with threaded or clamped caps. Such caps shall be in place when hoses are not in use. Hoses in storage compartments must also be capped.

Operational Requirements and Bacterial Testing

Hauled water is vulnerable to increased handling, diversity of source, variability in hauling equipment, and shall not be stored in the vehicle for a period greater than one week. All hauling equipment must be clean and in good condition. In addition, all water-contact surfaces in hauling and storage facilities shall be disinfected prior to use.

All equipment surfaces intended for potable water contact, including source fill point equipment, containers, caps, tanks, hoses, valves, and fittings shall be inspected, washed, rinsed, sanitized, and replaced as often as necessary to effect and maintain sanitation of such surfaces.

Procedures to be used are listed in Title 21, Code of Federal Regulations Part 129.80 (21 CFR 129.80). Disinfection needs to occur before being put in service, or when it has been unused and stored in a sealed condition after a period of 4 weeks or more, or after any food product has been hauled. Follow applicable State specifications/guidelines for disinfection of tanks either where the equipment was certified or to the standards where the equipment is going to be used if crossing state boundaries. When no applicable State specifications/guidelines for disinfection of tanks exist, at a minimum, the tank shall be thoroughly cleaned and disinfected. After 24 hours contact time with the disinfecting solution, the tank shall be drained and flushed with drinking water.

Written procedures for equipment cleaning and sanitizing shall be maintained by the Contractor and shall be kept with the hauling vehicle at all times. These procedures shall include the names, amounts, and contact times of cleaning and sanitizing agents to be used. The frequency of equipment cleaning and sanitizing must be tracked in a log to be kept with the vehicle at all times. A copy of the Contractor’s equipment cleaning and sanitizing procedures log shall be provided to the Contracting Officer or designated Government Representative upon request.

At a minimum or when required by the local jurisdiction or State Law one microbiological test for total coliform shall be performed within 2 established business days of the time of arrival at

the incident at a certified laboratory. Sampling by the contractor must be performed to industry standards and to the standards required by the designated laboratory. Where State-specific requirements have not been established, laboratory coliform test data must show that the water contains coliforms of less than 2.2 Most Probable Numbers (MPN)/100 ml (or "absence" if the presence/absence test is used). In addition, a test shall be performed on the first water load following any of the required sanitation procedures, whenever switching to a different water source and/or at least once every 30 days during months when water hauling is performed, and/or whenever such analysis is requested by state or local health authorities or Government representative. If the presence/absence (P&A) test for the coliform analysis is used, then only negative (absence) results are acceptable. If a sample tests positive (presence), the Contractor shall take out of service, investigate the cause of the problem; take corrective actions; resample/test the water; and notify the Incident Commander or designated Government Representative at the Incident. If the test data shows that the water contains more than 2.2 MPN/100 ml, the Contractor shall immediately take out of service; investigate the cause of the problem; take corrective actions; resample/test the water; and notify the Incident Commander or designated Government Representative at the Incident. The Contractor shall not haul water until the test shows that the water contains total coliform of less than 2.2 MPN/100 ml. Copies of the results of such tests shall be submitted to the Contracting Officer at the address indicated on the agreement or contract within seven calendar days after the end of the incident assignment. Test results shall clearly identify Contractor's name, address, and contract or agreement number on the report. Original laboratory test results shall be maintained by the Contractor and kept for at least 2 years pursuant to Title 21, Code of Federal Regulations, Part 129.80. Failure to comply with this requirement may result in the immediate cancellation or suspension of the Emergency Equipment Rental Agreement or contract for the current year. The Incident commander or designated Government Representative at the Incident with concurrence of the Contracting Officer will determine if/when the Contractor will be available for service.

Tank shall arrive empty for inspection unless requested otherwise by the incident.

Chlorine Residual: Contractors shall maintain a free chlorine residual level of 0.2 parts per million (ppm) up to 1.0 ppm at all times (1/3 cup of bleach that meets NSF standards to 1000 gallons water may achieve 1.0 ppm chlorine residual level). When residual levels drop below required levels the load shall be dumped and tank refilled.

Contractors shall have chlorine residual test kits available at all times and test for free chlorine residual levels when:

(1) Loading drinking water for transport,

(2) After adding any disinfectant, if the addition of disinfectant is necessary;

(3) When unloading; and

(4) Every 24 hours the water is in use (provide with daily use documentation).

Maintain records of activities on board the vehicle showing water source location, dates, and times of loading, unloading, chlorine residual test results, cleaning/sanitizing, and other operational items as deemed necessary. Copies of bacterial analysis test results and all agreements, contracts, licenses, etc. shall be maintained on board the vehicle at all times.

Contractor will provide copies of these records to the Incident Commander or designated Government Representative.

Failure of the contractor to perform the required testing at the times specified is grounds for immediate termination of an agreement/contract.

Water Sources

The host incident unit will designate the water source.

Use only potable water from a permitted private or public (municipal or community system) drinking water supply. Filling must be accomplished using acceptable source water under pressure. Drafting of surface water is not allowed under any circumstances. The price, if any, will be paid by the Government directly or by reimbursement to the potable water truck contractor. A copy of the billing statement from the owner of the water source to the contractor must be submitted to the Government if a contractor requests reimbursement.

Government or Contracting Agency Testing

The Government or contracting agency may, at its option, perform random testing. The contractor shall provide reasonable access to all potable water tanks and apparatuses to theGovernment or contracting agency.

D.9 Exhibit 9: Supplemental Potable Water Standards for Other Than PotableWater Trucks in Which Standards D.8 Apply

The Contactor shall perform and comply with all the provisions listed herein. Only properlyconstructed and fitted equipment dedicated for potable water shall be approved and used.

(a) Equipment Requirements

General Requirements

(Reference: Code of Federal Regulations, Title 21, Part 129.40):

All potable water contact equipment shall be suitable for its intended use and shall meet (Refer to Section J Exhibit J.1) standards including tanks, surfaces, hoses, pumps, valves, fittings, and lubricants. Samples for testing shall be obtained from the point of delivery such as, Sinks, Wash Basins, or Showerheads

(b) Other Equipment

Acceptable

Piping and Fittings: Food-grade plastic or acceptable metal (brass, aluminum, stainless steel, copper). No corroded steel, galvanized pipe or black pipe.

Canteen Filling Equipment: Must have effective backflow prevention (check valves), and dispensing spouts or hose bibs.

Miscellaneous Equipment: Potable water heaters, boilers, pressure tanks, and other equipment for operation of shower and kitchen units.

Unacceptable

Spray bars, fire hoses and nozzles, surface-water drafting equipment.

D.10 Exhibit 10: Harassment Free Workplace Policy

POLICY: The National policy states: The Government will not tolerate harassment based on race, national origin, religion, age, mental or physical disability, color, sex, or any other non-merit factors.

The Government strives for a harassment-free work environment where people treat one another with respect. Managers, supervisors, and all employees, as well as our Contractors, cooperators and volunteers have the primary responsibility for creating and sustaining this harassment-free environment (by example, by job supervision, by coaching, by training, by contract enforcement, and by other means). All employees, Contractor personnel, and visitorsmust take personal responsibility for maintaining conduct that is professional and supportive ofthis environment.

ACTION REQUIRED: Managers and supervisors must take immediate action to stop harassment (or any other inappropriate behavior), to protect the people targeted and to take allreasonable steps to ensure that no further harassment or retaliation occurs. Employees who witness harassment should report it to the proper authority.

LOCATIONS COVERED: The Contractors work environment covers any area where employees work or where work-related activities occur including travel. This includes field sites,incident bases, staging areas, firelines, Government buildings and other facilities such as fitnesscenters and campgrounds. Also included are vehicles or other conveyances used for travel.

WHAT HARASSMENT IS: Harassment is coercive or repeated, unsolicited and unwelcome verbal comments, gestures or physical contacts and includes retaliation for confronting or reporting harassment. Examples of harassment include, but are not limited to, the following:

Physical conduct: Unwelcome touching, standing too close, inappropriate or threatening staringor glaring, obscene, threatening, or offensive gestures. Verbal or written conduct: Inappropriatereferences to body parts, derogatory or demeaning comments, jokes, or personal questions; sexual innuendoes; offensive remarks about race, gender, religion, age, ethnicity, sexual orientation, political beliefs, marital status, or disability; obscene letters or telephone calls; catcalls; whistles; sexually suggestive sounds; loud, aggressive, inappropriate comments or other verbal abuse. Visual, Graphic or Pictorial Displays: Display of nude pictures, scantily-clad, or offensively-clad people; display of intimidating or offensive religious, political, or other symbols; display of offensive, threatening, demeaning, or derogatory drawings, cartoons, or other graphics; offensive T-shirts, coffee mugs, bumper stickers in locations covered above or other articles.

Individuals who believe they are being harassed or retaliated against should exercise any one or more of the following options as soon as possible:

- Tell the harasser to stop the offensive conduct; and/or
- Tell a manager or supervisor about the conduct; and/or

Contact your LSC, CO, a special Emphasis Program Manager, or anyother individual you trust on site who would take action.

D.11 Exhibit 11: Definitions

Available. Whether National MFSU "Parent" IDIQ DP or National MFSU TO DDP – Contractor's key personnel, required equipment and supplies, and physical presence at the DP/DDP location. **Key Personnel shall reside within 60-miles (1 hour) of the DP/DDP location.**

Bio-Based Products. A renewable product, made from plant or animal material that breaks down easily in the environment.

Bio-Preferred Products. Implemented through The Farm Security and Rural Investment Act (FSRIA) of 2002 and includes two provisions that helped launch Bio-Preferred. The provisions included: 1) a mandate to the U.S. Department of Agriculture to develop and implement a comprehensive program for designating Bio-Based products and 2) a directive to all federal agencies to increase their purchase and use of "preferred" products.

Bladder Bags. A Gray Water storage container constructed of sturdy blue or gray 30-oz. polyester fabric-based membrane with a PVC coating.

Brown Grease. Material collected from grease traps, usually containing rotting food, dirty water, detergent, and residual greases.

Cold Drinks. A beverage that is chilled.

Company's Headquarters. The Company's regular operating physical address. The address listed by each Offeror in block 15A on Standard Form 1449.

Contracting Officer (CO). A person with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

Contracting Officer's Representative (COR). The on-site contract administrator for the Contracting Officer. The duties and responsibilities of the COR are defined in the written letter of designation issued by the Contracting Officer.

Contractor's Quality Control Plan. Actions specified by a Contractor to control the production of outputs to ensure that they conform to the contract requirements. The methods for inspecting for quality control are described in the Contractor's Quality Control Plan (QCP).

Contractor's Safety Plan. Actions specified by a Contractor to ensure employees and public safety while at an incident. The method the Contractor uses to adhere to Occupational Safety and Health Administration and to Work/Rest ratio and length of assignment guidelines.

Contractor's Unit Summary. Contains Contractors equipment and pricing information that was provided in Section B-Schedule of Items.

Emergency Equipment Rental Agreement (EERA). This is an agreement between the Federal Wildland Fire Agencies and are used only when NICC is unable to fill an order with a National Mobile Food Services Unit Contractor.

Factory Wrapped. A commercial item that is covered with material at the place of manufacture to protect it from outside elements or contamination. A list of ingredients may also be required to identify contents.

Federal Wildland Fire Agencies. Forest Service, Bureau of Land Management, Fish & Wildlife Service, National Park Service, and Bureau of Indian Affairs are defined as the Federal Wildland Fire Agencies for the purposes of this contact.

Food and Drug Administration (FDA). Government agency whose mission is "to promote and protect the public health by helping safe and effective products reach the market in a timely way, and monitoring products for continued safety after they are in use."

Food Bar. A snack made of healthful ingredients and high calorie content to give a boost to athletes and firefighters endurance. The packaging of a typical bar will provide a precise nutritional breakdown in order to assist the firefighters in maintaining a dietary regimen. Major brand names in North America include the Balance® bar, PowerBar®, Odwalla Food Bar®, and CLIF® bar. Other brand names may be provided if comparable in nutritional value of these listed brand name Energy Bars.

Food Grade Materials. Food Grade Material examples. This list is not all inclusive: Glass filled Noryl, Polyphenylene, Fiberglass-Reinforced Thermoplastic, Polystyrenes, Polycarbonates, Vinyl Chloride, Polypropylene, Ryton®, Nylon, Glass filled Polycarbonate Sulfide, Neoprene Compound, Engineered Polymer, Thermoplastics, Stainless Steel, Copper, Aluminum, Brass, Gold, Silver, Ceramic carbon, Viton® Elastomers, Santoprene™, EPDM Elastomers, Silicon Carbide, Tungsten Carbide.

Food Service Employees. Individuals who are employed by the MFSU Contractor.

Food Unit Leader (FDUL). This unit leader is responsible for determining feeding requirements at all incident facilities. Menu planning: determining cooking facilities required; food preparation; serving; providing potable water, and general maintenance of the food service areas are responsibilities of this unit. The FDUL serves as a MFSU Contract Inspector.

Government Furnished Containers. These are approved containers the Federal Wildland Fire Agencies provide the National/Non-National Mobile Food Services Unit to use for transporting Hot or Cold meals or other meal items to remote locations.

Hauled water. Transporting potable water from one source to a property via truck or bottle to be used on-site for human consumption.

Key Personnel. An individual who is designated by the Contractor and approved by the CO. Key Personnel have the authority to prepare invoices, receive notices, and institute corrective measures on any deficiencies.

Logistics Section Chief (LSC). Serves as both the Services and Support Branch Director on an Incident Management Team.

Mandatory Availability Period (MAP). Period of time, DDP dependent, in which the MFSU and Contractor'spersonnel must be physically located at their DDP available for dispatch.

MAP Daily Availability Rate. The Contractor's key personnel, required equipment and supplies, and physical presence at the DDP (or other government assigned location) during a specified MAP. The daily availability rate is paid for each day of the MAP (unless the contractor is in Unavailability Status) as compensation for providing mobile food services for the exclusive use of the Government. **Key Personnel shall reside within 60-miles (1 hour) of the DDP location.**

Minimum Contract Guarantee. In accordance with FAR 16.5, the term, "minimum contract guarantee" is that minimum quantity, or that minimum dollar value of $5,000.00 per National MFSU IDIQ contract, which the Government will guarantee the Contractor for the effective period of the contract.

Minimum Payment Guarantee. The term "minimum payment guarantee" is the daily minimum guarantee of $12,000.00 while under hire (RO) per MFSU excluding the first and last day of an incident. The Government will provide a minimum payment guarantee of $12,000.00 per MFSU or the total quantities of meals provided, whichever is greater. The $12,000.00 minimum payment guarantee only applies towards the total number of meals provided from each complete MFSU.

Mobile Food Services Unit (MFSU). All equipment (including peripheral equipment) that comprises a complete MFSU.

National Electrical Code (NEC). Regulation governing the installation of commercial or residential electrical wiring.

National Fire Protection Association (NFPA). A nonprofit organization whose mission is to reduce the worldwide burden of fire and other hazards on the quality of life by providing and advocating scientifically based consensus codes and standards, research, training, and education.

National Interagency Coordination Center (NICC). The National Interagency Coordination Center (NICC) is the focal point for coordinating the mobilization of resources for wildland fire and other incidents throughout the United States. NICC is the only designated ordering office for all orders under this contract.

National Mobile Food Services Unit Contractor. A business that has been awarded a National Mobile Food Services Unit contract from this solicitation through the USDA-Forest Service.

National Mobile Food Services Unit IDIQ Dispatch Point. The physical location proposed and awarded will be considered the dispatch point (unless reassigned enroute to/from an incident) for the Offeror's National MFSU personnel and equipment for the life of the contract unless approved by the COR and modified by the CO in writing.

National Mobile Food Services Unit TO Designated Dispatch Point (DDP). This is the address where the National MFSU TO unit must be physically located and dispatched from (unless reassigned enroute to/from an incident), during the Mandatory Availability Period.

National Restaurant Association (NRA). A restaurant industry business association in the United States comprised of 60,000-member companies; a total of more than 300,000 restaurants. It also operates the National Restaurant Association Educational Foundation.

National Sanitation Foundation (NSF). The organization that sets sanitation standards for the food preparation industry.

Non-National Mobile Food Services Unit Contractor. Any business that was not awarded a National Mobile Food Services Unit contract from this solicitation through the USDA-Forest Service.

Occupational Health and Safety Administration (OSHA). The Occupational and Safety Health Administration is a federal or state agency under the Department of Labor that publishes and

enforces safety and health regulations for most businesses and industries in the United States.

Point-of-Hire (POH). The POH for Supplemental Items (including) Hot Food Delivery Vehicle is the incident.

Priority (First). Awarded a DDP, Within MAP: In order to be considered for First Priority an MFSU must be available and able to meet date/time needed, within the MAP, physically located at the DDP, and closest MFSU to the incident that is not already dispatched.

Priority (Second). Awarded a DDP, Outside MAP: In order to be considered for Second Priority an MFSU must be available and able to meet date/time needed, outside their MAP, physically located at the DDP or National MFSU {Parent" IDIQ DP.

Priority (Third). Awarded IDIQ National Contract: In order to be considered for Third Priority an MFSU must be available and able to meet date/time needed, and physically located at the National MFSU "Parent" IDIQ DP.

Re-sealable Individually Wrapped. This is a re-sealable packaging item provided by the Contractor to package fresh vegetables or snacks for Shift Provisions.

Shift Provisions. Consist of the primary entrée, seven shift fooditem categories and the fruits and vegetables. The term shift provisions is used to support the idea of multiple eating episodes throughout the shift rather than items to supply a lunch during thaw work shift.

Uniform Plumbing Code (UPC). Regulation governing the residential or commercial installation of plumbing components.

Used Cooking Oil. Also called yellow grease, this material is collected from deep fryers only, is uncontaminated by food particles and other items, and liquid at room temperature. It can appear yellow, dark brown, or orange in color.

Vegetarian, Ovo-Lacto Vegetarian. This is the most common form of vegetarianism. Ovo-Lacto vegetarians do not eat meat or flesh of any kind but do eat eggs and dairy products. Subcategories are Ovo vegetarians that eat eggs but not dairy products, while Lacto vegetarians eat dairy products but not eggs.

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D.12 Exhibit 12: DOL Wage Determination

Will be updated with current DOL WD for Solicitation

D.13 Exhibit 13: Contractor Quality Control Plan (QCP)

Will be updated with Contractor's final QCP for Award

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D.14 Attachment 1: MFSU Description and Equipment Requirements Checklist

Complete this checklist for each Mobile Food Service Unit offered. Failure to complete this checklist may result in your offer being given no further consideration. Use the following format to describe each piece of equipment that comprises the complete Mobile Food Service Unit (including all peripheral equipment). Each MFSU offered shall be assigned a unique Unit Identification Number as specified in Exhibit D.1 - Section D.1.8(d) – Equipment Marking. Only equipment that is required as part of the MFSU should be included in the proposal. Information regarding miscellaneous equipment such as Contractor's crew sleeping quarters is not necessary.

The technical section of the proposal must be in accordance with D.14 Attachment 1, disclose your technical approach in as much detail as possible, including, but not limited to, the requirements of the technical proposal instructions. The technical proposal must provide a detailed description of the equipment offered with pictures and specifications of the equipment and a detailed description of how the offeror will meet the equipment and personnel requirements as specified in Exhibit D.1 Section D.1.4 - Contractor Furnished Equipment, Supplies and Personnel; in Exhibit D.1 Section D.1.5 - Contractor Responsibilities; and in Exhibit D.1 Section D.1.6 - Minimum Mobile Food Unit Equipment Requirements. The list of equipment must clearly demonstrate that the offeror's MFSU meets the requirements of the solicitation. The technical proposal must present sufficient information to reflect a thorough understanding of the requirements and a detailed description of the techniques, procedures and program for achieving the objectives of Exhibit D.1 Performance Work Statement. Proposals which merely paraphrase the requirements of the Government's specifications/Performance Work Statement or use phrases such as "will comply" or "standard techniques will be employed" will be considered unacceptable and will not be considered further.

Instructions: Clearly describe the condition, type, size, or other descriptive narrative to demonstrate your unit meets the minimum equipment requirements listed below. (See Exhibit D.1 - Section D.1.6 - Minimum MFSU Equipment Requirements, for complete details regarding minimum equipment requirements). Photographs provided shall be in color and clearly labeled describing what is in each photo for the Evaluation Team's consideration. (At its option, the contractor may include a video walk-through of their MFSU in addition to the color photographs. The video does not replace the color photographs. All video must be in either a .AVI (Audio Video Interleave), .WMV (Windows Media Video) or .MOV (Apple QuickTime Movie) format and provided on each of the 4 electronic copies of the technical proposal.) The Government Evaluation Team will make the final determinations whether the unit meets the following minimum equipment requirements based on the Contractor's ability to describe their equipment and photographs or drawings in this checklist.

Following contract award, the Government will perform site evaluations to determine if the Contractor's equipment meets the equipment requirements and is determined to be suitable for the award. An MFSU meeting all requirements, including the minimum equipment requirements, will be given a certificate of compliance and will be authorized to perform on the contract.

MFSUs not meeting all requirements may be given a short period of time to correct any deficiencies at the Contracting Officer's discretion. MFSUs determined to not meet all requirements will be disqualified from their award and the Government may individually solicit for a new MFSU to be placed in that DDP for the remainder of the contract Period of Performance.

Offeror's Name: _____

Mobile Food Service Unit No.: _____

A. Kitchen Trailer(s) UIN & Description: D.1.6 Minimum Food Unit Equipment Requirements

Provide a written description of the Mobile Food Service Unit equipment describing its condition, age and design, including a diagram of equipment contained in each trailer and its function. Include color photos of the exterior and interior kitchen trailer(s). Ensure all photos are clearly labeled describing what is in each photofor the Evaluation Team's consideration.

1. Fully enclosed. All doors and windows have screens, air curtains, or other means in accordance with current FDA Food Code.

   Comments:

2. All equipment is sealed to the floor or raised at least 6" inches off the floor by means of aneasily cleanable metal leg or foot.

   Comments:

3. All equipment including the interior of cabinets or compartments, walls, corners, ceilings, floors shall have smooth, easily cleanable surfaces. Equipment surfaces shall be free from channels, crevices, flanges, ledges, sharp or jagged edges or other cleaning obstructions.

   Comments:

4. Unfinished wood surfaces are not permitted. This requirement does not apply to palletsbeing used in distributors' delivery vehicles.

   Comments:

5. Food contact surfaces shall be constructed of stainless steel, high pressure laminated plastics, wooden cutting boards, or laminated hardwood.

   Comments:

6. Utility and service lines shall be installed so they do not obstruct or prevent cleaning offloors, walls, and ceilings. Service lines may not be unnecessarily exposed.

   Comments:

7. All junctures where floors and walls meet shall be coved. All seams, cracks, and junctures where walls and ceilings meet shall be sealed.

   Comments:

8. All pipes, fittings, and hoses shall comply with the appropriate codes. No galvanized material is allowed throughout the plumbing system where potable water is stored and used, or in the food splash zone.

   Comments:

9. Space around pipes, conduits or hoses that extend through cabinets, floors, or outer wallsshall be sealed and the seal shall be smooth and easily cleanable.

   Comments:

10. Light fixtures, light bulbs, and light tubes shall be shielded, coated, or otherwise shatter resistant.

    Comments:

11. All non-dedicated electrical receptacles shall be ground fault protected.

    Comments:

12. Steam table shall hold at least 4 full size hotel pans (12” x 20”) and shall be capable ofmaintaining a minimum temperature of 140° F.

    Comments:

13. One, 3-compartment metal sink located inside one of the kitchen units. Each properly labeled compartment shall be a minimum dimension of 18” wide x 20” long x 12” deep or equivalent volume.

    Comments:

14. Sink shall be equipped with continuous gravity flow or pressurized hot (120° F.) and cold water. Shall be equipped with a mixing faucet capable of servicing any sink compartment.

    Comments:

15. Sinks shall have smooth and sanitary drain boards or equivalent drying area.

    Comments:

16. Food preparation sink.

    Comments:

17. Hand washing facilities for Contractor’s employees shall be provided within the kitchen unit and in close proximity to all food preparation areas.

    Comments:

18. The hand washing sink shall be labeled as such (i.e. “Hand Washing Sink”) and be providedwith hot and cold water, paper towels, and antibacterial and phosphate free soap.

    Comments:

19. Electric exhaust system with filters or screens over all cooking equipment (no galvanized material). Grease filter constructed of National Sanitation Foundation (NSF) approved material. Exhaust system and filters accessible for cleaning.

    Comments:

20. Provide current certification that the automatic fire extinguisher system complies with NFPA 1.

    Comments:

21. Waste receptacles, smooth, nonabsorbent, and easily cleanable.

    Comments:

22. Separate enclosed storage for cleaning supplies, clothing, insecticides, and engine oil.

    Comments:

23. Sneeze guards on all food service lines.

    Comments:

24. Refrigeration storage, adequate refrigeration storage, capable of maintaining 41° F with a min/max thermometer placed within 8 feet of the entrance. Shelving – Non-absorbent, non-corrodible, and easily cleanable. Wood is not acceptable.

    Comments:

25. Freezer storage, adequate freezer storage, capable of maintaining 0° F with a min/max thermometer placed within 8 feet of the entrance. Shelving – Non-absorbent, non-corrodible, and easily cleanable. Wood is not acceptable.

    Comments:

26. Sandwich Preparation Trailer maintained at 72° F. or less, with rodent, insect and dust control.

    Comments:

27. Shift Provisions Assembly Trailer, capable of maintaining 72º F or less during lunch preparation with rodent, insect and dust control.

    Comments:

28. Salad Bar Area, located in closed trailer or tent, with sides and doors and flooring to keep dust to a minimum.

    Comments:

29. Potable Water Pumps and Water Storage Facilities: Provide a written description of the potable water pumps and water storage facilities describing their condition, age, and capacity. Include color photos. Provide copies of State Certifications if applicable.

    (a) Potable Water Pumps – Provide manufacturer's product specifications supporting that the potable water pumps are constructed of food grade materials and National Sanitation Foundation NSF61 compliant. Provide color photos of the impellers for all water pump(s) proposed. Ensure all photos are clearly labeled describing what is in each photo

    Comments:

    (b) Potable water storage tank minimum 500 gal. meetingPotable Water Standards. Tank shall have smooth easily cleanable surfaces and shall be designed with an access port for inspection and cleaning. The access port opening shall be flanged upward at least 13 mm (1/2 inch) and be equipped with a cover (lid) to overlap the opening.The entire inside of the tank shall be visible for an ocular inspection. The tank shall be sloped to drain completely. shall have the size and use stenciled in letters no less than 4 inches in height in a conspicuous place.

    Comments:

30. Gray water storage container, minimum 1,00 gallons. Shall have the size and use stenciled in letters no less than 4 inches in height in a conspicuous place.

    Comments:

    (a) All hoses shall have the use identified on them.

    Comments:

31. Steps and platforms have solid handrails meeting current OSHA standards for handrails andstairs.

    Comments:

32. Oil spill containment pads or containment units for all stationary equipment with fuel tanks,engines, or any other petroleum container. Any containment units with engine oil must be labeled and placed in designated area separate from any food related matter.

    Comments:

33. Waterproof tent(s) capable of seating 250 persons.

    Comments:

34. Sturdy, smooth tables and seating to accommodate 250 persons.

    Comments:

35. All vehicles comprising a complete Mobile Food Service Unit shall be permanently markedwith Company Name, Unit Identification Number (UIN). Marking shall be in an obvious place and has letters no less than 4 inches in height.

    Comments:

b. Wash Basins UIN & Description for Incident Personnel: D.1.6 Minimum Food Unit Equipment

Requirements Provide a written description of the Wash Basins unit describing its condition, number of sinks, age and design. Include color photos. Ensure all photos are clearly labeled describing what is in each photo for the EvaluationTeam's consideration.

(1) The hand washing sink shall be labeled as such (i.e. "Hand Washing Sink") and be provided with hot and cold water, paper towels, and antibacterial and phosphate free soap.

    Comments:

(2) At least 8 sinks.

    Comments:

(3) Potable water storage tank (Min. 400 gallons) and shall have the size and use stenciled in letters no less than 4 inches in height in a conspicuous place.

    Comments

(4) Gray water storage (Min. 400 gallons) shall have the size and use stenciled in letters no less than 4 inches in height in a conspicuous place.

    Comments:

(5) Potable Water Pump - Potable water pumps shall be constructed of food grade materials National Sanitation Foundation NSF61 compliant.

    Comments:

(6) Ground covering and rain/shade protection (such as waterproof tents, awnings, and canopies) shall be provided and set up over all wash basins, unless exempted by the FDUL or LSC.

    Comments:

(7) Adequate self-contained outside lighting.

    Comments:

(8) All hoses shall have the use identified on them.

    Comments:

(c) Peripheral Equipment UIN & Description: Provide a written description of all remaining peripheral equipment such as enclosed salad bar area, sandwich preparation trailer, sack lunch assembly trailer, refrigeration, freezer and dry goods trailers, etc. Identify each piece of peripheral equipment with a unique UIN. Include color photos. Ensure all photos are clearly labeled describing what is presented in each photo for the Evaluation Team's consideration.

(1) Peripheral Equipment #1 - _____

Comments:

(2) Peripheral Equipment #2- _____

Comments:

(3) Peripheral Equipment #3 - _____

Comments:

(4) Peripheral Equipment #4 - _____

Comments:

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D.15 Attachment 2: Question and Comment Form

Questions/Comments not submitted on this form via email 2025_29.m2pohiy1ohshj22d@u.box.com will not be considered.

QUESTION & COMMENT FORM **Request for Proposal (RFP) 1202SC24R2100** 2025-2029 National Mobile Food Services (MFS) Unit Support				
Question #	Attachment	Section or Paragraph	Page #	Description / Question / Comment

- Add additional rows as needed

E. Solicitation Provisions

E.1 Federal Acquisition Regulation (FAR) – Provisions Incorporated by Reference (IBR) & Authorized Deviations

E.1.1 52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. **The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer.** In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: https://www.acquisition.gov/browse/index/far AGAR: https://www.acquisition.gov/agar

FAR Cite	Title	Date
52.204-7	System for Award Management	Oct 2018
52.204-16	Commercial and Government Entity Code Reporting	Aug 2020
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment	Nov 2021
52.212-1	Instructions to Offerors—Commercial Products and Commercial Services	Sep 2023
52.216-27	Single or Multiple Awards	Oct 1995
52.219-1	Small Business Program Representations (DEVIATION DEC 2022, NOV 2022)	Sep 2021

(End of provision)

E.1.2 52.252-5 Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of Agriculture (USDA AGAR), (48 CFR Chapter 4) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

The full text of a deviation may be accessed electronically at this/these address(es):

FAR:
https://usdagcc.sharepoint.com/sites/USDAAcquisitionWorkforce/Shared%20Documents/Forms/AllItems.aspx?newTargetListUrl=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents&viewpath=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FForms%2FAllItems%2Easpx&id=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FProcurement%20Policy%20

Templates%2FOCP%20PPD%2FPolicy%20and%20Regulations%2FFAR%20Class%20Deviations&viewid=9aeee97d%2D3da2%2D4106%2Dbcff%2Dfce647be820c

AGAR:

https://usdagcc.sharepoint.com/sites/USDAAcquisitionWorkforce/Shared%20Documents/Forms/AllItems.aspx?newTargetListUrl=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents&viewpath=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FForms%2FAllItems%2Easpx&id=%2Fsites%2FUSDAAcquisitionWorkforce%2FShared%20Documents%2FProcurement%20Policy%20Templates%2FOCP%20PPD%2FPolicy%20and%20Regulations%2FAGAR%20Class%20Deviations&viewid=9aeee97d%2D3da2%2D4106%2Dbcff%2Dfce647be820c

(End of provision)

E.2 Federal Acquisition Regulation (FAR) Solicitation Provisions – Full Text & Addenda

E.2.1 52.201-1 Acquisition 360: Voluntary Survey (Sep 2023)

(a) All actual and potential offerors are encouraged to provide feedback on the preaward and debriefing processes, as applicable. Feedback may be provided to agencies up to 45 days after award. The feedback is anonymous, unless the participant self-identifies in the survey. Actual and potential offerors can participate in the survey by selecting the following link: https://www.acquisition.gov/360.

(b) The Contracting Officer will not review the information provided until after contract award and will not consider it in the award decision. The survey is voluntary and does not convey any protections, rights, or grounds for protest. It creates a way for actual and potential offerors to provide the Government constructive feedback about the preaward and debriefing processes, as applicable, used for a specific acquisition.

(End of provision)

E.2.2 52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

E.2.3 Addenda to FAR 52.212-1 Instructions to Offerors--Commercial Products and Commercial Services – Additional Information

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear below:

Contract Line Items:	ALL ITEMS
NAICS Code:	722310
Size Standard:	$47M

(b) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers must be submitted on the SF 1449 as specified in the solicitation. As a minimum, offers must show—

(1) The solicitation number;

(2) The time specified in the solicitation for receipt of offers;

(3) The name, address, and telephone number of the offeror (Standard Form (SF) 1449, Solicitation/Contract/Order for Commercial Items, with blocks 17, and 30 completed);

(4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the **PWS** ~~solicitation (see (12) below)~~. This may include product literature, or other documents, if necessary.

(5) Remit to: Offerors shall submit their proposal(s) in the required format following naming conventions carefully to aid in streamlining administrative handling of proposals.

Electronic copies of the Technical Proposal, MFSU Description and Equipment Requirements Checklist and Business Proposal are required to be provided in accordance with these instructions.

(i) All submittals shall be emailed and shall be in Adobe Acrobat (pdf). Zip-files, html or other links will not be accepted.

(A) Emails shall contain separate documents attached:

1. Part 1 - Technical Proposal

2. Part 2 - MFSU Description and Equipment Requirements Checklist

3. Part 3 - Business Proposal

Due to email size limitations (approximately 10-25 MB), it may be necessary to submit the proposal in separate emails. In that case, use the following document naming convention.

(ii) All submittal documents shall follow this naming convention, notating if the document is Technical, Equipment Description, or Business –

(A) Company Name–Tech–submittal date-part 1 of 1
If multiple parts: Company Name-Tech-submittal date-part 1 of #
Company Name-Tech-submittal date-part 2 of # (etc.)

(B) Company Name-TechSubFact2-~~EquipDescReq~~ submittal date-part 1 of 1
If multiple parts: Company Name- TechSubFact2-submittal date-part 1 of #
Company Name- TechSubFact2-submittal date-part 2 of # (etc.)

(C) Company Name–Business-submittal date-part 1 of 1
If multiple parts: Company Name-Business-submittal date-part 1 of #
Company Name-Business-submittal date-part 2 of # (etc.)

Note: Attach only the required document(s) when submitting proposal information; nothing else is required. The Government will not see any text in the subject line or body of the email, only the attachment will be uploaded.

Offerors shall submit their Proposal(s) in accordance with the following:

(i) Submissions are due see SF1449.

(ii) Proposal response items required to be submitted via email will be sent to:

1202SC2.lj4vssjnb4u95qmf@u.box.com

(6) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);

(7) Acknowledgment of Solicitation Amendments;

(8) Past performance information (see E.2(b)(4)) to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(9) Proposal Submission Instructions and Information

The proposal must be prepared in three parts: Part 1 - Technical Proposal, Part 2 - MFSU Description and Equipment Requirements Checklist, and Part 3 - Business Proposal. Each of the parts shall be separate and complete in itself so that evaluation of one may be accomplished independently of, and concurrently with, evaluation of the others;

(i) Proposal Format - failure to furnish full and complete information requested may cause an offer to be determined unacceptable.

(A) **Page size, numbering and margins:** 8.5” x 11”. Page numbers shall be on each page consecutively. Standard margins should be used for all parts, for instance, the default margins found in MS Word (but no less than 0.5” or greater than 1” on all sides).

(B) **Font and spacing**: Font and size for all parts – Times New Roman or Calibri - no smaller than 11-point. Font size for tables, graphs, photographs, etc. – no smaller than 10-point matching font for all parts. Pages for all parts shall be single-spaced.

(C) **Photos and videos**: Photographs provided shall be in color and clearly labeled describing what is in each photo for the Evaluation Team's consideration.

Contractors may include a video walk-through of their MFSU in addition to the color photographs. All videos must be in either a .AVI (Audio Video Interleave), .WMV (Windows Media Video) or .MOV (Apple QuickTime Movie) format and provided as part of Part 2. Videos do not replace color photographs.

(D) **URLs**: No information will be provided via URL, and URLs will not be included in any Part.

(E) **Signatures**: Proposals (SF1449 & SF30) must be signed by an official authorized to bind the offeror, and shall set forth full, accurate, and complete information as required by this solicitation.

Part 1 - Technical Proposal Instructions

(i) The technical proposal will be used to make an evaluation and arrive at a determination as to whether the proposal will meet the requirements of the Government. Therefore, the technical proposal must present sufficient information to reflect a thorough understanding of the requirements and a detailed description of the techniques, experience, equipment, etc. to perform required services - Offerors must propose only equipment that will be completely operational and available for a government-on-the-ground physical inspection 30 days after awards.

Proposals that merely paraphrase the requirements of the Government's performance work statement or use phrases such as "will comply" or "standard techniques will be employed" will be considered unacceptable and will not be considered further.

(A) Equipment - must be in accordance with Exhibit D.1 PWS.

Part 2 - The MFSU Description and Equipment Requirements Checklist (D.14 Attachment 1) included as a separate attachment to the proposal is a Word document. The offeror must include a completed version (either Word or PDF) of this document included with your proposal.

(iv) Section E.1.1, Biobased Product Certification (IBR), completed and submitted with the proposal and included electronically at www.sam.gov.

(B) Technical Approach

(i) Project Management

(a) Describe in narrative/paragraph form your ability to organize, schedule and staff this contract to completion and on schedule.

(b) List all bio-based products that will be used in performing these services such as cutlery, drinking cups, tableware, phosphate-free soaps, cleaning agents, garbage can liners and paper hand towels. The list of bio-based products shall be submitted as a separate document within your proposal (i.e., the list shall start and end on its own pages).

(c) Include your Safety and Work-Rest Plan that clearly demonstrate the offeror's ability to ensure employees and public safety while at an incident. The method the contractor uses to adhere to occupational safety and health and to work rest and length of assignment guidelines. The Safety and Work-Rest Plan shall be submitted as a separate document within your proposal in paragraph form no longer than six pages (i.e. the plan shall start and end on its own pages).

(d) Identify the total number of personnel, not including the four Key Personnel, proposed and their main job titles for each MFSU proposed.

(e) Describe Safe Food handling training provided for employees; Provide copies of ServSafe Food Handler's certificates of completion for all employees (as applicable).

(ii) Quality Control Plan - The Quality Control Plan shall be submitted as a separate document within your proposal (i.e. the plan shall start and end on its own pages to facilitate it being incorporated as an attachment to a potential contract, and shall include elements (a) through (c) below).

(a) Identify specific quality control procedures that will be followed. List your methods and schedules of surveillance for self-inspections.

(b) Discuss techniques that your firm will use to ensure that your Key Personnel follow the quality control procedures and how results are communicated to your crew.

(c) Describe records to be kept to document self-inspections, and corrective or preventative actions taken. Include copies of the self-inspection forms/checklists that your company will use.

(C) Past performance – *Past performance describes* ***how well*** *contractors performed the work.* The Contractor is required to provide past performance examples for performance within the last three years; and as applicable, provide no less than three (3) and no more than five

(5) examples of relevant (similar size, scope, complexity) previous work, including at a minimum:

(i) Agency/company and customer contact point (name and telephone number).

(ii) Period of performance.

(iii) Contract number or reference number.

(iv) Description of the contract and relevancy (similar size, scope, complexity) to the current contract. Do not list every incident your company has been assigned to. Discuss different types of incidents your company has worked on; the minimum and maximum number of days performed and number of personnel your company has serviced on the incidents.

(v) Address specific performance failures, if applicable, and how you mitigated the cause of those failures.

(vi) Provide details regarding timeliness, quality and working relationships with your customers on these incidents.

(D) Experience – Experience reflects whether contractors have performed similar work before. Describe in paragraph form no longer than three pages, the skills, qualifications, and experience of your personnel in performing tasks similar to those identified in this solicitation. Specifically address:

(i) Qualifications and experience of the company, its principles and any Contractors or subcontractors who are expected to be part of the Contractor's team.

(ii) Key Personnel as specified in Exhibit D.1 Section D.1.4 Contractor Furnished Equipment, Supplies and Personnel and in Exhibit D1 Section D.1.5 Contractor Responsibilities. Provide copies of certificates of completion from an approved Food Protection Manager Certification Program for all Key Personnel (Mobile Food Service Unit Manager, Kitchen Manager, Assistant Kitchen Manager and Supervisory Cook).

Part 3 - Business Proposal Instructions

(i) The business section of the proposal must include a completed Standard Form 1449 and any Amendment(s) (SF30) signed by an officer of the business authorized to enter the business into a contract.

(ii) National MFSU IDIQs/Awards - Section B.5 for each MFSU with your proposed prices (completed electronically via MS Forms) - Fixed pricing is required for all items. Sections B.5 Schedule of Items – MFSU Unit Item Details and MFSU Pricing Schedule must be completed electronically.

(iii) Each Offeror shall provide records necessary to permit an adequate evaluation of their financial capacity, working capital and other resources available to perform the contract without assistance from outside sources for up to 60 days for all MFSUs submitted for consideration.

(iv) Finally, Offerors must provide the name, location and intercompany policy for other divisions, subsidiaries, parent companies, or affiliated companies that will perform work or furnish materials under this contract.

(c) Period for acceptance of offers. The offeror agrees to hold the prices in its offer firm for 180 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(End of FAR 52.212-1 addenda)

E.2.4 Addenda to FAR 52.212-2 Evaluation—Commercial Products and Commercial Services

The Government intends to evaluate proposals in accordance with FAR 15.101-2 and establish multiple, performance based, Indefinite-Delivery/Indefinite-Quantity (ID/IQ) contracts as a result of this solicitation and subsequent amendments. *The Government reserves the right to establish IDIQs without contacting Offerors regarding submitted proposals: Offerors are therefore strongly encouraged to provide their best technical solutions and pricing in their initial response*.

1. Evaluation Process

The Government will evaluate the Offerors as Acceptable/Unacceptable by the proposals received in response to the National Mobile Food Services (MFS) Request for Proposals (RFP) considering the following factors: (1) Offer Acceptability, in addition to the subfactors identified below, and (2) Price.

The Government will not award a contract on the basis of an unacceptable offer. However, the Government will not select an Offeror for award without concern for the amount of its total evaluated price.

2. Evaluation Factors

The following evaluation factors and sub-factors shall be used to establish the requirements of Acceptability and shall be used to evaluate proposals. Proposed National MFSU services not meeting the following minimum requirements, at the time of proposal submission, will be determined Unacceptable and may be excluded from evaluation.

FACTOR IDENTIFICATION –

FACTOR 1 – OFFER ACCEPTABILITY

SUBFACTOR 1 – ASSENT TO SOLICITATION TERMS

SUBFACTOR 2 – EQUIPMENT

- **COMPLETED MFSU DESCRIPTION AND EQUIPMENT REQUIREMENTS CHECKLIST**

SUBFACTOR 3 – TECHNICAL APPROACH

- **PROJECT MANAGEMENT**
- **QUALITY CONTROL PLAN**

SUBFACTOR 4 – PAST PERFORMANCE

SUBFACTOR 5 – EXPERIENCE

FACTOR 2 – TOTAL EVALUATED PRICE

2.1 FACTOR 1: OFFER ACCEPTABILITY

The Government must deem offers to be acceptable to consider them for award. However, offeror's may have the opportunity to make their proposals acceptable through discussions, if conducted. Award may be made on initial proposals or upon conclusion of discussions, should discussions be held. The Government will base determinations of offer acceptability on the following sub factors:

2.1.1 SUBFACTOR 1: ASSENT TO SOLICITATION TERMS

Your offer must assent to all terms of this request for proposals, and you must provide all information requested. Your offer will be unacceptable if you take exception to any term of this solicitation.

2.1.2 SUBFACTOR 2: EQUIPMENT

Offeror's that do not offer the equipment required by this solicitation will be considered unacceptable and may not receive further consideration under this RFP.

2.1.2.1 Submission of Completed MFSU Description and Equipment Requirements Checklist

Submission of a completed D.14 Attachment 1: MFSU Description and Equipment Requirements Checklist attached to the solicitation. This may be completed and submitted in PDF format.

2.1.3 SUBFACTOR 3: TECHNICAL APPROACH

The Government will evaluate your technical approach as a matter of the Offeror's understanding of the work necessary to complete the requirement. Offeror's who fail to completely address issues, bio-based products and compliance with the technical approach will receive an unacceptable rating. The two aspects of technical approach listed below determine the overall rating for this subfactor:

The Government will base determinations of acceptability on the following sub factors:

2.1.3.1: Project Management Plan

The Government will evaluate your offer in the following areas:

(A) Organization's ability to organize, schedule and appropriately staff key personnel to meet the requirement.

(B) Organizations safe food handling procedures and training of employees.

(C) Offerors planned use of Bio-based products.

(D) Offeror's providing a complete and comprehensive Hazard Analysis and Critical Control Points (HACCP).

2.1.3.2: Quality Control Plan

The Government will evaluate your offer in the following areas:

(A) Safety and Work Rest Plans that clearly demonstrate the offeror's ability to ensure employees and public safety while at an incident. The method the contractor uses to adhere to occupational safety and health and to work rest and length of assignment guidelines. Quality control procedures, methods, and frequency of surveillance for self-inspections.

(B) Techniques planned to ensure Key Personnel and crew are trained, follow the quality control procedures and results are captured.

(C) Planned documentation and records to document self-inspections and corrective or preventative actions taken.

(D) Planned self-inspection forms/checklists to be used.

(E) Quality Control Plans that clearly demonstrate the Offeror's ability to perform and handle issues will be more favorably rated than those not providing details.

2.1.4 SUBFACTOR 4: PAST PERFORMANCE

*Past performance describes **how well** contractors performed the work*. The Government will evaluate your organization's past performance in providing services similar (size, scope, complexity) to those identified in the solicitation. Your past performance will be evaluated on the basis of information obtained from references and other sources, including any information on your company contained in the government-wide Contractor Performance Assessment Reporting System (CPARS), a government-wide past performance database located on-line at cpars.gov. The Government will not consider past performance more than three years old.

2.1.5 SUBFACTOR 5: EXPERIENCE

*Experience reflects **whether** contractors have performed similar work before*. The Government will base its evaluations of your experience on the company's skills, qualifications and experience of personnel in performing services of the kind described in this RFP and under similar contract terms. The more recent your

experience, and the broader and deeper your experience, the better the evaluation you will receive. Only your firm's experience as an organization will be considered.

2.2 FACTOR 2: PRICE (submitted via MS Forms | https://forms.office.com/g/NPmWSYd30T)

Both Phase 1 and Phase 2 Price Evaluation: the Government will evaluate the total evaluated price by multiplying the specific MFSU at the proposed rates for sub-items **X**01-**X**07 (for all years) in the Schedule of Items times the Total Estimated Quantities for each of the five years and the additional potential six months for the Option to Extend Services. The total evaluated price will combine prices for all five years for each MFSU and add 50 percent of the last year for the additional six months. The total evaluated price will be the price used for fair and reasonable determination. NOTE: Proposed rates for Option Year 4 will be used to evaluate the potential six-month extension under FAR 52.217-8. The six-month period will also be added to the total evaluated contract amount for evaluation purposes only.

Supplemental Items **X**10 – **X**22 (for all years) are **Supplemental** items and are not required to be proposed. Supplemental Items will not be used for the price evaluation for contract award but will be evaluated for fair and reasonableness; prices not found fair and reasonable will not be included in contract award. The Government reserves the right to not order Supplemental Items at any time.

Nothing from the following price analysis technique guarantees a level of effort nor set number of assignments, it is only for evaluation purposes.

The Government will review the price proposal for completeness and will check the Offeror's proposal for mathematical accuracy and will verify that the Offeror correctly calculates prices.

The Government will determine prices fair and reasonable through a thorough evaluation of the total evaluated amount to perform all services using price analysis techniques such as price comparison with other proposed prices received in response to the solicitation, the Forest Service estimated cost, available industry pricing and/or past Forest Service history pricing.

3. EVALUATION METHODOLGY

The evaluation methodology for Factor 1 – Offer Acceptability (including all Subfactors) will be evaluated as **Acceptable (A) / Unacceptable (U)** as to whether the services meet the agency need.

(a) Acceptable' means the proposal clearly meets the minimum requirements of the solicitation.

(b) Unacceptable' means the proposal clearly does not meet the minimum requirements of the solicitation. An "Unacceptable" rating in any evaluation factor will result in an overall technical rating of "Unacceptable", which makes the proposal ineligible for award.

4. BASIS OF AWARD

The Government will award contracts to Offerors who adhere to the terms of the RFP and are determined to be technically acceptable and reasonably priced. The Government does not intend to limit the number of awards for the National MFSU "Parent" IDIQ contracts during Phase 1 of this procurement.

(End of FAR 52.212-2 addenda)

E.2.5 52.212-3 Offeror Representations and Certification--Commercial Products and Commercial Services (May 2024) (DEVIATION FEB 2025)

[If Offeror Representations and Certifications are not complete in SAM the offeror shall submit a completed copy of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, with your offer. The full provision is available from http://www.acquisition.gov/far/.

If Offeror Representations and Certifications are complete in SAM, the offeror shall complete the following:]

(b)

(1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs _____.

[*Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any. Write "None" if there are no changes needed to your online reps and certs.*

Offerors that are representing as joint ventures should submit their socio-economic status in the space provided above until such time that SAM.gov has been updated to include the joint venture representations contained within provision 52.212-3 paragraph (c).

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.

(End of FAR 52.212-3)

E.2.6 52.217-5 Evaluation of Options (Jul 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

E.2.7 52.233-2 Service of Protest (Sep 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from *Dana Price, CFCM, dana.price2@usda.gov*.

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

E.3 Dept. of Agriculture Acquisition Regulations (AGAR) Supplemental Provisions -- Full Text

E.3.1 452.216-72 Evaluation Quantities – Indefinite-Delivery Contract (Feb 1988)

To evaluate offers for award purposes, the Government will apply the offeror's proposed fixed-prices/rates to the estimated quantities included in the solicitation and will add other direct costs if applicable.

(End of provision)

E.3.2 452.237-71 Pre-Bid/Pre-Proposal Conference (Feb 1988)

(a) The Government is planning a pre-bid/pre-proposal conference, during which potential offerors may obtain a better understanding of the work required.

(b) Offerors are encouraged to submit all questions in writing in accordance with E.1 FAR 52.212-1, Instructions to Offeror, prior to the conference through the link listed in paragraph (c) of this section. Questions will be considered at any time prior to or during the conference; however, offerors will be required to confirm verbal questions in writing. Subsequent to the conference, an amendment to the solicitation containing an abstract of the questions and answers, and a list of attendees, will be disseminated.

(c) In order to facilitate conference preparations, it is requested participants who expect to attend the Pre-Proposal conference complete the following https://forms.office.com/g/v26D33438E.

(d) The Government assumes no responsibility for any expense incurred by an offeror prior to contract award.

(e) Offerors are cautioned that, notwithstanding any remarks or clarifications given at the conference, all terms and conditions of the solicitation remain unchanged unless they are changed by amendment to the solicitation. If the answers to conference questions, or any solicitation amendment, create ambiguities, it is the responsibility of the offeror to seek clarification prior to submitting an offer.

(f) The conference is planned to take place approximately 14 days after the Solicitation is released on www.sam.gov and will be held virtually via MS Teams. The exact conference information will be announced on www.sam.gov via a Solicitation Amendment.

(End of provision)

E.4 Custom Provisions -- Full Text

E.4.1 Custom Provision #1 Inquiries and RFP Questions (Feb 2025)

Inquiries and all correspondence concerning this solicitation should be submitted in writing to the Contracting Officer. Offerors should contact only the Contracting Officer issuing the solicitation about any aspect of this requirement prior to contract award.

(1) Offerors shall submit their questions in accordance with the following:

(i) Questions are due 3/31/2025 at 9:00 AM MST in accordance with the instructions.

(ii) All questions will be submitted via email to:

2025_29.m2pohiy1ohshj22d@u.box.com

(iii) Questions/Comments not submitted on the provided form (D.15 Attachment 2) via the provided email will not be considered.

(End of provision)

End of E. Solicitation Provisions

END OF SOLICITATION

THIS SECTION INTENTIONALLY LEFT BLANK (end)